Part C – Place Based Requirements

Character Places and Heritage Areas

PART C – CHARACTER PLACES AND HERITAGE AREAS

This section applies to all development on land or locations within specific place-based localities and to development on or in the identified character areas, listed places, locations, items and within Heritage Conservation Areas or Heritage Precincts within the Kempsey local government area. It applies to:

1. Places within Kempsey Shire, being:
    - South West Rocks, Town Centre
    - Crescent Head Village
    - Dulconghi Heights
    - Stuarts Point
    - Point Plomer Road Precinct
    - Hat Head
    - Mid North Coast Industrial Hub

2. Settlement (European) period heritage only. Aboriginal Cultural heritage is addressed in **Part B4**. Items of Environmental Heritage listed in Schedule 5 - Part 1 – Heritage Items of KLEP.

3. Heritage Conservation Areas as identified in Schedule 5 – Part 2 – Heritage Conservation Area of KLEP. Heritage Conservation Areas are found in:
    - Bellbrook; and
    - Gladstone.

4. The following Heritage Precincts identified in this section:
    - Frederickton;
    - Kempsey - East;
    - Kempsey - Central;
    - Kempsey - West; and
    - Smithtown.

New Release Areas provisions are contained within the DCP **Part E - Appendix 3**, where existing land areas with planning and development requirements have been stipulated and incorporated within Kempsey's Development Controls.

5. New Release Areas;
    - Crescent Head Urban Investigation Area
    - Yarrahapinni

Application

Kempsey Shire has a number of localities with specific "place-based" provisions and development control requirements. These places are urban and rural areas, defined by heritage, their physical environment, visual character, landscape qualities or aspects of all those characteristics. There is a community desire and need to preserve the character of these specific localities to ensure that the values and features which define the identity of these places are maintained through development.

Conservation, heritage and/or character areas are not intended to prevent further growth and development, but to protect and preserve the character values of the place and guide new development and growth in a manner consistent and complementary with these identified values.

Purpose

This part, **Part C** provides information; background, characteristics and locality issues that are essential to the preparation and assessment of development applications in places and areas that contain heritage sites, heritage items, groups of period buildings, identified visual character, open space and/or landscape features. The purpose is to preserve the character of these areas.

Applicants must consider these requirements if and where their development site is located within one of the identified areas as covered in this **Part C** (other heritage items and aspects may be referenced in **Part E – Appendix 2**). Other requirements referenced in **Part D - Development Requirements**, where these apply, must also be considered and addressed;

1. **Character Places**

   A variety of individual places and areas of natural and built environment character, such as South West Rocks Town Centre, Point Plomer, Hat Head and Stuart's Point warrant specific "place-based" provisions and development control requirements.

2. **Heritage Items**

   This relates to settlement (European) period heritage only. Aboriginal Cultural heritage is addressed in **Part B4**, while Items of Environmental Heritage are listed in Schedule 5 - Part 1 – Heritage Items of KLEP.

3. **Heritage Conservation Areas**

   The Shire also has two existing Heritage Conservation Areas which are listed in the KLEP. These are Bellbrook (which is also National Trust listed) and Gladstone.

4. **Heritage Precincts**

   Council has separately defined Heritage Precincts within Smithtown, Frederickton, parts of Kempsey – East and the town centres of Kempsey and West Kempsey (Note: other localities may be identified and added in future). Understanding their history and built forms assists in identifying their unique qualities and their physical context within which individual sites, buildings and elements can be appreciated.

For each of the identified localities, the following sections (refer **Figure C.1** below) set out the aspects that may apply to development within those areas as defined.

1. **Application** – where the planning requirements apply, through map information (area), a scope defining the extent of area and aspects and references such as studies, strategies, plans and/or community information that have been used to identify and define the locality area, scope and description of character.

2. **Analysis** – a brief background explanation such as history and a definition of the particular character of that location or place, and specific locality issues that should be addressed, where relevant, of proposed development within that locality.
3. **Statement of significance** (where applicable) – a statement of the local and/or state significance of the locality, its features and character, often related to heritage values. These are matters that must be addressed in any development proposal.
4. **Objectives (Desired Outcomes and Development Requirements)** – the broad planning objectives for each place with performance type 'Desired Outcomes' alongside the Development Control Requirements that apply and are to be achieved.

Applicants whose proposed development is located in any of these areas must address the particular issues, desired outcomes and development requirements that apply to their proposal.

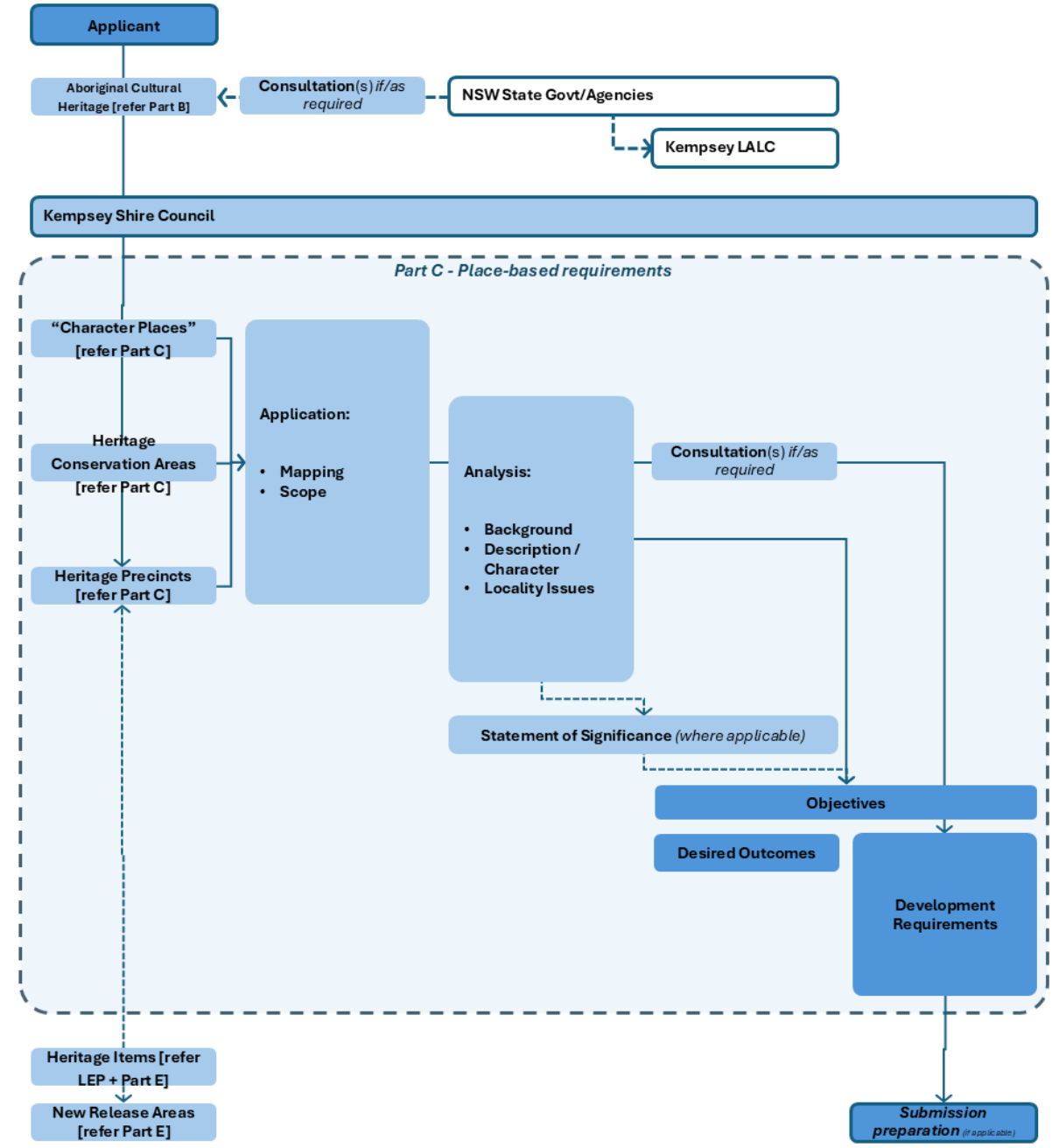


Figure C.1 - "Place-based" Requirements – Navigating the relevant sections

C1 CHARACTER PLACES

C1.1 South West Rocks Town Centre

Additional local provisions for design excellence for development in South West Rocks Town Centre are contained within the KLEP.

Application

1. This section applies to all development of land in the South West Rocks Town Centre, within the area bounded by the bold line described in **Figure C.2** below.



Figure C.2 - Land subject to the provisions of **Part C1.1** – South West Rocks Town Centre

2. This part of the DCP for the South West Rocks Town Centre is also characterised by three (3) precincts, which are (as shown in **Figure C.3** below):
   - Precinct P1: Public and Recreation Areas;
   - Precinct P2: Town Centre Commercial; and
   - Precinct P3: Tourist Accommodation Area;

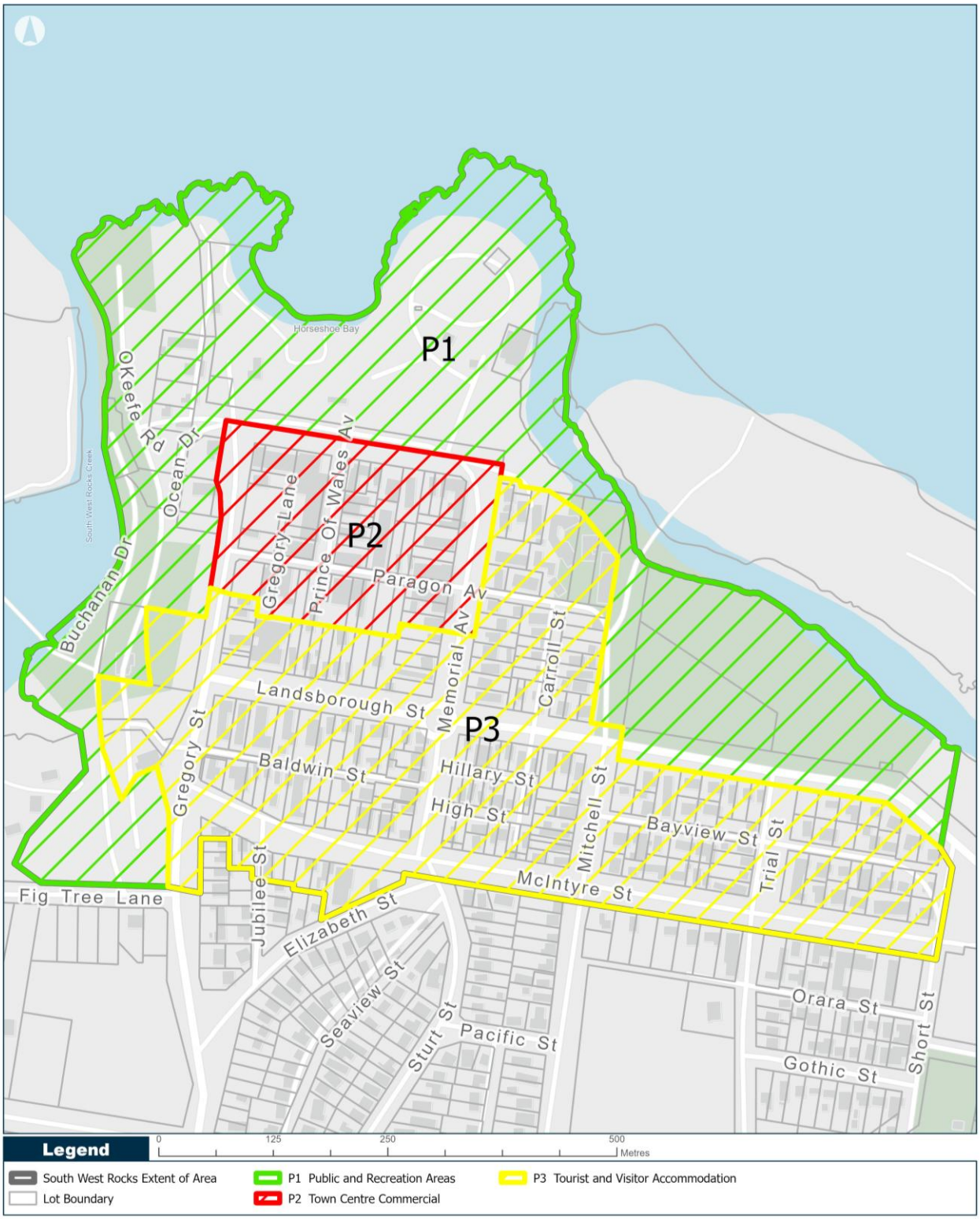


Figure C.3 – Precincts of South West Rocks Town Centre

3. This section also applies to all development of land identified as being part of the South West Rocks Heritage Precinct and Heritage Items shown in **Figure C.4**. Additional provisions are applicable to these

heritage areas as outlined in section C1.1 and **Part E – Appendix 2**.

4. Proposed Development will also require addressing all relevant provisions in **Part B - Shire Wide Requirements, Part D - Development Requirements** and **Part E - Appendices**, where applicable.
5. The provisions of this Part override however the provisions of any other Part of this DCP, to the extent of any inconsistency.

Scope

This part outlines the precinct-specific planning controls applicable to development and use of land in the South West Rocks Town Centre.

C1.1.1 Analysis

Background

South West Rocks' establishment as a Town is a result of its location at the head of the Macleay River, its bay, headland and the river delta hinterland. This history is reflected in the Maritime Precinct (refer Fig C.4) a cluster of heritage buildings on the promontory and ridgeline above Back Creek. Its position as the gateway to the Macleay Valley and the hinterland's natural resources and suitability for grazing allowed it to develop as a shipment point, and later, a holiday destination.

South West Rocks Town Centre is bounded by the Pacific Ocean coastline, natural and modified landscapes including Horse Shoe Cove and Trial Bay. Undulating residential suburban areas lie behind, with low-lying Back Creek, vegetation and flood plain along the western edge. The scenic coastline and environment is a major attraction, with key facilities provided alongside the beaches, estuaries and parks and associated amenities and services. Now Identified as a town within the North Coast region, South West Rocks' Town Centre has strong historical associations and physical remnants of earlier habitation, based on Aboriginal cultural heritage, period settlement and maritime activity. Some of these are recognized as important values for both tourism and the local community (South West Rocks Structure Plan, 2023).

The purpose of this part is to also provide means of implementing the outcomes of the South West Rocks Structure Plan (2023), within the Town Centre area to the extent relevant. A copy of the South West Rocks Structure Plan is available from Council's website. The Horseshoe Bay Master Plan (2019) also applies to that part of the Town Centre generally to the north of Livingstone Street. The Horseshoe Bay Master Plan is available through Council's website.



Figure C.3a – South West Rocks Historic Plan (extract), and aerial photograph of contemporary Town Centre and foreshore

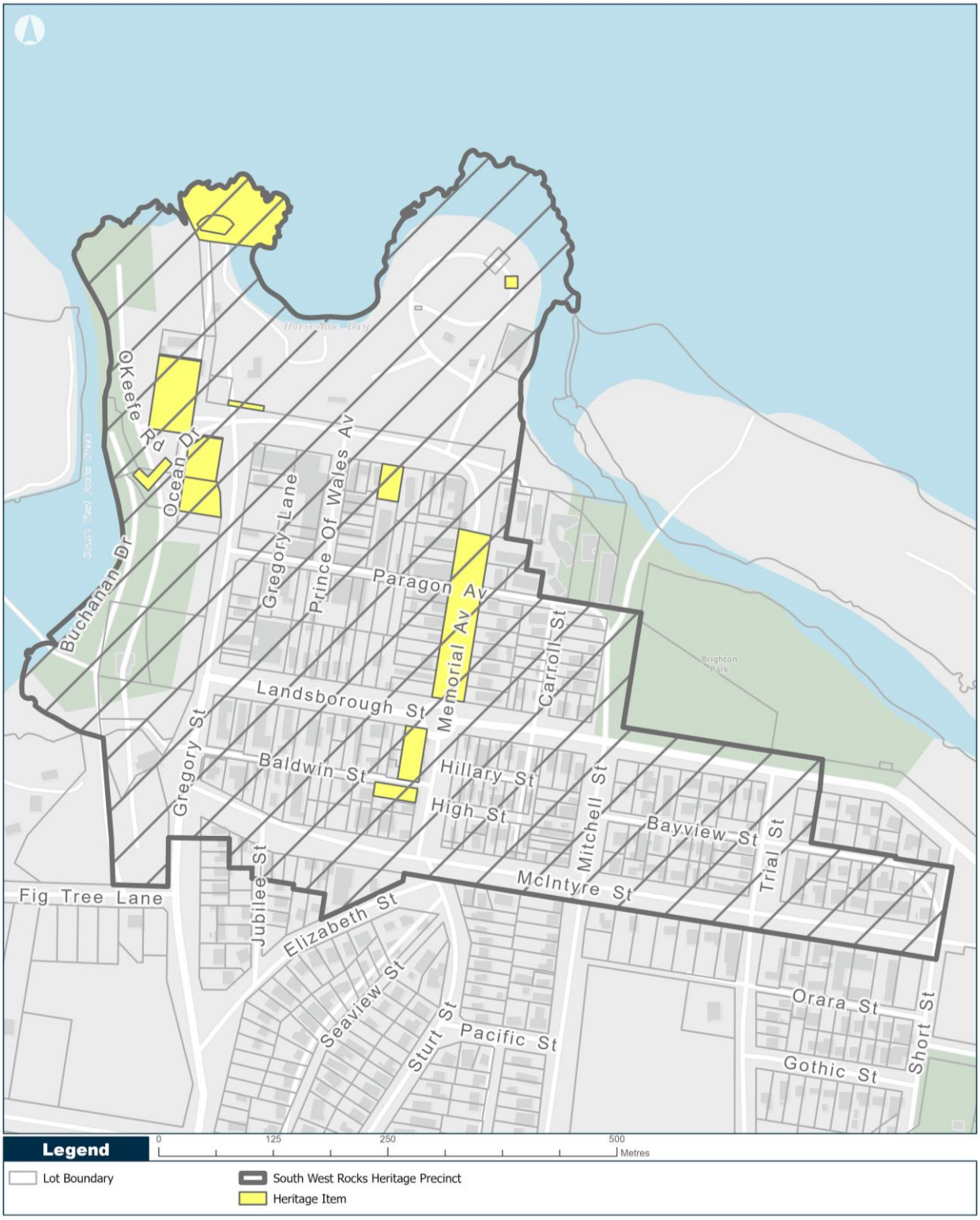


Figure C.4 – South West Rocks Heritage Precinct

Description - Character

South West Rocks rests on a coastal setting, with its compact Town Centre set at the end of a low ridge surrounded on two sides by natural coastal and riverine scenic beauty. It has strong physical and visual links to the ocean and creeks. The town centre slopes downwards to the east and south, limiting ocean views once away from the former Pilot Station Bay area.

The Town Centre is a destination (not enroute to anywhere), offering a casual relaxed lifestyle based on

opportunities offered by the natural coastal surrounds. This is generally reflected in its eclectic mix of residential, human-scale commercial and historic built forms on generally wide streetscapes bounded by parkland and natural foreshore areas. "The town centre is comprised of several precincts with unique characteristics, including the historic town centre, older residential parts of the town north of Hill Street" (LGMS Local Character Statements Review 2022).

The original town is contained within a grid pattern orientated to the major compass points and consists of an east - west distance spanning four blocks and north – south distance spanning three blocks. A group of weatherboard buildings (Maritime Heritage Grouping) defined by the former Pilot Station and Community Hall are on elevated ground around Ocean Drive and Gregory Street with the business centre to the east extending south to Memorial Avenue and west to Paragon Avenue. There are also a small number of buildings within the town centre which have local historical importance. Newer buildings are characterised around shop-top housing and apartment housing blocks. New buildings within the town centre conform to existing plots with generally single dwellings existing around the periphery. Some medium density building is emerging.

The streets in the South West Rocks commercial town centre are characterised by a grid pattern with central and close proximity to facilities, services and public places.

On the west and south are the residential homes and holiday accommodation. Some examples of period development are scattered through this area. The period residential buildings are predominantly small scale and sometimes framed by low level fencing, punctuated by groups of native and introduced trees and having a mixture of street frontages. Most building types are generally single detached dwellings, with some small-scale apartment buildings or shop top housing.

Around the town centre periphery the natural and introduced vegetation on roads and in reserves along with the views to the ocean and bay provides a coastal character to the centre on the eastern and northern edge. The natural and introduced vegetation on roads and in reserves also acts as a positive aesthetic to those parts of the town centre which do not have an outlook to the ocean.

Building sizes within South West Rocks Town Centre are generally lower scale, ranging from 1-2 storeys for detached dwellings and up to three (3) storeys for buildings near or within the commercial core.

The elements making up the character of the South West Rocks Town Centre includes:

a) Natural coastal edge.
b) Historic built form items (Maritime Heritage Grouping).
c) Parklands.
d) Natural foreshore areas.
e) Mix of commercial and tourist residential uses which provide for a continuity of scale and building setbacks.
f) A mix of primarily low and some medium density residential development.
g) Streetscapes characterised by informally edged streets with verges or footpaths, off-street car parking and vegetation in front and beside buildings.

Locality Issues

South West Rocks maintains a strong relationship with the NSW coast and other towns that are accessible for commuting, lifestyle choices and retirement. Demand and growth in population is anticipated to continue into the foreseeable future.

Locality-specific issues that will need to be addressed through (re)development in South West Rocks Town Centre includes:

1. Traffic circulation
2. Pedestrian and 'active transport' accessibility, mobility and safety.
3. Management of coastal areas (including sand mining), watercourses and entrances to the ocean.
4. Provision of housing supply and diverse housing typologies, including more smaller dwellings.
5. Essential services, including water and sewer infrastructure capacity to meet future/increased demand.
6. Streetscapes, incorporating trees, footpaths and existing vegetation and tree management.
7. Development scale, heritage remnants and items.

C1.1.2 Statement of Significance

South West Rocks is culturally significant because:

1. It has historic significance as a record of early settlement of the Macleay Valley coastline and because of its association with Trial Bay and the Gaol;
2. It has aesthetic significance as an example of an Australian "village in a landscape" and its development as a river/seaport and retains a scale of largely intact streetscapes and individual buildings; and,
3. It has social significance for its roles as a centre for commerce and as a holiday destination.

Objectives

a) To encourage appropriate development, which is sensitive to the scale, character, cultural, social and environmental values of the South West Rocks Town Centre and its surrounds.

b) To ensure appropriate preservation, protection and management of the particular physical, cultural and environmental elements of each precinct.

c) To preserve heritage and key scenic and historic items and elements.

d) To improve urban design and amenity within the South West Rocks Town Centre by:
   i. Ensuring development is compatible with the size and scale of the existing built form;
   ii. Facilitating more active street frontages;
   iii. Ensuring that the design of new buildings in the Town Centre considers the existing character of the South West Rocks Town Centre.
   iv. To encourage appropriate developments to increase density and functions of the town within the town centre and it's precincts.

e) To facilitate achievement of the vision outlined in the South West Rocks Structure Plan by:
   i. Enhancing functions, amenity and character for the Town Centre;
   ii. Supporting innate differences between the varied precincts;
   iii. Supporting cohesive streetscape works, public and private landscape treatments; and
   iv. Supporting an integrated pedestrian and multi-modal traffic network along with conveniently located parking areas.

f) To encourage the retention and commercial use of heritage and period buildings which reflect South West Rocks' character and history.

C1.1.3 Desired Outcomes/Development Requirements

The following desired outcomes and development control requirements in **Table C.1** prescribe how the above objectives can be met.

Table C.1 – Desired Outcomes and Development Control Requirements – South West Rocks Town Centre

Desired outcomes	Development requirements
1. Preservation	
Protecting Heritage Items 1.1 Development within the South West Rocks Heritage Items (refer KLEP Schedule 5 and **Figure C.4**) protects the heritage character of the site and surrounding heritage sites.	a. Development of land within the Heritage Items complies with **Part E - Appendix 2**, which contains the requirements for preparing development applications on land identified as containing heritage items or being located within conservation areas and character precincts.
Preserving Character	a. The application must demonstrate the achievement of this Desired Outcome

Desired outcomes	Development requirements
1.2 Development maintains the character of the South West Rocks Town Centre, and the precincts built character.	
Precinct 1 – Foreshore, Public and Recreation Areas	
1.3 Development within Precinct 1 open space is to be in accordance with any adopted Plan of Management and Master Plan for these areas (In particular, the Horseshoe Master Plan 2019 generally applies to the north of Livingstone Street). In the absence of such adopted plans, development is to be undertaken in accordance with the intent and directions of the South West Rocks Structure Plan and this Development Control Plan. **Note** – the Horseshoe Bay Master Plan and Plan of Management will apply to the remaining open space areas.	a. The application must demonstrate the achievement of this Desired Outcome
1.4 Development in Precinct 1 (Back Creek Foreshore Linear Park & Special Uses Area) retains the following elements: i. Retention of substantial areas of dense vegetation and large trees; ii. Large setbacks and low level built forms; iii. Relationship with nearby Maritime Heritage buildings (grouping) and the Arts Hall; and iv. Minimal vehicle access points and informal entry ways.	a. The application must demonstrate the achievement of this Desired Outcome
1.5 Development affecting the Maritime Heritage Grouping (Precinct 1) is carried out in accordance with the recommendations of any relevant Conservation Plan and ensures that even minor maintenance works do not further erode the integrity of the buildings within the grouping.	a. The application must demonstrate the achievement of this Desired Outcome
1.6 Development within the Horseshoe Bay Caravan Park (Precinct 1): i. Does not adversely impact on views and vistas from public areas such as the beach, reserves, roads and public footpaths; ii. Does not adversely impact on views and vistas from restaurants, hotels and shops as well as private areas such as above ground floor residential units facing Livingstone Street; iii. Is consistent and sympathetic to the design and character of the town centre precinct in terms of the location, siting and design of permanent buildings or structures (e.g. amenities buildings and the like);	a. The application must demonstrate the achievement of this Desired Outcome

Desired outcomes	Development requirements
iv. Where appropriate, accommodates and provides direct pedestrian access/pathways between the shops and the beachfront to avoid pedestrians strolling between camping sites; v. Where relevant, relocates or screens cabins or other structures near the War Memorial; and vi. Where relevant, enhances physical and visual amenity with shade tree planting.	
1.7 Development involving building works is low-impact, low-scale and results in minimal negative visual impacts on the views from the Town Centre towards the ocean	a. The application must demonstrate the achievement of this Desired Outcome
1.8 Screen landscape is provided to improve views from the built-up areas of the Town Centre towards the ocean by screening elements such as services and utility areas.	a. The application must demonstrate the achievement of this Desired Outcome
Precinct 2 - Town Commercial Area	
1.9 Development contributes to a vibrant commercial centre accommodating the needs of both community and visitors through mixed use development, which facilitates high levels of pedestrian activity through active frontages, access and circulation and safety.	a. The application must demonstrate the achievement of this Desired Outcome
1.10 Development is designed to be compatible with and reflect the character of the South West Rocks Town Commercial precinct.	a. Development does not exceed a floor space ratio as per the requirements of KLEP. Where no FSR is stipulated within KLEP, this will be at the discretion of Council. b. Development does not exceed a building height limit as per the requirements of KLEP. c. Where no building height is stipulated within KLEP, building facades are limited to a height of four (4) storeys. Maximum allowable heights of buildings may be achieved behind the façade, provided: i. the building does not have an adverse impact on adjoining properties in terms of overshadowing and overlooking; ii. the building achieves greater setbacks; and iii. the building form is articulated to both street frontage and sides.
1.11 Development is compatible with the existing character of the South West Rocks Town Centre and relates positively to the surrounding streetscape and public realm.	a. The application must demonstrate the achievement of this Desired Outcome
1.12 The setbacks of any proposed building within the E1 – Local Centre Zone which is to contain any dwellings must have regard to future potential development of adjoining land. In this regard, it may be necessary to demonstrate that proposed	a. The application must demonstrate the achievement of this Desired Outcome

Desired outcomes	Development requirements
balconies, courtyards and internal living areas will not be adversely impacted upon in the event any adjoining land is developed for commercial purposes in accordance with KLEP, this Development Control Plan and the Building Code of Australia.	
1.13 Development, including alterations and additions: i. Adopts equivalent front and side boundary setbacks as the existing cottages; ii. Is compatible with the scale and bulk of the existing buildings; and iii. Is limited in height to that of any immediately adjoining Heritage Building or Heritage Item. **Note**- Supporting detail from an appropriately qualified and experienced heritage architect must be provided.	a. Where development comprises a three (3) storey building or higher, development must not overshadow adjoining residential buildings, adjoining private open space, on-site open space and any public areas for more than three (3) hours between 9.00am and 3.00pm on 22 June.
1.14 The rear and/or basements of lots are used or created for parking and access where possible.	a. The application must demonstrate the achievement of this Desired Outcome
Precinct 3 – Tourist, Visitor and Residential Accommodation Area	
1.15 The precinct is developed predominantly with residential and visitor accommodation.	a. The application must demonstrate the achievement of this Desired Outcome
1.16 Residential development complies with the relevant requirements of **Part D.**	a. The application must demonstrate the achievement of this Desired Outcome
1.17 Development is designed to be compatible with and reflect the character of the South West Rocks Town Centre Tourist Accommodation Area precinct.	a. Development does not exceed a building height limit as per the requirements of KLEP. b. Where no building height is stipulated within KLEP, building facades are limited to a height of three (3) storeys. Maximum allowable heights of buildings may be achieved behind the façade, provided: i. the building does not have an adverse impact on neighbouring properties in terms of overshadowing and overlooking; ii. the building achieves greater setbacks; and iii. the building form is articulated to reduce the visual impact of the building massing.
1.18 Where neighbouring properties contain period buildings or cottages, development adopts, or is compatible with, the existing front and side boundary setbacks of existing buildings.	a. The application must demonstrate the achievement of this Desired Outcome
1.19 Existing cottages are retained for commercial, residential and tourist activities. **Note** - Uses which provide opportunities to enjoy the	a. The application must demonstrate the achievement of this Desired Outcome

Desired outcomes	Development requirements
breezes and vistas of public foreshore areas, (e.g. cafes and dining areas in the forecourts and front rooms of the cottages) are encouraged.	
1.20 Landscape and streetscape treatments are sympathetic to the cottage setting. **Note** - Heritage Exemption from, or relaxation of, certain provisions will be considered and incentives offered to encourage the retention and use of the cottages within this precinct.	a. The application must demonstrate the achievement of this Desired Outcome
1.21 Where the allotment has a street front boundary the ground level landscape addresses and positively contributes to the streetscape through appropriate visual and physical access and appropriately scaled planting.	a. The application must demonstrate the achievement of this Desired Outcome
1.22 The rear of lots are used for parking and access where possible.	a. The application must demonstrate the achievement of this Desired Outcome
1.23 Car parking requirements for the use of the cottages may be varied if the use will result in the long-term maintenance of traditional form including, but not limited to, colours, materials, window treatments, open front yards and the like. In this regard, Council may allow a credit for all existing floorspace at the rate applicable to any proposed uses. For the purposes of this clause, "floorspace" must include the area within existing external enclosing walls, but does not include any garage, outbuildings or any unenclosed structures. Any area used to provide seating for diners (either internally or within the front setback) will be excluded when considering the amount of carparking required. The incentives referred to in this section must not apply in respect to proposals which involve removal or demolition of existing cottages.	a. The application must demonstrate the achievement of this Desired Outcome
1.24 Development, including alterations and additions: i. Adopts equivalent front and side boundary setbacks as the existing cottages; and ii. Is compatible with the scale and bulk of the existing cottages. **Note** - Supporting detail from an appropriately qualified and experienced heritage architect must be provided.	a. Where development comprises a two (2) storey building or higher, development must not overshadow adjoining residential buildings, adjoining private open space, on-site open space and any public areas for more than three (3) hours between 9.00am and 3.00pm on 22 June.
1.25 Development is not to provide overlooking into private internal areas of adjoining residential	a. The application must demonstrate the achievement of this Desired Outcome.

Desired outcomes	Development requirements
developments. Screening may be provided to reduce overlooking.	
2. *Visual Impact*	
Streetscape and Public Domain	
Public Open Space 2.1 Public open spaces and key streets of the Town Centre receive solar access mid-winter and shade mid-summer.	a. The application must demonstrate the achievement of this Desired Outcome.
Vehicle Paving 2.2 Vehicle paving areas have a particular emphasis on: i. Median treatments being generally consistent with existing median treatments; and ii. Pedestrian dominant areas uses similar paving treatments to existing pedestrian dominant areas iii. Pedestrian dominant areas have a colour contrast to road pavement.	a. The application must demonstrate the achievement of this Desired Outcome.
Pedestrian and Cycle Paving 2.3 Pedestrian areas and pedestrian/cycle path paving complies with the local Active Transport Strategies (Kempsey Shire Bike Plan) and is generally consistent with the existing pedestrian paving in the South West Rocks Town Centre, in terms of: i. Width ii. Connections iii. Safety features iv. Materials.	a. The application must demonstrate the achievement of this Desired Outcome.
Street Furniture 2.4 Seating and picnic tables used in the street reserve and public open spaces is consistent with the slatted timber bench seating and timber picnic tables established in the South West Rocks Town Centre. 2.5 Any bollards provided are consistent with the established theme of bollards used in the street reserves and public open spaces. 2.6 A consistent design and colour for litter bins is provided in the street reserve and public areas of the South West Rocks Town Centre	a. The application must demonstrate the achievement of this Desired Outcome.
Lighting 2.7 Street lighting and lighting within public open spaces contributes to a unified approach for lighting structures within the South West Rocks Town Centre.	a. A consistent design for street lights is used.

Desired outcomes	Development requirements
Landscape	
2.8 Trees are provided along street reserves and public open space areas.	a. The application must demonstrate the achievement of this Desired Outcome
2.9 Trees and shrubs used along streets and within public open space areas reinforce a cohesive landscape for South West Rocks Town Centre.	a. Only one or two species (refer **Part E – Appendix 5**) are used within each precinct, to establish consistency for maintenance.
2.10 Developers provide, or contribute to the provision of, a reasonable proportion of any required street trees directly in front of their properties.	a. The application must demonstrate the achievement of this Desired Outcome
3. New Development	
Built Form	
Setbacks and Building Heights 3.1 Buildings have appropriate setbacks, height, size and scale which contributes to the character with articulated frontage and strong pedestrian focus.	a. New buildings facing Paragon Avenue are to have setbacks consistent with the adjoining properties to maintain the commercial and active pedestrian street environment. b. Development has a floor space ratio as per the requirements of KLEP. Where no FSR is stipulated within KLEP, this will be at the discretion of Council. c. Development has a maximum building height as per the requirements of KLEP. Where no building height is stipulated within KLEP, this will be at the discretion of Council. d. Building facades and storey articulation are limited to within the KLEP height requirements and the requirements of the particular precinct the site occurs within. e. Where buildings have a third or fourth storey (not including below ground level basement), either: i. The building is set back from the front boundary consistent with adjoining development and the front boundary setback area provided with active street front uses and landscape (which is most appropriate to the precinct) to reduce the visual impact of the building; or ii. The third storey (and above if applicable) is set back significantly from the ground level façade so that the building blends with the predominant scale of the immediate streetscape. **Note** – Building heights are determined by KLEP Height of Building regulation, not by the number of storeys.
Streetscape Continuity 3.2 Development contributes to the continuity of the streetscape by continuing the following, where practicable and relevant: i. Built forms (period or contemporary); ii. Continuity of verandah /awning of already	a. The application must demonstrate the achievement of this Desired Outcome.

Desired outcomes	Development requirements
dominant existing style within the town centre; iii. Open / glazed shopfront; iv. Skylines, façade height and building height; v. Any established pattern of side boundary setbacks; vi. Colour and materials.	
New Buildings 3.3 New buildings should optimise heights and density on sites on existing subdivided land. 3.4 New development should optimise density (height of building, floor space ratio) on already subdivided land, with limited impact on surrounding areas such as the opportunity sites identified within the adopted South West Rocks Structure Plan.	a. The application must demonstrate the achievement of this Desired Outcome.
Built Form 3.5 The topography is utilised to work with built form e.g. placing buildings into slopes to reduce height and scale.	a. The application must demonstrate the achievement of this Desired Outcome.
New Development Types	
Shop Top Housing 3.6 Shop Top Housing is designed to suit the coastal character and town centre vernacular.	a. The application must comply with the relevant requirements in **Part D** for Shop Top Housing.
Opportunity Sites 3.7 Development of vacant and identified "opportunity sites" within the Town Centre meets the development intent as outlined within the South West Rocks Structure Plan.	a. The application must demonstrate the achievement of this Desired Outcome
Tourist and Visitor Accommodation 3.8 Tourist and Visitor Accommodation within mixed use developments does not result in significant amenity conflicts with commercial activities.	a. The application must comply with the relevant requirements in **Part D** for Tourist and Visitor Accommodation.
Minimising Land Use Conflicts 3.9 Potential conflicts between mixed commercial and residential uses are minimised, whilst recognizing that the area is primarily intended as a commercial and tourist centre.	a. The application must demonstrate the achievement of this Desired Outcome
Access and Traffic	
Shared Pavements 3.10 Shared pavements for active mobility are implemented and connected for healthy mobility, access and walkability as outlined within the South West Rocks Structure Plan and complies with Active Transport Strategies (inc Kempsey Shire Bike Plan).	a. The application must demonstrate the achievement of this Desired Outcome

Desired outcomes	Development requirements
Pedestrian Movement, Linkages & Permeability 3.11 Livingstone Street facilitates pedestrian movement to and from beach side to town side. 3.12 The pedestrian link between Paragon Avenue and Landsborough Street is formalised as outlined within the South West Rocks Structure Plan. 3.13 Pedestrian permeability is increased from Livingstone Street to Horseshoe Bay Beach, as outlined within the South West Rocks Structure Plan.	a. The application must demonstrate the achievement of this Desired Outcome
Town Centre Streets 3.14 Other streets within the Town Centre are developed as civic spaces and provides places for people to meet and interact. 3.15 Development contributes towards the road network improvements as outlined within the South West Rocks Structure Plan.	a. The application must demonstrate the achievement of this Desired Outcome

C1.2 Crescent Head Village Centre

Application

1. This section applies to all development on land located at Crescent Head Village Centre, within the area bounded by the bold line described in the **Figure C.8** below.

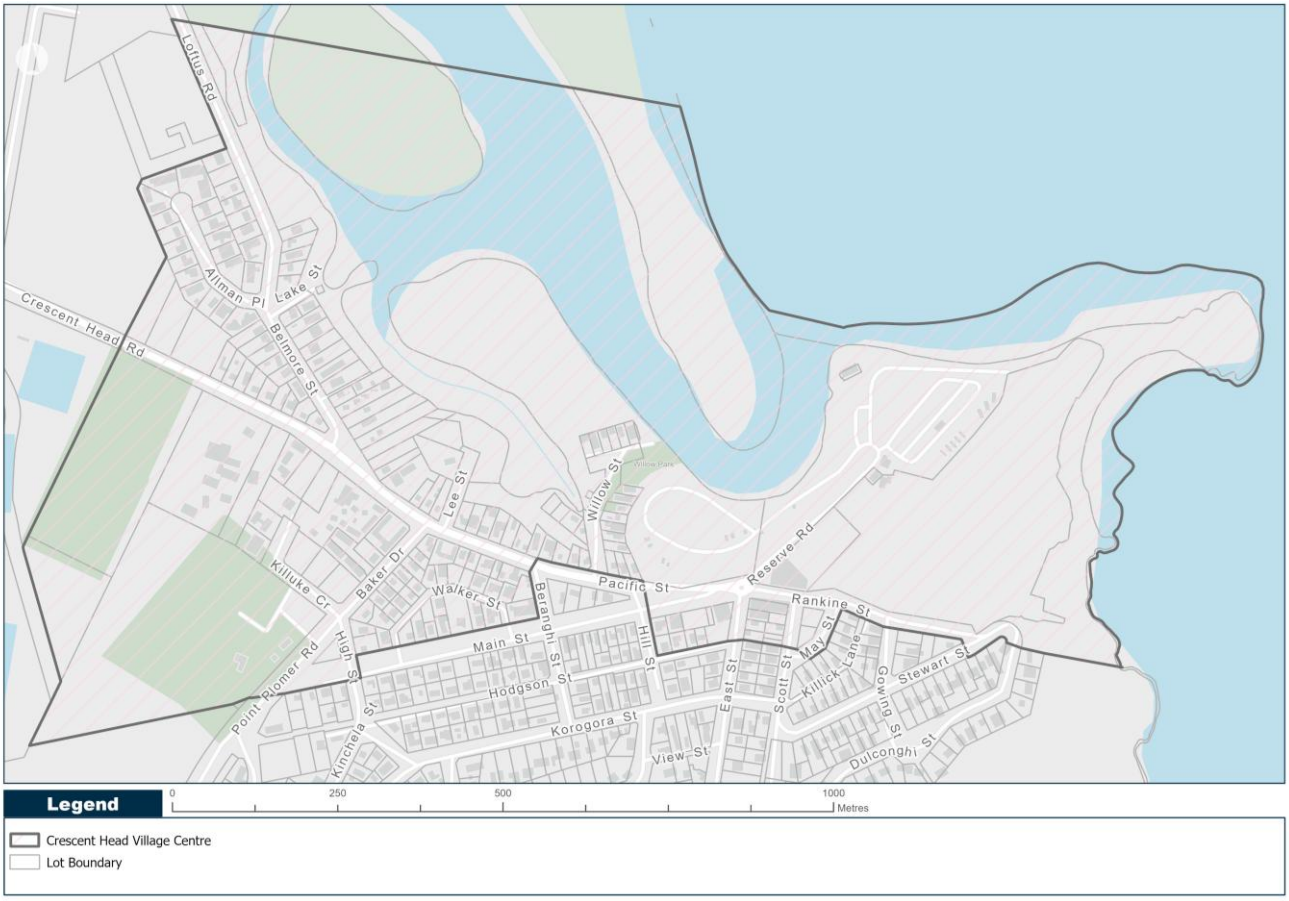


Figure C.8 – Land subject to the provisions of **Part C1.3**

2. Proposed Development will also require addressing all relevant provisions in **Part B - Shire Wide Requirements, Part D - Development Requirements** and **Part E - Appendices**, where applicable.
3. The provisions of this Part override however the provisions of any other Part of this DCP, to the extent of any inconsistency.
4. This part of the DCP for Crescent Head is also divided into 6 precincts, which are:
   - Precinct P1: Muddy Arm, Killick Creek Estuary and Main Beach;
   - Precinct P2: Tourist and Reserve Promenade;
   - Precinct P3: Headland and Point;
   - Precinct P4: Lower Residential, Mixed Tourism and Residential;
   - Precinct P5: Central, Local and Commercial; and
   - Precinct P6: Sporting and Community Precinct, Swimming Pool.

The precincts are shown in **Figure C.9** next page:

Scope

This part outlines the precinct-specific planning controls applicable to development and use of land in Crescent Head Village Centre.

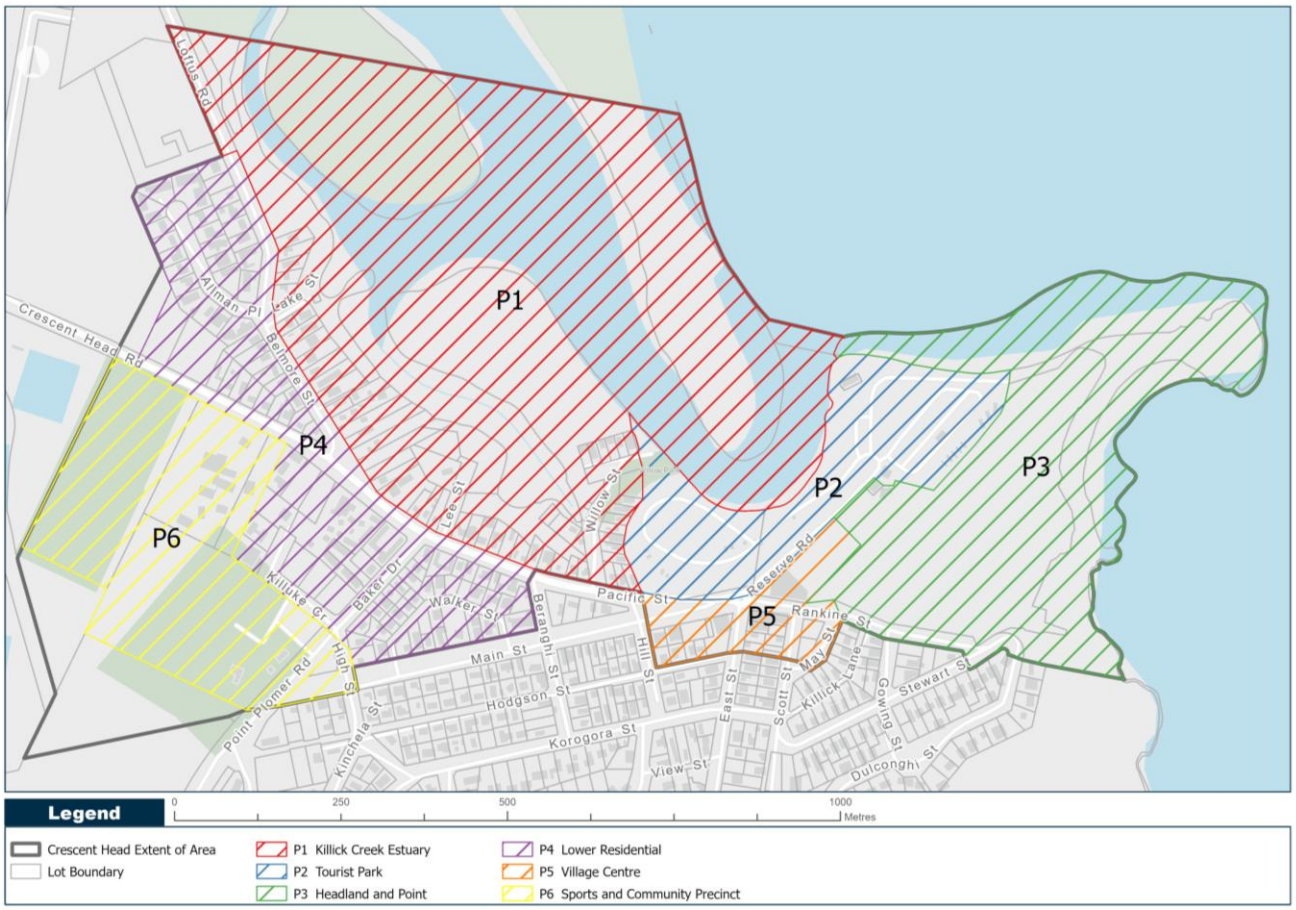


Figure C.9 – Crescent Head Village Centre Precincts (Derived from Crescent Head Master Plan 2017)

C1.2.1 Analysis

Background

Located on Dunghutti Country along the Macleay Valley Coast, Crescent Head experienced previous growth and anticipates ongoing steady demand due to its idyllic coastal location and popularity as a holiday destination. The Crescent Head Village Master Plan (2017) identified a desire for the Village to be developed in a way that:

- Provides improved village public spaces;
- Protects and conserves public lands;
- Guards against inappropriate development;
- Safeguards the character and quality of life in Crescent Head;
- Supports growth and housing solutions that cater to the needs of current and future residents while maintaining the village's unique identity; and
- Achieves improvements to the village centre and surrounding area while retaining the character and feel that is central to its identity.

The importance of public facilities and infrastructure in Crescent Head is a key priority. These facilities not only provide the permanent residents of Crescent Head with an amenable and pleasant village environment but also provide for the significant visitor demand experienced throughout the year, particularly during the summer months and school holiday periods when the population of Crescent Head increases substantially.

The purpose of this section is to provide guidance for implementing the outcomes of the Crescent Head Master Plan (2017) and other applicable plans. It provides relevant context and identifies local issues that may be addressed within the parameters of proposed development. The Crescent Head Master Plan and other plans are available at Kempsey Shire Council or on-line.

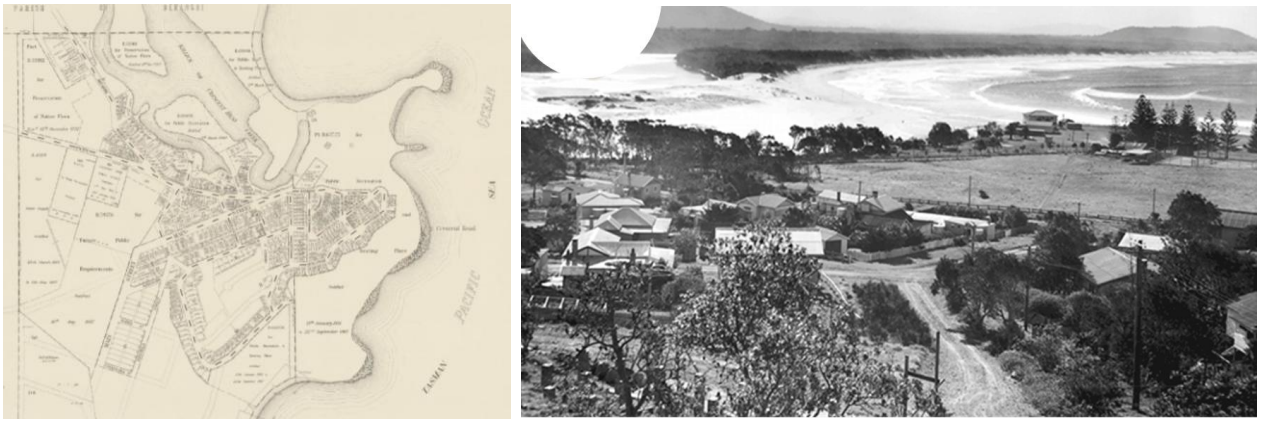


Figure C.10 – Crescent Head, old settlement plan and historic photograph of village centre

Character

Crescent Head is a relaxed coastal village situated on the gently sloping foothills of Big Nobby to the south of Killick Creek. It is renowned for its world class surf break, striking headland and coastal cliffs, beautiful beach and attractive natural backdrop of forested ridgelines and hills.

The character of Crescent Head is expressed through its coastal location and the built form of the small beachside village. The village centre is surrounded by residential development that rises up the side of Big Nobby and development along the low-lying flood plain and meandering Killick Creek.

Within the lower lying parts of the village, housing comprises a diverse mix of older brick, weatherboard and fibro single and two-storey detached dwellings, unit blocks and more contemporary medium density developments. Residential interfaces with the street are characterised by wide grassy verges and fencing is often non-existent, however where present, the materiality and heights are generally in keeping with the dwelling character. Existing lot sizes in the village generally range between 400 to 1000m^2.

Commercial development extends along the southern side of Main Street and Rankine Street, between Hill Street and Scott Street and recent streetscape upgrades have improved the amenity and accessibility of the eastern part of the village centre. Other dispersed commercial uses also occur throughout the village, particularly along Pacific Street where they are set amongst residential dwellings and short-stay accommodation facilities.

Table C.2 – Character elements of Crescent Head Village Centre

Table C.2: Character Elements of Crescent Head Village Centre		
	Features that Contribute	**Features that Detract**
Landscape Character	• Trees (vegetation) that dominate the hill • Consistent theme for tree planting • Rooflines below tree canopies across the ridgeline • Vegetation that softens views of dwellings	• Dwellings intruding on the skyline • Overhead power lines • Protruding white roofs • Roof lines along contour connected to make an unbroken line • Cocos Palm Trees
Streetscape Character	• Use of shrubs for screening foreground (native vegetation preferred) • Unobtrusive fencing • Adequate setbacks to achieve desired landscape • Layback kerb and gutter with footpath adjoining, to maximise	• No defined road edge/footpath • Ad hoc home business advertising • Retaining walls with hard/straight edge • Intrusive letter boxes and fences • Poor street stormwater management resulting in poorly

Table C.2: Character Elements of Crescent Head Village Centre		
	area for landscaping • Retention of vistas • Rock retaining walls	maintained systems and soil erosion • Encroachments within the road reserve
Building Character and Design	• Large building setbacks • Timber balconies, handrails etc • Wide eaves • Broken or varied rooflines • Timber gables • Recessed garages • Use of verandas projecting from building, not enclosed • Pastel or earthy colours • Pitched roofs • Varied construction materials • Windows and openings in proportion to wall	• Boxy heavy developments • Enclosed balconies • Over use of concrete, excessive width driveways • Intrusive retaining walls • Dominating high brick walls and fencing • Viewing double garages from the street front • Lack of landscaping • Featureless walls facing street • Bright colours for walls or roofs • Modern glass balustrades • Narrow verandahs

Locality issues

The Local Growth Management Strategy and local plans identify the need to address the following issues for Crescent Head:

- Protection of scenic and environmental values.
- Foreshore and village centre public spaces, amenity and access.
- Traffic access, circulation active transport and parking management.
- Flooding, estuarine and coastal vulnerabilities.
- Stormwater management network capacity and future surface water and stormwater vulnerabilities.

C1.2.2 Statement of Significance

Objectives

1. To provide for the development of Crescent Head Village which:
   a. Maintains its coastal character of the village through the management of development height, scale, density, setbacks, streetscapes and protection of views towards the surrounding environments and scenic landscapes;
   b. Preserves the natural environmental qualities of the foreshore and estuarine areas.
   c. Provides a quality public realm and pedestrian (walkable) amenity;
   d. To ensure that satisfactory arrangements are made regarding stormwater management for development on individual lots and within subject land.
   e. Ensures the efficient provision of infrastructure to service new and existing development; and
   f. Ensures the safety of waterfront spaces and amenities for all users.

C1.2.3 Desired Outcomes/Development Requirements

The following desired outcomes and development control requirements in **Table C.3** prescribe how the above objectives can be met.

Table C.3 – Desired Outcomes and Development Control Requirements – Crescent Head Village

Desired outcomes	Development requirements
1. Preservation	
Scenic Amenity – Character	
Protection of Sensitive Locations 1.1 Development preserves the existing visually sensitive natural locations and characteristics such as the headlands and coastal and riparian edges.	a. The application must demonstrate the achievement of the Resilience and Hazards SEPP requirements (Chapter 2), and applicable Desired Outcomes.
1.2 Development avoids the removal of significant trees and vegetation and protects the coastal vegetated ridgelines and estuarine and riparian edges that define Crescent Head Village Centre.	a. The application must demonstrate the achievement of **Part B – B2 - Environment** and the applicable Desired Outcomes.
Character 1.3 Development is consistent with the Crescent Head Master Plan and preserves and promotes the coastal character and beachside built form and scale of Crescent Head Village.	a. Development provides the Features that Contribute and avoids the Features That Detract as outlined in **Table C.2 – Character Elements of Crescent Head Village Centre** in section C1.2.1.
2. Visual Impact	
Streetscape and Public Domain	
Streetscape 2.1 Streetscape and public domain improvements are provided to be consistent with the intent of the Crescent Head Master Plan. 2.2 Front setbacks, fenceless frontages and grassed verges are preserved and new development is consistent with this character.	a. The application must demonstrate the achievement of this Desired Outcome. b. Front setbacks and grassed verges are preserved where existing. New street frontages are developed to be consistent with this predominant village streetscape.
Public Open Space 2.3 Public open spaces and key streets of the Crescent Head Village Centre receive solar access mid-winter and shade mid-summer.	a. The application must demonstrate the achievement of this Desired Outcome.
Public and Road Pavements 2.4 Paving areas in the Crescent Head Village, have a particular emphasis on: i. New and extended road, pavement, kerb/gutter treatments being generally consistent with existing adjoining; and ii. New or extended pedestrianised areas providing a colour contrast to road pavement and utilise similar paving treatments to those existing.	a. The application must demonstrate the achievement of this Desired Outcome.
Pedestrian and Cycle Paving 2.5 Pedestrian areas and pedestrian/ cycle path paving is generally consistent with the existing pedestrian paving in Crescent Head Village, in terms of: i. Width	a. Pedestrian and cycleway routes proposed within the Kempsey Shire Bike Plan (and PAMP) are developed in conjunction with development where adjacent to or crossing the subject development site.

Desired outcomes	Development requirements
ii. Connections iii. Safety features iv. Materials v. Street furniture	
Street furniture 2.6 Any bollards provided are consistent with the established design and materials of bollards used in the street reserves and public open spaces. 2.7 A consistent design and colour for street furniture elements (seats, benches, tables and litter bins etc) is provided in the street reserve and public areas of Crescent Head Village.	a. The application must demonstrate the achievement of this Desired Outcome.
Lighting 2.8 Street lighting and lighting within public open spaces contributes to a unified approach for lighting structures within Crescent Head Village.	a. A consistent design for street lamps and/or lights is used. b. Development complies with AS 4282-2019 Control of the obtrusive effects of outdoor lighting.
Landscape	
Trees and Street Trees 2.9 Trees are provided along street reserves and public open space areas.	a. The application must demonstrate the achievement of this Desired Outcome.
2.10 Trees and shrubs used along streets and within public open space areas reinforce a cohesive landscape theme for Crescent Head.	a. Only one or two tree species are used within each precinct to maintain the softscape character, establish visual consistency and for ease of maintenance.
2.11 Developers provide street trees directly in front of their properties.	a. The application must demonstrate the achievement of this Desired Outcome
Character Analysis 2.12 A character analysis plan demonstrates that the design of the development has considered and responded to the contributing landscape, existing streetscape and building elements that contribute to the character of the area.	a. A Character Analysis is required for development of more than one (1) lot or where the development has a GFA greater than 1500m^2 and is located within Crescent Head Village Centre area.
3. New Development	
Built Form	
Setbacks and Building Heights 3.1. Buildings have appropriate setbacks, height, size and scale which contributes to the Coastal character with style and strong pedestrian focus.	a. Development has a floor space ratio as per the requirements of KLEP. b. Development has a maximum building height as per the requirements of KLEP. c. Development has a maximum two storey façade along the front property boundary.
Streetscape Continuity 3.2. Where practicable and relevant, development	a. The application must demonstrate the achievement of this Desired Outcome

Desired outcomes	Development requirements
contributes to the continuity of the streetscape by continuing the following: i. Existing built forms (commercial and village centre); ii. Open and "active frontage" shopfront; iii. Existing built forms (residential); iv. Skylines, façade height and building height; v. Any established pattern of side boundary setbacks; vi. Colour and materials.	
Minimum Lot Size 3.3. Development maintains the density of Crescent Head Village Centre, to preserve the current coastal character and its built environment.	a. Any proposal to develop lot sizes less than 500m2 must be accompanied by a design report prepared by suitably qualified professional/s, demonstrating that the proposal is consistent with the Crescent Head Master Plan and the intentions of the particular precinct.
Topography 3.4. The topography is utilised to work with built form e.g. tucking buildings into slopes to reduce height and scale.	a. The application must demonstrate the achievement of this Desired Outcome
New Development Types	
Shop Top Housing and Tourist & Visitor Accommodation 3.5. Shop Top Housing is designed to suit the coastal climate and responds to the coastal character of the built form.	*a.* The application must comply with the relevant requirements in **Part D** for Shop Top Housing and Tourist and Visitor Accommodation.
3.6. Tourist and Visitor Accommodation within mixed use developments is designed to be distinct from, and complement commercial areas, aspects and activities of the overall development.	a. The application must comply with the relevant requirements in **Part D** for Shop Top Housing and Tourist and Visitor Accommodation.
Minimising Land Use Conflicts 3.7. Potential conflicts between mixed commercial and residential uses, and between commercial and residential neighbours are minimised, whilst recognizing that the area (Precincts 2-6) is primarily intended as a commercial and tourist centre.	a. The application must demonstrate the achievement of this Desired Outcome
Access and traffic	
Shared Pavements (Pedestrian & Cycle Links) 3.8. Shared pavements for active mobility are implemented and connected for healthy mobility, access and walkability throughout the Crescent Head Village Centre and its surrounding mixed residential and tourism areas.	a. Development provides pedestrian and cycle linkages which demonstrate pedestrian/ cycle amenity, safety, ease of use, access options throughout the village facilities and businesses as well as practicality and construction costs. Pedestrian and cycle links may be separated (on or off road). b. Pedestrian/cycle pathways must be provided and designed in accordance with the Kempsey Shire

Desired outcomes	Development requirements
	Bike Plan and relevant requirements of KSC Infrastructure Delivery Guide and AUS-SPECs.
3.9. Development provides safe and convenient supporting facilities of pedestrian and cycle links such as bike racks and/or storage.	a. The application must demonstrate the achievement of this Desired Outcome.
Pedestrian Permeability 3.10. Rankine Street and Pacific Street facilitates pedestrian movements and increases pedestrian permeability from the commercial centre to: i. The beach/ waterfront; ii. Reserve Road; iii. Willow Street; and iv. Lake Street.	a. The application must demonstrate the achievement of this Desired Outcome.

C1.3 Dulconghi Heights

Application

1. This section applies to all development on land situated at Neville Morton Drive, Crescent Head, located within Zone R5 - Large Lot Residential, referred to as the Dulconghi Heights Precinct, as shown in **Figure C.10** below.
2. Proposed Development will also require addressing all relevant provisions in **Part B - Shire Wide Requirements, Part D - Development Requirements** and **Part E - Appendices**, where applicable.
3. The provisions of this Part however override the provisions of any other Part of this DCP, to the extent of any inconsistency.

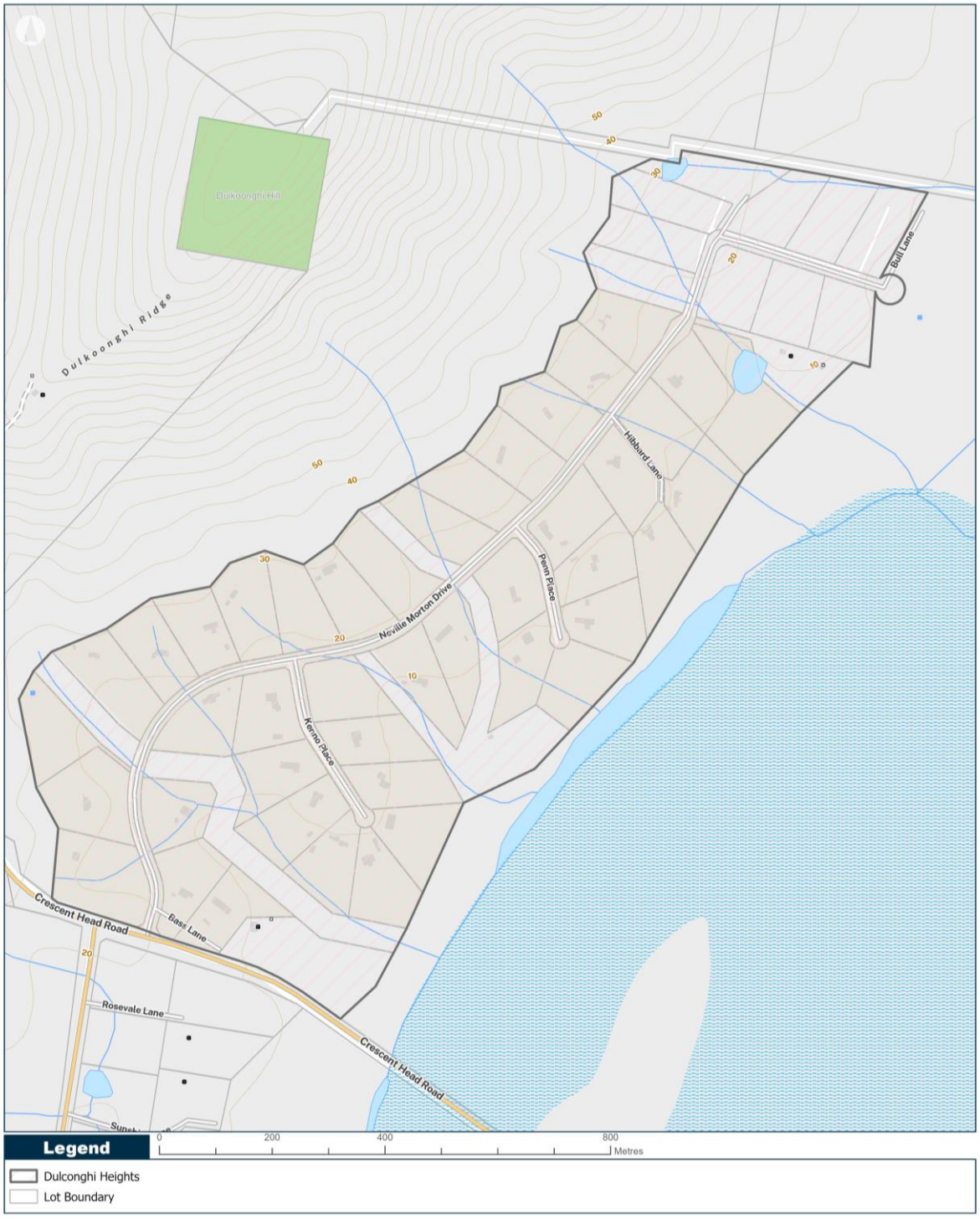


Figure C.10 – Land subject to the provisions of **Part C1.4**

Scope

This part outlines the precinct-specific planning controls applicable to development and use of land in the Dulconghi Heights Precinct.

C1.3.1 Analysis

Background

Dulconghi Heights development is located approximate 3km west of Crescent Head along the lower slope of a north east oriented ridgeline. The topography of the Dulconghi Heights estate slopes gently down between vegetated upper slopes and wetland and flood plain along its eastern edge. The character of the development is derived from the size of lots, dispersed dwellings and preserved vegetation, with a backdrop of native forest covering the low hills behind it.

Objectives

1. To provide guidelines for development to address the specific issues applicable to development on land at Dulconghi Heights within the scope of this section.
2. To provide development requirements to ensure that there are no significant environmental impacts on the C2 "Environmental Conservation" lands; (refer also SEPP (Resilience and Hazards) 2021 wetlands to the east of Dulconghi Heights, hillside forest on the west and significant trees and vegetation within the site and fauna requiring protection within the vicinity of the site.
3. To ensure that buildings are designed so that they do not have an adverse impact on the character of the area.
4. To ensure that satisfactory arrangements are made regarding water supply to development on the subject land.
5. To provide for the preservation of important vegetation and habitats within Dulconghi Heights.
6. To provide appropriate development outcomes which appropriately address hazards such as bushfire and flooding.

C1.3.2 Desired Outcomes/Development Requirements

The following desired outcomes and development control requirements in **Table C.4** prescribe how the above objectives can be met.

Table C.4 – Desired Outcomes and Development Control Requirements – Dulconghi Heights

Desired Outcomes	Development Requirements
1. Development Requirements	
Flora and Fauna Habitat	
1.1 All significant trees on the site are retained and protected, where possible and practicable. 1.2 Vegetation within drainage reserves is preserved and maintained. 1.3 Development protects and retains physical vegetated links connecting the C2 Zone lands to the east of the subject land to the land zoned C2 and C3 to the west of the subject land. 1.4 Development consent or a permit to remove vegetation is obtained in accordance with the relevant requirements of **Part B - B2 - Environment**. 1.5 The removal of trees and vegetation does not reduce the supply of habitat for identified fauna	a. No building can be placed within ten (10) metres of any significant vegetation as shown in **Figure C.11.** b. No trees indicated on **Figure C.11** can be removed without development consent having been obtained from Kempsey Shire Council. c. Council must not consent to clearing for purposes other than the erection of a building unless the applicant is able to demonstrate that exceptional circumstances exist. Such circumstances must not include the use of the land for agriculture. d. Council must not consent to clearing (whether or not relating to any tree identified by **Figure C.11**) for the purposes of erecting a building unless it

Desired Outcomes	Development Requirements
on the site.	can be demonstrated the building cannot be erected without the necessity for such removal and that no other alternative sites exist. e. Council must not consent to the removal of any trees identified on **Figure C.11**, unless it is satisfied that satisfactory measures have been employed to ameliorate such tree removal, which must include the establishment of replacement trees. In this regard, a minimum of three (3) trees of the species of tree to be removed are to be planted. As a condition of any development consent, details of the replacement trees will be required, including a plan indicating the location of replacement trees, means of establishing the trees and measures for protecting the trees during establishment. f. Tree or vegetation removal must not remove fauna habitat, in accordance with the following: i. Preferred Koala Food Tree species are to be retained; ii. Trees and ground logs with identified hollows are to be retained, in order to assist the Brushtail Phascogale, Squirrel Glider, bat species and Glossy Black Cockatoo; iii. Allocasuarina species are to be maintained, and regenerated where possible, in order to assist the Glossy Black Cockatoo; and iv. Acacia species are to be retained, and planted where possible, to assist the Squirrel Glider.
Bushfire Hazard Reduction	
1.6 Each dwelling house is located within an allotment so as to allow bushfire hazard reduction works to be contained within the allotment boundaries. 1.7 Development complies with the relevant current requirements of Planning for Bushfire Protection (NSW RFS).	a. Dwellings are to be located in existing clearings or in areas of low habitat and/or scenic value. b. Development complies with the requirements of **Part B - B1 - Natural Hazards**.
Building Criteria	
1.8 Building materials and colours help to blend buildings into their natural environment. 1.9 The character, location, siting, bulk, scale, shape, size, height, design and external appearance of any building or structure that will result from carrying out the development is such as to minimise the visual impact of the development and blend into the natural setting, as much as practicable.	a. The application must demonstrate the achievement of this Desired Outcome.

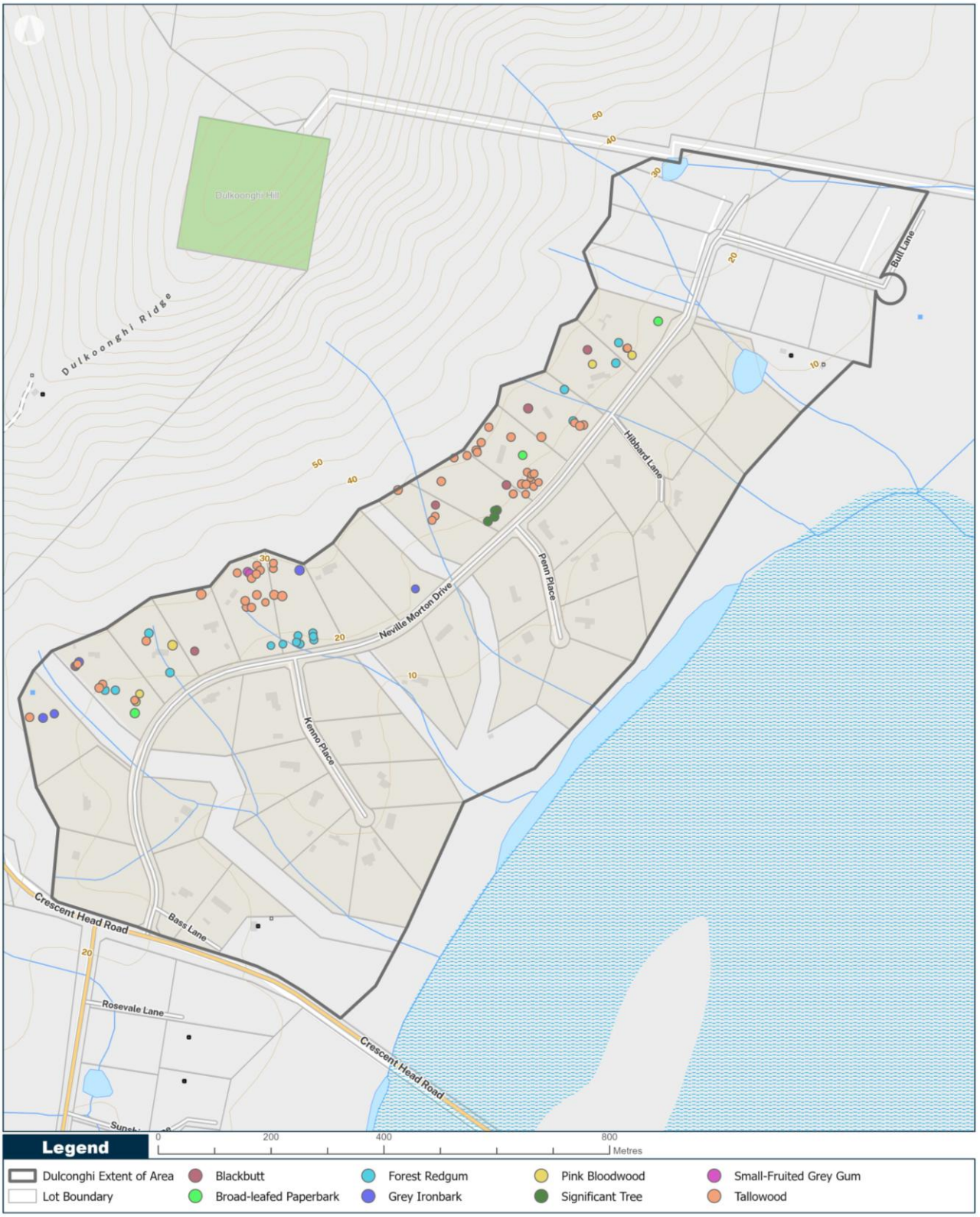


Figure C.11 – Designated trees for preservation (Source information from original planning agreement.)

C1.4 Stuarts Point

Application

1. This chapter applies to all development on land within the Stuarts Point Village Urban Growth Boundary (NSW government), as shown in **Figure C.12.**
2. This part of the DCP for Stuarts Point covers both the existing village extent, the Industrial zoned land (E4 General Industry) and the "Urban Expansion Investigation Area" (UEIA) as shown in **Figures C.13** below and **C14.** This area is also identified by different land zones and character precincts, which are broadly characterised as follows:
   - Existing Village Precinct
   - Neighbourhood Commercial Precincts
   - Foreshore Precinct, and
   - Urban Expansion Investigation Area (UEIA)

   The character precincts are outlined in **Figure C.13** on the following page. The Stuarts Point Structure Plan which provides the overall framework to guide development both with the existing village area, and potential development within the UEIA is available from Council's website.
3. Proposed specific development will also require addressing all relevant provisions in **Part B - Shire Wide Requirements, Part D - Development Requirements** and **Part E - Appendices**, where applicable.
4. The provisions of this Part override the provisions of any other Part of this DCP, to the extent of any inconsistency.

Scope

This part outlines the overall and precinct-specific planning controls applicable to development and use of land in Stuarts Point. Development specific planning controls (for specific development types or activities, such as residential, commercial, industrial etc) may be referenced in **Part D - Development Requirements**.

C1.4.1 Analysis

Background

Stuarts Point is a quiet coastal village situated on low-lying land on the banks of the pristine northern arm of the Macleay River. While once the Macleay River entered the ocean nearby and some historic maritime activities occurred here, the relocation of the river mouth in the late Nineteenth Century reduced the significance of the settlement. Now sheltered from the ocean beach by a narrow sandy spit and estuary, the current village is surrounded by lowland forest and coastal scrub vegetation of the estuary and foreshore of low-lying lands that support nature conservation, nature-based recreation and agricultural uses.

Located on Dunghutti Country approximately 32km northeast of Kempsey, Stuarts Point is relatively isolated from Kempsey town and its services. While there is potential for some future residential growth this will be subject to local environmental, natural hazard and utility infrastructure issues being addressed to the requirements of both local and state government. Any future proposed greenfield development within the Stuarts Point Urban Growth Boundary, noted as the UEIA area (refer NSW North Coast Regional Plan and the Stuarts Point Structure Plan), will be subject to capacity assessment, provision of infrastructure, utility services and appropriate staging.

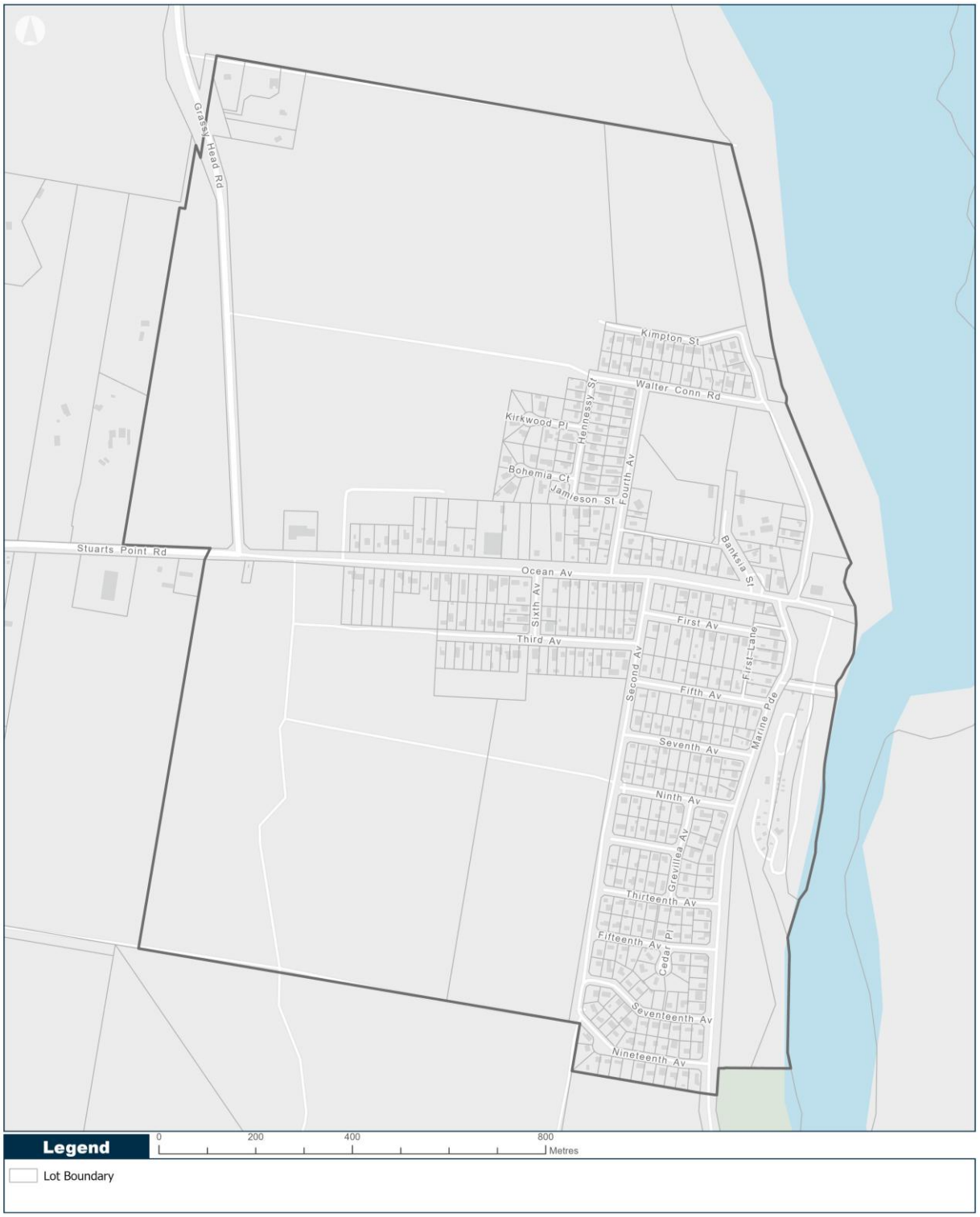


Figure C.12 – Stuarts Point Locality

Description

Stuarts Point is a compact low rise coastal village centred on Ocean Avenue on the edge of the Macleay Arm with a laid back informal character. The village is accessed via Stuarts Point Road, which provides access to Kempsey in the west and Grassy Head Road, which provides access to the Stuarts Point Convention Centre, Grassy Head, Scotts Head and the scenic Yarriabini National Park in the north.

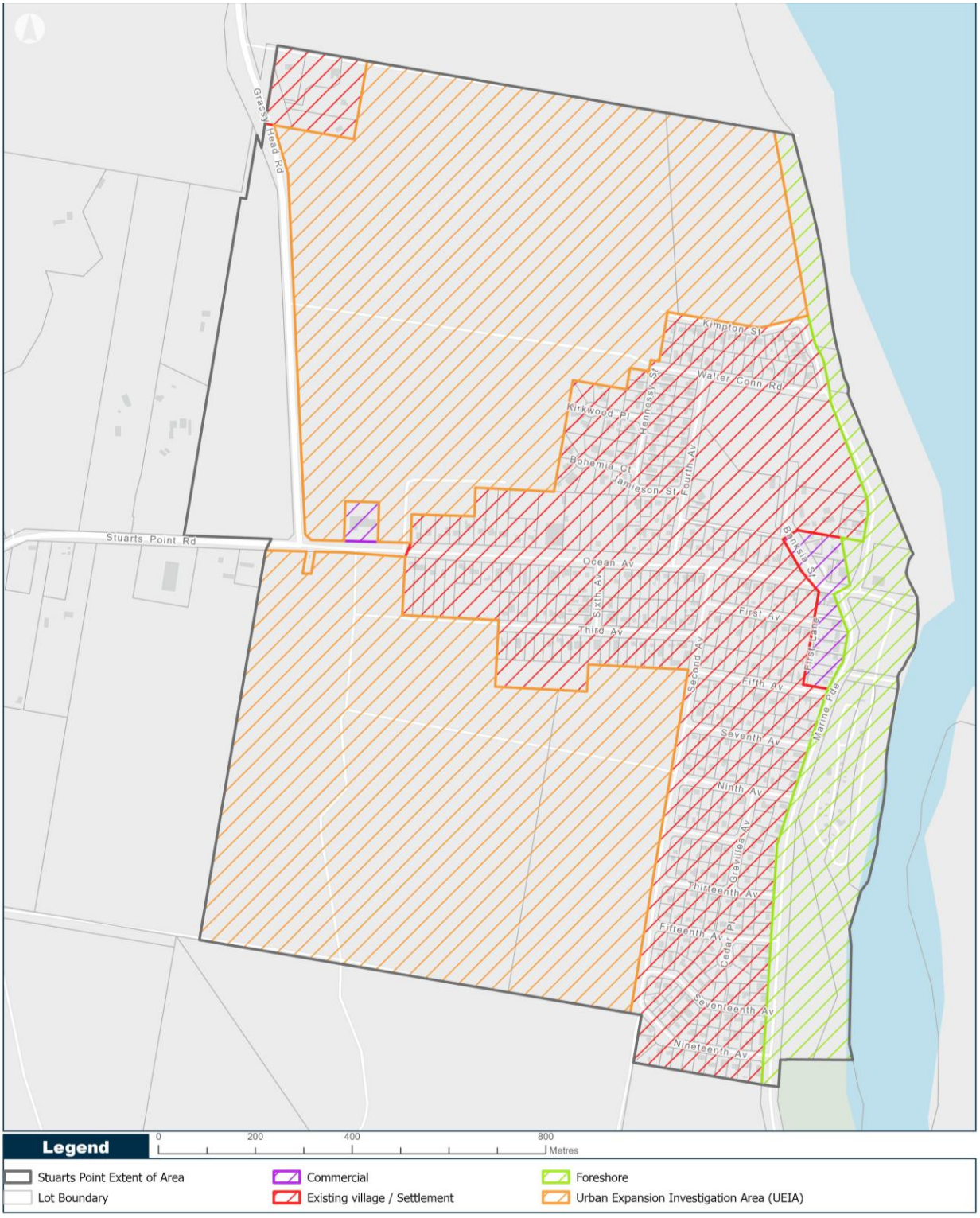


Figure C.13 – Stuarts Point Existing Precincts & Areas

Housing within the village typically comprises one and two-storey coastal shacks, holiday homes and permanent dwellings on lots between 600m^2 to 1200m^2, though some large lots around 2000m^2 also occur along Ocean Avenue. Throughout the village, some vacant and undeveloped lots also exist, which reflects its quieter character compared to other coastal settlements in Kempsey Shire. The age of housing stock varies, with a distinct juxtaposition of old and new dwellings constructed of weatherboard, fibro, brick and, more recently, cement render. Both older and newer two-storey dwellings tend to have balconies overlooking the street.

Residential interfaces with the street are characterised by wide grassy verges and generally fences are absent, however, where fences are present, they are typically low and afford a high level of visual permeability to the street.

The village centre (neighbourhood commercial precinct) is focused around the intersection of Ocean Avenue, Marine Parade and Banksia Street, nearby the Stuarts Point Foreshore Reserve and Holiday Park, a visitor attractor. This key precinct is reinforced by commercial development and key community infrastructure library and sports courts. Other commercial and community uses including the Stuarts Point Workers' Recreation and Bowls Club also occur throughout the village, set amongst residential development which is located to the north and south of Ocean Avenue. Another neighbourhood commercial precinct is the

Large areas of undeveloped private land surrounding the village and an area of undeveloped industrial land at the village entrance currently contribute to the forested coastal landscape setting and visual amenity of Stuarts Point.

Locality (Place) issues

The following issues effect the existing Stuarts Point settlement and need addressing within future development:

- Biodiversity values, flora and fauna habitat of the area and surroundings are protected and preserved;
- Natural hazards, such as bushfire, flood risk and inundation, which could impact development and limit further residential development;
- Ground conditions of the low-lying aspect, including a high water table that experiences drainage and groundwater issues and different classes of acid sulfate soils;
- Maintaining the quiet, low-rise coastal character (development height, scale and density) of the settlement and locality which preserves views and visually significant vegetation;
- Limitations to growth in relation to current wastewater treatment (which is being addressed through the medium term development of the Stuarts Point Sewerage Scheme), and utility infrastructure such as for stormwater management and electricity supply;
- The quality of the public realm, pedestrian amenity and street tree provision which would contribute to the sense of place and experience of Stuarts Point;
- The commercial/neighbourhood services of the village that defines and supports it's local identity, and sustains the community and their coastal lifestyle;
- The road network that service local, visitor access and circulation and heavy vehicle traffic servicing agricultural enterprises through the main street of Stuarts Point.

C1.5.2 Character

Stuarts Point is a compact coastal village on the edge of the Macleay Arm. Largely residential the settlement possesses a low rise scale grid pattern of detached dwellings generally below the canopy line of the coastal forest and scrub vegetation surrounding it. Several commercial neighbourhood nodes exist that provide retail and community services from buildings not dissimilar to the nearby housing in scale and form. The foreshore precinct contains natural estuarine embankment along which holiday park development exists. The overall feature of Stuarts Point is its laid back well spaced informal character.

The Stuarts Point Structure Plan addresses the need to retain the village character while setting out the parameters and process to guide appropriately located and scaled development. This structure plan will facilitate orderly development both within the RU5 Rural Village and potentially zoned areas (UEIA) around the village if/as environmental issues are addressed and servicing and infrastructure becomes available.

Objectives

1. To enhance development within the village of Stuarts Point while preserving its character,
2. To promote urban consolidation through the encouragement of high quality, residential development, including the potential for some medium density development.

3. To identify, enhance and protect biodiversity values of the existing area and its native vegetation,
4. To provide the planning framework including the utilization of a Structure Plan (which must be in place) for guiding appropriate development of vacant RU5 and identifying the need for industrial E4 zoned (UEIA) lands when and if such proceeds,
5. To facilitate appropriate agricultural and horticultural industrial development that supports local enterprise and employment
6. To preserve and enhance the key elements of Stuarts Point's foreshore and estuarine waterfront for environmental and recreational purposes.

C1.4.3 Desired Outcomes and Development Requirements

The following desired outcomes and development control requirements in **Table C.5** prescribe how the above objectives can be met.

Table C.5 – Stuarts Point – desired outcomes and development control requirements

Desired Outcome	Development Control Requirements
Structure Plan	
The Stuarts Point Structure Plan addresses the conditions, needs and development potential of the settlement in two respects: 1. Broadly within the existing footprint of the settlement (identified precincts refer Fig C.13), providing information to guide "gentle growth" through infill type development that retains the unique coastal village character (refer also 1, Preservation and 2 Visual Impact sections), and 2. Within the urban growth boundary (broadly the UEIA areas refer Fig C.14) to guide suitable development where the constraints of the location, site, services and natural qualities, conditions and hazards can be acceptably addressed (refer also 3. New Development section).	a. The Structure Plan addresses the following requirements: i. Planning controls to protect Stuart Point's landscape and environmental character values; ii. Ensure future primarily residential development potential (including height and density) retains the coastal village character; iii. Facilitate orderly development by consolidating and enhancing the village centre (neighbourhood commercial precincts) amenities and services for the current and potential expansion of residential development; iv. Sets out the broad requirements for potential expansion of residential areas to meet environmental, servicing and infrastructure and staging issues; v. Identify and realise opportunities to improve the movement (roads, service vehicle, emergency access, cycle and pedestrian) networks and accommodate the movement needs of any future expanded residential areas; vi. Improving the quality of the public realm, pedestrian amenity and streetscape provision which contributes to the sense of place and experience of Stuarts Point;
1. Preservation	
1.1 The natural, coastal landscape and built character of Stuarts Point should be maintained.	a. The application must demonstrate the achievement of this Desired Outcome.
Foreshore Precinct	
1.2 The Foreshore Precinct is preserved in its natural	a. The Foreshore Precinct is to remain largely in its

Desired Outcome	Development Control Requirements
state, as far as is practicable.	existing state. b. Any buildings erected within the existing caravan park are to be designed so as to minimise any visual impact and are to make provision for suitable landscaping, which should minimise any impacts on topography, soil stability and water quality. c. Any new landscape within the Foreshore Precinct is to incorporate locally occurring native species. d. Buildings, other than those required for the caravan park, are to be restricted to picnic shelters of open timber pole construction.
Existing Village Precinct	
1.3 Infill residential development is consistent with the character of the Neighbourhood.	a. Development is in accordance with KLEP for height of buildings. b. The design of buildings within the Neighbourhood Precinct is to be compatible with the existing built character of Stuarts Point. c. Sufficient details are to be submitted with Development Applications to enable Council to fully evaluate the proposed appearance of buildings.
Neighbourhood Commercial Precincts	
1.4 Commercial development is consolidated into/ onto one of the Neighbourhood Commercial Precincts.	a. Development for the purpose of commercial premises, are to be generally confined to within the Neighbourhood Commercial Precincts. b. The design of buildings within the Neighbourhood Commercial Precinct is to be compatible with the existing architectural character of Stuarts Point. c. Sufficient details are to be submitted with Development Applications to enable Council to fully evaluate the proposed appearance of buildings. d. Vehicle parking and service vehicle delivery areas are to be provided on site, in accordance with **Part E – Appendix 4,** and KSC Infrastructure Delivery Guide.
1.5 Commercial development contributes to the establishment of a future "integrated shopping complex".	a. A supermarket and specialty shops is provided as an "integrated shopping complex" within a Neighbourhood Commercial Precinct. b. Parking is to be provided on site as outlined in **Part E - Appendix 4**. c. A plan of survey prepared and endorsed by a registered surveyor is to be submitted with Development Applications identifying the location of all trees on site. d. Building design is to be compatible with the existing architectural character of Stuarts Point.

Desired Outcome	Development Control Requirements
	e. Pole signs are not to exceed 6.2 metres in height and must not contain advertising signs other than business identification signs. f. Applications are to be accompanied by a traffic study prepared by a qualified traffic engineer, indicating that proposals will not have any long term or short term adverse impacts on traffic movements in the area. g. The disposal of effluent will be accommodated and connected to an operational sewage system (connection to Council's sewerage system when available), and have no adverse impacts on adjoining property).
1.6 Single neighbourhood shops are accommodated throughout the village.	a. Council will consider proposals for shops outside of the Neighbourhood Commercial Precinct (not being an integrated shopping complex), provided the following criteria have been met: i. The store is to comply with the definition of "neighbourhood shops" under the provisions of KLEP. ii. The neighbourhood shop is to comply with the relevant requirements of KLEP. iii. No more than one (1) such store is to be contained within the building. iv. Council is to be satisfied that the proposal will not reduce the viability of the Neighbourhood Commercial Precinct. v. The proposal must not reduce the amenity of any adjoining residence.
Industrial Zoned Area	
1.7 Further investigations are required to establish the need for, and the suitability of the current E4 – General Industrial land to the western side of Grassy Head Road. 1.8 Industrial development does not detract from the amenity of existing and future residents. 1.9 Potential traffic conflict is reduced. 1.10 Development has minimal impact on the visual and environmental amenity of the locality	a. Development for the purpose of industrial activity. **Note** - Industrial Development is prohibited in Zone RU5 – Village. b. A strip not less than 25 metres wide running parallel to Grassy Head Road is to be set aside as a scenic/visual buffer. i. Lands required for the scenic buffer between Grassy Head Road and the industrial area must be retained by means of an appropriate instrument within the ownership of the land zoned E4 General Industrial. The instrument will be required for any development of the E4 zoned parcel and must specify that the care and maintenance of the area is to be the responsibility of the owners and that no trees are to be removed. c. Development of all lands zoned E4 General Industrial fronting Grassy Head Road is to provide for only two (2) points of access. Any proposed development must demonstrate how access to

Desired Outcome	Development Control Requirements
	future development via this single means of access can be achieved. d. Vehicle parking and service vehicle delivery areas are to be provided on site, in accordance with **Part E – Appendix 4** and KSC Infrastructure Delivery Guide. e. Landscaping is to be provided within the area fronting Grassy Head Road using native species which complement the required scenic/visual buffer.
2. Visual Impact	
Streetscape and Public Domain	
Streetscapes 2.1 Streetscape and public domain improvements are provided to be consistent with the intent of the Stuarts Point Structure Plan.	a. The application must demonstrate the achievement of this Desired Outcome
Solar Access 2.2 Public open spaces and key streets of the Stuarts Points receive solar access mid-winter and shade mid-summer.	a. The application must demonstrate the achievement of this Desired Outcome
Vehicle Paving Areas 2.3 Vehicle paving areas in Stuarts Point, have a particular emphasis on: i. New and extended treatment to be generally consistent with existing treatments; and, ii. New or extended pedestrian dominant areas utilise similar paving treatments to similar existing pedestrian dominant areas and must provide a colour contrast to road pavement.	a. The application must demonstrate the achievement of this Desired Outcome
Pedestrian and Cycle Paving 2.4 Pedestrian areas and pedestrian/cycle path paving is generally consistent with the existing pedestrian paving in Stuarts Point village, in terms of: i. Width ii. Connections iii. Safety features iv. Materials.	a. The application must demonstrate the achievement of this Desired Outcome
Street furniture 2.5 Any bollards provided are consistent with the established theme of bollards used in the street reserves and public open spaces. 2.6 A consistent design and colour for street furniture; seats, benches table and litter bins etc is provided in the street reserve and public areas	a. The application must demonstrate the achievement of this Desired Outcome

Desired Outcome	Development Control Requirements
of Stuarts Point Village.	
Lighting 2.7 Street lighting and lighting within public open spaces contributes to a unified approach for lighting structures within Stuarts Point Village.	a. A consistent design for street lamps and bollard type lights is used. b. Development complies with AS 4282-2019 Control of the obtrusive effects of outdoor lighting.
Landscape	
Trees – Public and Private 2.8 Trees are provided along street reserves and public open space areas.	a. The application must demonstrate the achievement of this Desired Outcome
2.9 Trees used along streets and within public open space areas are suitable species for this coastal location and provide a cohesive public landscape for Stuarts Point.	a. Generally, only one or two species are used within each precinct in order to establish consistency for maintenance.
2.10 Developers provide street trees directly in front of their properties.	a. The application must demonstrate the achievement of this Desired Outcome
3. New Development	
Residential Development	
Appropriate Land Uses 3.1 Residential and Tourist and Visitor Accommodation is the dominant form of development within the village. 3.2 Development complies with the relevant requirements of **Part D**, as applicable to the specific use(s) being developed.	a. Development protects the future amenity of residents, having regard to the proximity of existing and future commercial and industrial development, as well as the proposed sewerage treatment plant.
Visual Impacts 3.3 Development does not have an adverse impact on visually sensitive areas.	a. New development is compatible in terms of height, scale and form with the adjoining buildings and buildings within the locality. b. Buildings fronting Marine Parade are to: i. minimise their visual impact on the adjoining reserve and the Macleay River; ii. use materials which are of a low reflective colour and which complement the natural colours found in the adjoining reserve; and iii. be screened from Marine Parade by densely planted landscape consisting of locally occurring native species.
Natural Hazards 3.4 Development appropriately addresses the constraints of flood prone land and high water table and does not have a significant impact on ground conditions or the natural conveyance of floodwaters.	a. Development is undertaken in accordance with the requirements of Council Flood Policy, State policies, guidelines, adopted flood studies and risk management plans addressing development in flood prone areas. b. Development of critical facilities (e.g. aged care, kindergartens etc) located in the low flood risk (above 1% AEP Flood) parts of the Macleay River Floodplain ensure the safety of people and

Desired Outcome	Development Control Requirements
	ensure an Evacuation Plan is in place, appropriate emergency response provisions are provided and a Flood Response Assessment Plan is prepared. c. Development for any critical emergency response and recovery facilities located in a low risk flood prone area (above the 1% AEP Flood) on the Macleay River Floodplain ensure continued operation during and after flood events up to and including the PMF event scenario.
Subdivision 3.5 The efficient provision of public services is achieved by: i. Preventing premature and sporadic subdivisions; and ii. Ensuring new development is consolidated in existing urban areas.	a. Residential subdivision must only occur on land located immediately adjacent to existing or approved residential subdivisions. b. Existing land holdings must not be further subdivided where fragmentation is likely to prevent the orderly and economic future subdivision of land for residential purposes. c. Development for residential purposes will not be approved unless adequate regard has been paid to the likely impact on flora and fauna. d. Council will not approve any plan of subdivision of: i. Lot 1422, DP 533781, Ocean Avenue; ii. Lot 143, DP 653554, Second Avenue; iii. Lot 37, DP 604990, Kimpton Street; or iv. Lot 103, DP 857881, Grassy Head Rd. as indicated in **Figure C.14**, unless: 1. a comprehensive groundwater and management drainage strategy has been formulated for all affected lands including the relationship with the proposed subdivision and all proposed drainage works; 2. Council is satisfied that each proposed lot is connected to a sewerage system or satisfactory arrangements have been made for the future provision of a sewerage service to each lot; 3. a detailed study of native flora and fauna has been carried out by a suitably qualified ecological consultant identifying areas of native habitat to be retained; 4. a statement is prepared outlining the likely impact on any flora and fauna identified as endangered or threatened under the: 5. *National Parks and Wildlife Act 1974*; 6. *Biodiversity Conservation Act 2016*; and 7. *Fisheries Management Act 1994*; a. and the statement outlines appropriate measures to minimise any such impacts. 8. a traffic study by a suitably qualified

Desired Outcome	Development Control Requirements
	Traffic Engineer has been prepared, which identifies a road hierarchy strategy and the relationship of the proposed subdivision to that strategy, including provision for a proposed Tourist Drive linking to the south.
Open Space 3.6 Local park/open space/reserve is provided in accordance with the relevant provisions of **Part D** – Urban Residential Subdivision, in addition to the relevant requirements in this section.	a. In addition to the matters identified in **Part D – D1 - Land Subdivision**, any Open Space Management Strategy submitted with a residential subdivision application is to demonstrate compliance with the following requirements: i. Drainage areas form part of multi-purpose spaces utilised for drainage and open space and other green corridor functions; ii. Areas required for habitat protection, excluding land required for drainage purposes, may be offset against land required to be dedicated for open space, provided adequate useable open space has been provided in the vicinity; iii. Areas required to provide for bushfire trails and radiation buffers must not be offset against land required to be dedicated for open space; and iv. Allow for wider road corridors which incorporates open spaces, drainage, cycleways and vegetation corridors.

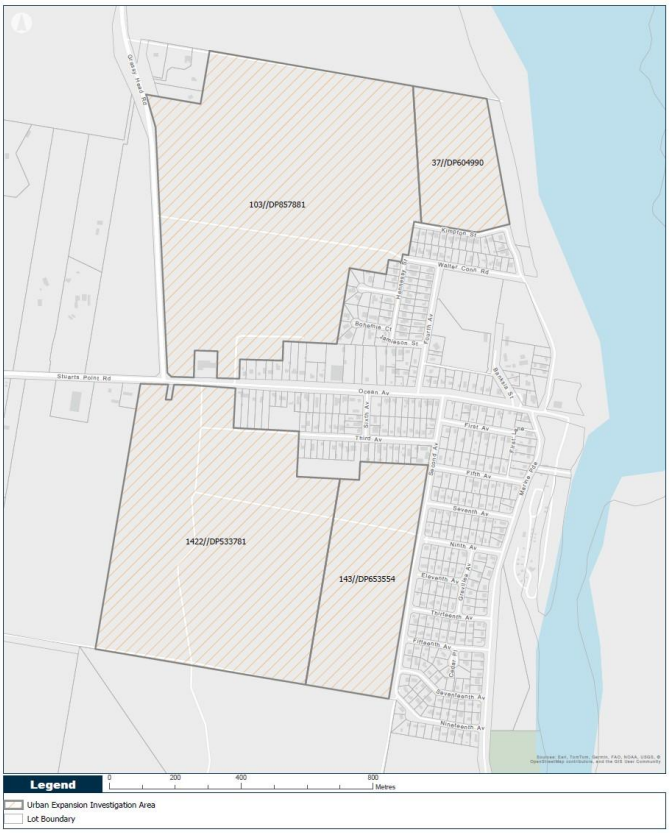


Figure C.14 – UEIA Lot Boundaries

C1.5 Hat Head

Application

1. This section applies to all development in the Hat Head Precinct as shown in the area bounded by the bold line in **Figure C.15** below.

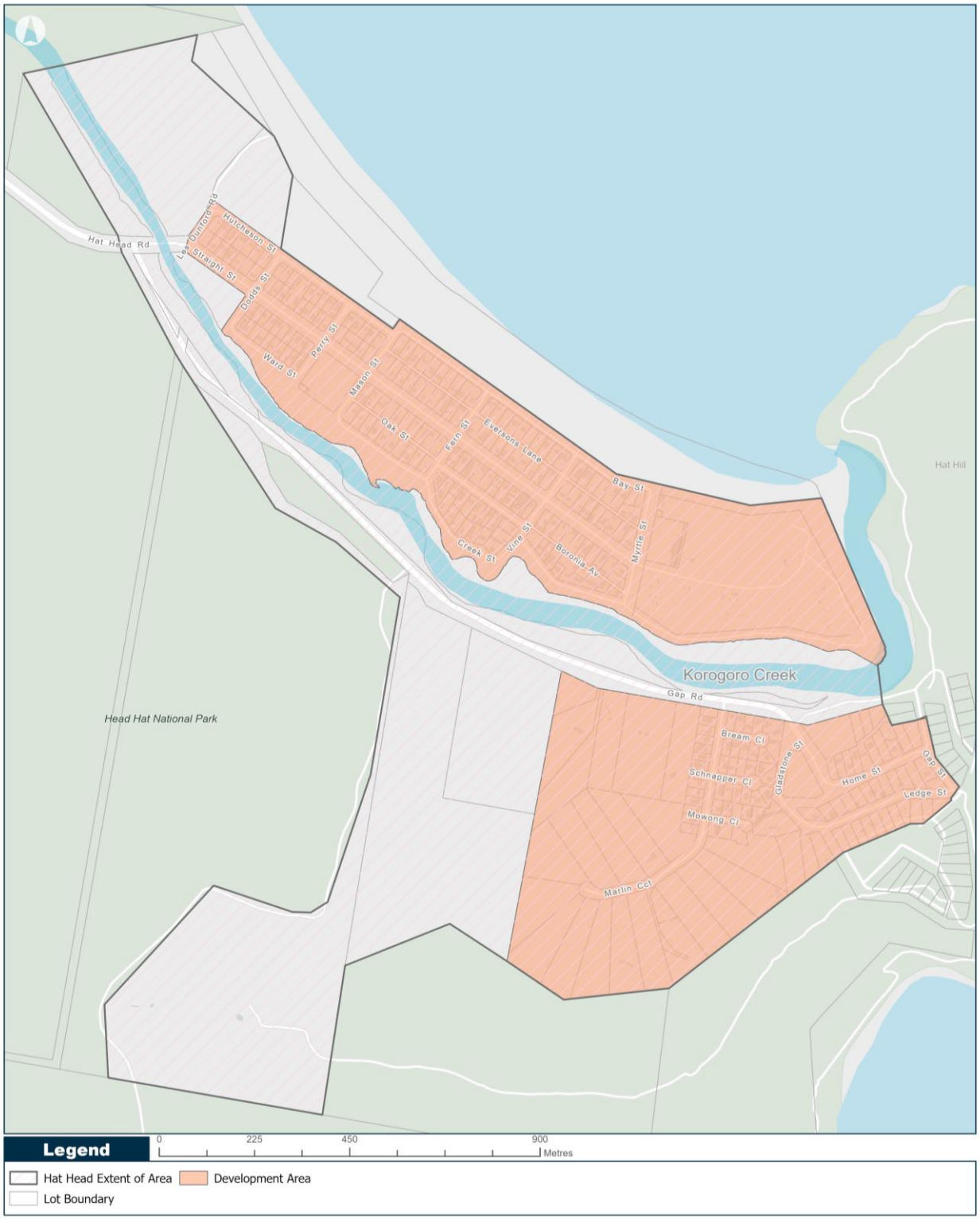


Figure C.15 – Hat Head Area

2. It applies to all proposals which are likely to generate an increased demand for sewerage and water services, including:
    a. Dual occupancy;
    b. Multi dwelling housing;
    c. Dwellings houses and additions;
    d. Hotel or motel accommodation;
    e. Shops;
    f. Commercial premises;
    g. Subdivision; and
    h. Tourist and visitor accommodation
3. Proposed Development will also require addressing all relevant provisions in **Part B - Shire Wide Requirements, Part D - Development Requirements** and **Part E - Appendices**, where applicable.
4. The provisions of this Part however override the provisions of any other Part of this DCP, to the extent of any inconsistency.
5. Applicants should discuss proposals with Council at the earliest opportunity to assist in identifying Council's requirements and any site specific issues.

Scope

This part outlines the precinct-specific planning controls applicable to development and use of land in Hat Head.

C1.5.1 Analysis

Background

Hat Head is a coastal hamlet located within a stunning diverse natural landscape. Because of its relatively isolated wetland location and limited access the settlement only started to develop in the early twentieth century and grew slowly as a holiday retreat. The village now experiences large seasonal fluctuations in population related to holiday-makers drawn to the village's natural features including beaches, headlands and the creek.

Surrounded by National Park, Hat Head has limited availability of suitable developable land, and restricted services capacity and infrastructure. Though there is scarcity of coastal land, regional demographic shifts and local demands means there is likely to be continue being development pressure despite the limitations.

Description

The village is nestled below Hat Head headland at the mouth of Korogoro Creek, sheltered from the ocean beach by a narrow bar of sand and surrounded by scenic rolling and forested hills, coastal dunes and wetlands.

Hat Head is a coastal village characterized by low density single and two-storey development. Residential interfaces with the street are characterised by wide grassy verges. Many lots have dual access, provided via both formed roads and unformed lanes. Fencing is often non-existent, however, where present, the materiality and heights vary and are generally in keeping with the dwelling character. This historic form of housing and lot presentation defines the local character of the area and should be preserved.

The majority of the development is centred on Straight Street, which provides access to the Hat Head Holiday Park, Hat Head Surf Life Saving Club and Hat Head Bowling Club at the eastern most end of the village.

Some additional residential and rural properties are located to the south of Korogoro Creek, nestled into the foothills of Connors Hill and surrounded by visually significant coastal vegetation that contributes to the village's natural landscape setting and provides many opportunities for nature-based recreation.

Hat Head does not contain a distinct village core, and commercial properties are dispersed throughout the northern part of the village, occurring primarily along the southern side of Straight Street. The limited nature of commercial development within the village contributes to Hat Head's laid back and quiet beachside residential community and 'coastal village' character.



Figure C.16 – Hat Head Topography

Locality (Place) issues

Hat Head is a low-rise coastal village with limited further residential or commercial development opportunities. The water and sewer system was primarily designed to cater for the needs of the existing village and the large seasonal fluctuations in the population. The Hat Head water and sewerage infrastructure currently services around 300 residential lots and 80 hectares of residential area with a few commercial buildings and a caravan park. There is no allowance for any increase in the density of development.

There is a need to ensure that if any development is feasible, it proceeds in an orderly manner, within the design capacity of the water and sewerage scheme and without any diminution of the characteristics which make the village special. Any further development of Hat Head must protect the existing street trees, surrounding scenic landscape and supports low impact nature-based tourism and recreation activities.

- Natural hazards, flooding, coastal inundation and bushfire

- Sedimentation in waterways and water quality
- Vegetation clearance and tree loss
- Limited capacity for development including infill development.

Objectives

1. To identify and preserve the important natural and man-made features which comprise the character of the Hat Head village.
2. Ensure that development is in keeping with the existing character of the Hat Head village.
3. Development does not exceed the capacity of the infrastructure and topographical constraints of the Hat Head village.
4. Achieve innovative building design and site usage in keeping with the existing character of the Hat Head village.
5. Protect Korogoro Creek from any adverse effects due to stormwater runoff.
6. Minimise the amount of clearing required for development.
7. Protect and preserve the native vegetation and landform of the Connors Hill, ridgeline and area.

C1.5.2 Desired Outcomes/Development Requirements

The following desired outcomes and development control requirements in **Table C.6** prescribe how the above objectives can be met.

Table C.6 – Desired Outcomes and Development Control Requirements – Hat Head

Desired outcomes	Development requirements
1. Preservation	
Character	
1.1 The beachside community character of Hat Head should be maintained.	a. The application must demonstrate the achievement of this Desired Outcome. b. No further expansion of the existing RU5 – Village zone extent will be permitted.
Environmental and Ecological Impacts	
1.2 The development does not create risk of adverse environmental health or ecological impacts.	a. The application must demonstrate the achievement of this Desired Outcome
Natural Hazards 1.3 Any future development of the area should give adequate consideration to responding to natural hazards.	a. Development complies with the relevant requirements of **Part B - B1 – Natural Hazards**. b. Development demonstrate safe access points and routes; ingress and egress for evacuation and/or emergency services in the event of natural hazard events. c. Development should comply with the requirements of Planning for Bushfire Protection, as applicable.
Residential Densities	
Density and Scale 1.4 The density and scale of development is to be compatible with the low-density residential character of development within the Hat Head village.	a. Development is generally low density and meets the minimum lot size and building heights in KLEP. Development density and landscape requirements outlined in **Table C.7.** *Per additional bedroom

<table>
<tr><th>Desired outcomes</th><th>Development requirements</th></tr>
<tr><td></td><td>
Table C.7: Density & Landscape Requirements
<table>
<tr><th>Dwelling Size</th><th>Site Area (m2)</th><th>Landscaped Area (m2)</th></tr>
<tr><td>1 bedroom</td><td>300</td><td>100</td></tr>
<tr><td>2 bedroom</td><td>400</td><td>150</td></tr>
<tr><td>3 bedroom</td><td>500</td><td>200</td></tr>
<tr><td>4 bedroom +</td><td>100*</td><td>20*</td></tr>
</table>
</td></tr>
<tr><td>Private Open Space
1.5 The provision of open space on property frontages, along the side boundaries and within the rear yard areas is to contribute to the open low-density character of the village of Hat Head.</td><td>a. The application must demonstrate the achievement of this Desired Outcome.</td></tr>
<tr><td colspan="2">Water and Sewer Infrastructure</td></tr>
<tr><td>1.6 Development can be serviced by the current design capacity of the Hat Head village water and sewerage scheme.</td><td>a. Development does not exceed a maximum of 1 dwelling or 1 Equivalent Tenement (ET)* on each existing allotment within the Hat Head water and sewerage scheme area (Figure C.15 –Hat Head Boundary [extent of RU5 zone])
b. Council will permit one additional unhabitable structure (i.e. outbuilding, shed, etc) per lot to contain one separate toilet and shower, where it is satisfied that the structure is ancillary to the core purpose of a dwelling house.

Note - Council staff will undertake an onsite facilities assessment to confirm existing approved facilities for any new Section 68 approvals.

c. Development does not incorporate an on-site disposal of effluent system or propose an increase in capacity of an existing approved on-site disposal system.

*ET is a measure of the demand or loading a development places on infrastructure in terms of water consumption or sewage discharge.</td></tr>
<tr><td colspan="2">2. Visual Impact</td></tr>
<tr><td colspan="2">Streetscape and Public Domain</td></tr>
<tr><td>Solar Access
2.1 Public open spaces and streets receive solar access mid-winter and shade mid-summer.</td><td>a. The application must demonstrate the achievement of this Desired Outcome</td></tr>
<tr><td>Vehicle Paving
2.2 Vehicle paving areas in Hat Head utilise similar treatments to existing pedestrian areas and must not increase stormwater runoff to streets.</td><td>a. The application must demonstrate the achievement of this Desired Outcome</td></tr>
<tr><td>Pedestrian and Cycle Paths
2.3 Pedestrian areas and pedestrian/cycle path paving is generally consistent with the existing pedestrian paving in Hat Head, in terms of:
i. Width</td><td>a. The application must demonstrate the achievement of this Desired Outcome</td></tr>
</table>

Desired outcomes	Development requirements
ii. Connections iii. Safety features iv. Materials.	
Street furniture 2.4 Any bollards provided are consistent with the established theme of bollards used in the street reserves and public open spaces. 2.5 A consistent design and colour for seats, benches, tables and litter bins etc is provided in the street reserve and public areas of Hat Head.	a. The application must demonstrate the achievement of this Desired Outcome
Lighting 2.6 Street lighting and lighting within public open spaces contributes to a unified approach for lighting structures within Hat Head.	a. A consistent design for street lamps and bollard type lights is used. b. Development complies with AS 4282-2019 Control of the obtrusive effects of outdoor lighting.
Visual Amenity and Key Landscape Elements	
Landscape	
Trees 2.7 Trees are provided along street reserves and public open space areas. 2.8 Trees used along streets and within public open space areas reinforce the cohesive coastal landscape (Melaleuca spp) of Hat Head. 2.9 Development provides street trees directly in front of the property(ies) if no mature tree exists.	a. The application must demonstrate the achievement of this Desired Outcome. b. Generally, only one or two species are used within each precinct in order to establish consistency for maintenance.
Landscape Elements – Korogoro Creek 2.10 Development protects the scenic qualities (shared views and existing visual character) and environmental sustainability of Korogoro Creek, including its aquatic ecosystems and riparian and estuarine vegetation.	a. All buildings north of Korogoro Creek are to be sited and designed so that no part of any building (including roof structures) will be visible when viewed from any part of Hat Head Beach. Where necessary, information (e.g site elevation) prepared by a Registered Surveyor may need to be provided to demonstrate compliance. b. Buildings fronting Korogoro Creek must not result in unacceptable impacts on existing passive recreational activities within the creek and foreshore areas. **Note** - A Visual Analysis of the proposed development will be required to be submitted with a Development Application to demonstrate compliance with the above development controls.
Landscape Elements – Hat Head Beach and O'Connors Hill 2.11 Development protects the scenic qualities and environmental sustainability of Hat Head Beach, including its dune system and the largely undeveloped slopes of O'Connors Hill. 2.12 Vegetative screening and low roof heights minimize the impact of buildings erected on the slopes of O'Connors Hill.	a. Buildings are not to be erected on the upper slopes of O'Connors Hill (above 20m contour). b. Buildings and associated access driveways on the lower and mid slopes of O'Connors Hill are sited and designed to minimize any visual impacts when viewed from the main village area or Hat Head Beach. c. Buildings are designed to be compatible with the existing character of Hat Head village.

Desired outcomes	Development requirements
	d. Existing trees and other vegetation must be preserved on and immediately below the ridge of O'Connors Hill, so that no cleared areas are visible on the ridgeline when viewed from the main village area, any public road or Hat Head Beach. e. Clearing on O'Connors Hill, including clearing to meet bushfire hazard reduction requirements, must not significantly reduce the existing tree and other vegetation cover when viewed from the main village area, public road or Hat Head Beach. f. All existing large native trees within the Hat Head village area are to be protected and preserved where practicable. **Note** - A Visual Analysis of the proposed development will be required to be submitted with a Development Application to demonstrate compliance with the above development controls.
General Development Requirements 2.13 Development protects: a. Low residential densities; b. Existing street and open space / park trees; c. Lack of kerb and guttering / grassed swales; d. Large undeveloped public reserve and camping area; and e. Retention of existing dominant building forms.	a. Permanent immovable structures should not be erected within the public reserve and camping area.
Stormwater	
2.14 Stormwater complies with the relevant provisions of **Parts B and D**.	a. Developments must be designed so as to minimize the amount of hardstand areas required to provide driveways (where possible, access to developments should be via a single access point), parking and boat storage areas, paved courtyards, etc. b. Grassed swales, in lieu of kerb and guttering, are to be used for stormwater drainage in street reserves. c. New developments must be designed so as to ensure runoff will not increase pre-development flow rates during a 1 in 5 year (20% AEP) storm event in accordance with Australian Rainfall and Run Off guidelines. All stormwater must be collected and disposed of wholly on-site. d. Stormwater runoff from the development is to have no adverse environmental impact on water quality within adjacent estuaries, or road easements or swales. i. A description of the intended method of achieving this requirement must be included with the plans for the required development application.

Desired outcomes	Development requirements
	ii. Where it is proposed to satisfy this requirement by on-site storage in rainwater tanks, the means proposed to maintain the capacity of the system must be provided, including a contingency for any overflows. e. Where an allotment contains existing buildings, provision must be made to ensure that runoff from existing roof and hardstand areas are directed to the required disposal system. f. The design of the required disposal system must have regard to the fact that Council does not intend providing or requiring the construction of any kerb and guttering.

C1.6 Point Plomer Road Precinct

Application

1. This section applies to all development in the Point Plomer Road Precinct as shown in the area bounded by the bold line in **Figure C.17** below.
2. Proposed Development will also require addressing all relevant provisions in **Part B - Shire Wide Requirements, Part D - Development Requirements** and **Part E - Appendices**, where applicable.
3. The provisions of this Part override the provisions of any other Part of this DCP, to the extent of any inconsistency.

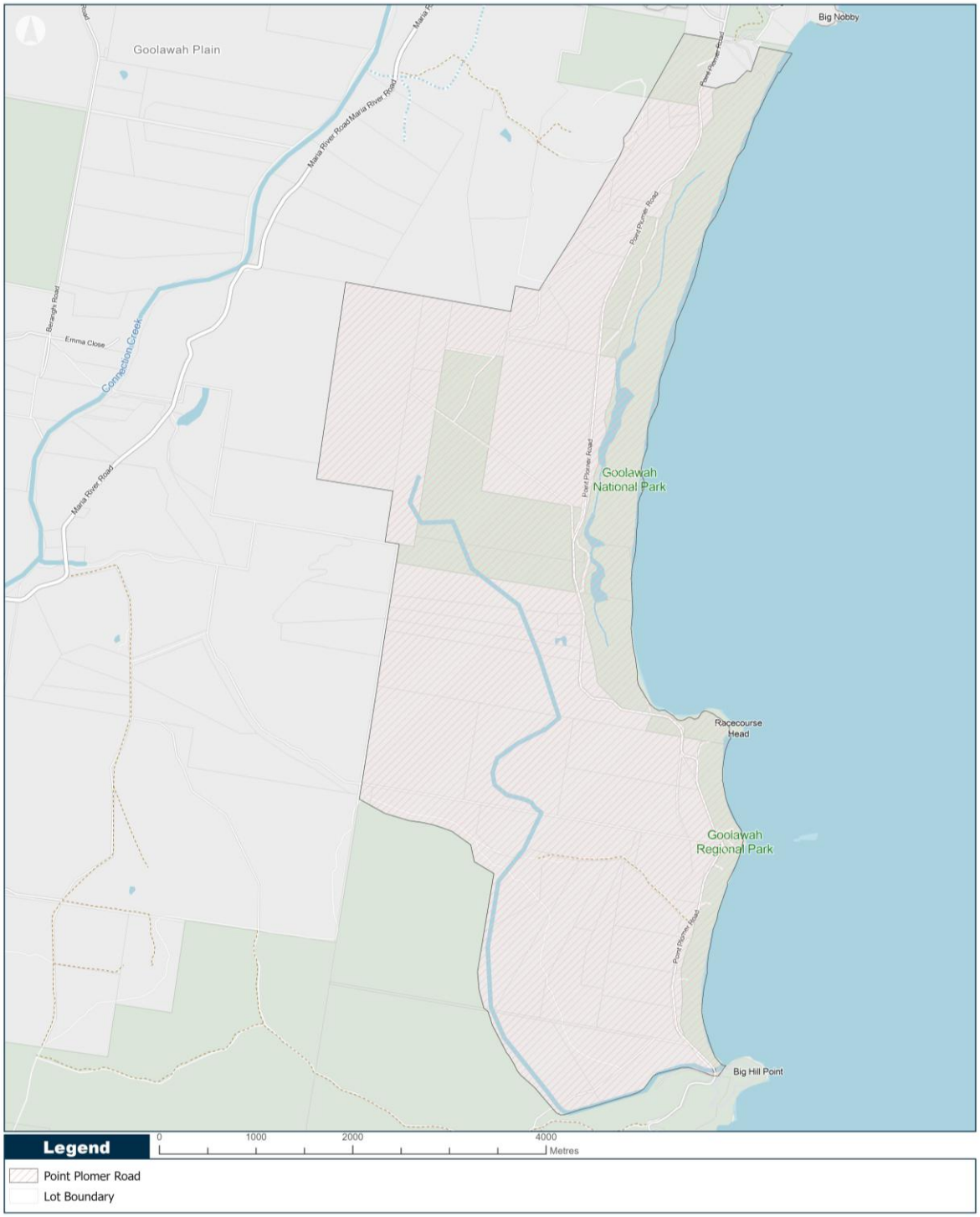


Figure C.17 – Point Plomer Road Precinct

Scope

This part outlines the precinct-specific planning controls applicable to development and use of land in the Point Plomer Road Precinct.

C1.6.1 Analysis

Background

Located on the traditional Country of the Dunghutti Aboriginal peoples, the Point Plomer Coastline extends south from Crescent Head to Point Plomer, which is located within the adjacent Port Macquarie-Hastings Local Government Area. The coastline to the south of Point Plomer that extends to the mouth of the Hastings River north of Port Macquarie is known as North Shore.

Future development on freehold land along the coastline is limited due to its majority zoning as C2 'Environmental Conservation' C3 ‘Environmental Management and C4 ‘Environmental Living’. Where zoning allows for low-impact residential development and tourist and visitor accommodation these must avoid adverse impacts on the identified special values of the area.

Description - Character

The Point Plomer coastline is a scenic and largely undeveloped stretch of rocky headlands, sandy beaches and dunal landscapes along the coast, with lowlands and outstanding natural beauty that attracts visitors eager to unwind and enjoy low-impact, nature-based recreation experiences.

The coastline is recognised as being of outstanding scenic and natural beauty, and contains a diverse range of landscape features, including:

- Striking headlands with rocky cliffs that provide opportunities for elevated views along the coastline, such as Big Hill Point and Racecourse Head;
- Long sandy beaches with intact dune systems;
- Small rocky islands, such as the Delicate Nobby islands;
- Tidal flats, coastal swamps and pristine waterways;
- Goolawah Lagoon (an inter-barrier lagoon).

A number of scenic vantage points are located within the protected estate and provide panoramic views across these landscapes.



Figure C.18 –Point Plomer Road Precinct - scenic views

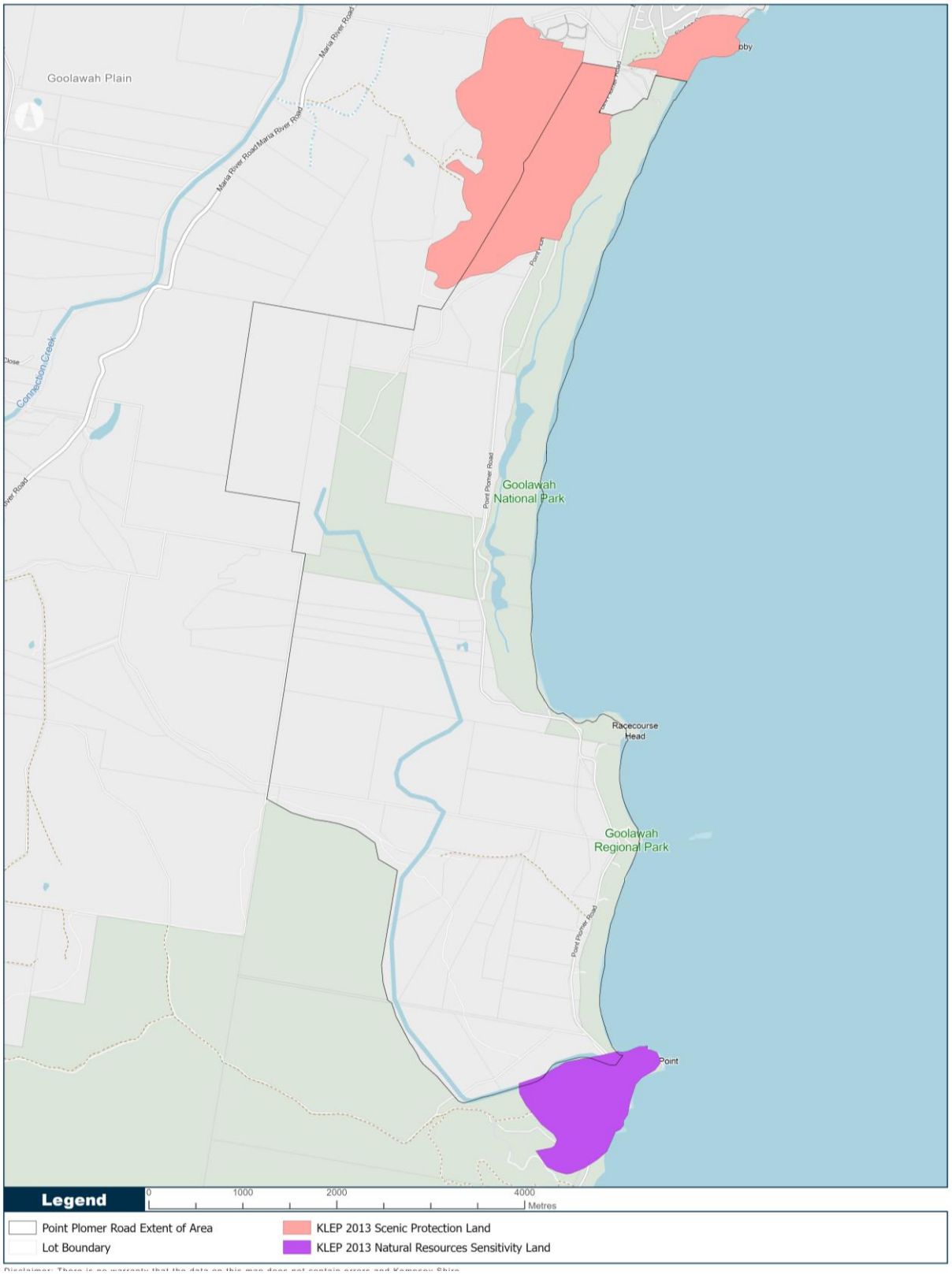


Figure C.19 – Point Plomer Road Precinct - designations

Locality (Place) issues

The scenic and culturally significant Point Plomer coastline contains a diverse range of largely undisturbed coastal landscapes and ecosystems of high ecological and biodiversity value, which must be protected.

However, the area is also subject to constraints from acid sulfate soils and flooding, as well as limitations on road access and safety.

These landscapes retain strong and continuous physical and spiritual associations for the Dunghutti and Birpai Aboriginal peoples and also support sustainable low-impact nature-based recreation activities.

In recognition of the significant values of this coastline, the majority of land to the east of Point Plomer Road is protected within Goolawah National Park, Goolawah Regional Park and Limeburners Creek National Park and managed by the NSW National Parks and Wildlife Service.

Objectives

1. To enhance the natural character and identity of the Point Plomer Road Precinct.
2. Encourage appropriate development, which is sensitive to the scenic, ecological and environmental values of the land within the Point Plomer Road Precinct.
3. Ensure all new development makes a positive contribution to the preservation and protection of the Precinct's character.
4. Protect and enhance the area's natural beauty, low key scale and significant flora and fauna communities and habitat.
5. Protect, conserve and enhance evidence of Aboriginal cultural heritage, including period heritage.
6. Allow for the protection and appropriate management of relics, trees or places which have identified heritage significance, including potential archaeological sites.
7. Ensure development satisfies the principles of ecologically sustainable development having regard to environmental, social and economic impacts.
8. Existing and new tourist and visitor accommodation are and remain environmentally sustainable.
9. Development protects existing residential amenity.
10. To ensure the number of dwellings and design details for housing and tourism is appropriate for the site and surrounding area.

C1.6.2 Desired Outcomes/Development Requirements

The following desired outcomes and development control requirements in **Table C.8** prescribe how the above objectives can be met.

Table C.8 – Desired Outcomes and Development Control Requirements – Point Plomer Road Precinct

Desired outcomes	Development requirements
1. Preservation	
Aboriginal and Natural Heritage	
1.1 Significant items or areas of Aboriginal and Natural Heritage Significance are adequately protected, or suitable measures are adopted to minimise adverse impacts where disturbance is proposed.	a. Development complies with the relevant requirements in **Part B - B4 - Aboriginal Cultural Heritage** and **Part E - Appendix 2**.
Character	
1.2 Development is of a low-scale and a low-impact nature (being development that does not have a significant negative impact on the ecology of its location, or on the character, amenity or scenic value of the area).	a. The application must demonstrate the achievement of this Desired Outcome

Desired outcomes	Development requirements
Flora and Fauna Protection	
1.3 The proposed development is ecologically sustainable in terms of impacts on: i. local flora and fauna ii. significant habitat and wetlands iii. local koalas. 1.4 The development is to have minimal environmental impact on: i. Land managed by the State government in respect to Environment and Heritage ii. Wilderness areas iii. Recognised areas of high conservation value, and iv. Scenic landscape protection areas	a. The development application must demonstrate compliance with the following, where relevant: i. *Biodiversity Conservation Act 2016; and* ii. *State Environmental Planning Policy Biodiversity and Conservation 2021*. iii. *State Environmental Planning Policy Resilience and Hazards 2021* b. Any significant trees or native vegetation are to be retained as far as practicable, including any locally significant koala feed tree species.
2. Visual Impact	
Visual Amenity and Landscape	
2.1 Development does not adversely affect the visual amenity or landscape setting of the Point Plomer Road Precinct.	a. All buildings are designed to respect the low scale and natural landscape character of the area. b. Building setbacks comply with the relevant requirements of **Part D**. c. The height of any proposed building is to be equal to or lower than: i. vegetation canopies on the subject land; and ii. ridge lines forming part of the viewshed of the proposed development. d. Adequate landscape is to be incorporated into the proposed development to provide screening of buildings, in accordance with the relevant requirements of **Part D**. e. Development respects the topography and setting of the site by locating buildings on those parts of the site with least slope. f. Any proposed vehicular entry is to be designed to restrict direct views of the development from the road. g. External building materials are to have a low-reflectivity, low-gloss and are to utilise natural colours so that they are generally compatible with the natural setting and are not visually obtrusive. **Note** – Council may require the submission of a visual impact assessment, including photomontages from various vantage points, to demonstrate that the proposed development will not have an adverse impact on the visual amenity and landscape setting of the Point Plomer Road Precinct.

Desired outcomes	Development requirements
3. New Development	
Geotechnical Issues	
3.1 Development is appropriately designed in response to local soil stability issues. 3.2 Sediment and erosion control is undertaken in a manner that prevents silt entering wetlands, watercourses and water bodies or onto neighbouring land/ properties. 3.3 Development incorporates measures to identify, manage, and mitigate the impacts of acid sulfate soils to protect surrounding ecological systems and water quality.	a. Earthworks complies with the relevant requirements of **Part B** and **Part D** and is designed in accordance with KSC Infrastructure Delivery Guide.
Coastal Processes	
3.4 Development minimizes impacts on coastal processes and complies with the relevant provisions in **Part B.**	a. The application must demonstrate the achievement of this Desired Outcome
Bushfire	
3.5 Bushfire protection measures comply with the relevant provisions in **Part B – B2 – Natural Hazards**.	a. The application must demonstrate the achievement of this Desired Outcome.

C1.7 Mid North Coast Industrial Hub

Application

1. This section applies to all development on or in the vicinity of the Mid North Coast Industrial Hub (formerly known as 'South Kempsey Industrial' precinct as outlined in bold in **Figure C.20** below.
2. Proposed Development will also require addressing all relevant provisions in **Part B - Shire Wide Requirements, Part D - Development Requirements** and **Part E - Appendices**, where applicable.
3. The provisions of this Part override the provisions of any other Part of this DCP, to the extent of any inconsistency.



Figure C.20 – Mid North Coast Industrial Hub (formerly known as South Kempsey Industrial precinct)

Scope

This part outlines the specific planning controls applicable to development and use of land in South Kempsey as identified in the Application above.

C1.7.1 Analysis

Background

South Kempsey is a locally significant mixed area of residential community and the key industrial centre of Kempsey Shire, comprising several distinct areas of commercial and industrial land use. Within this wider area, and due to its position directly adjacent the major NSW north-south Highway midway between Sydney and Brisbane the Mid North Coast Industrial Hub provides current services and potential for further logistical, commercial and industrial land uses and activities.

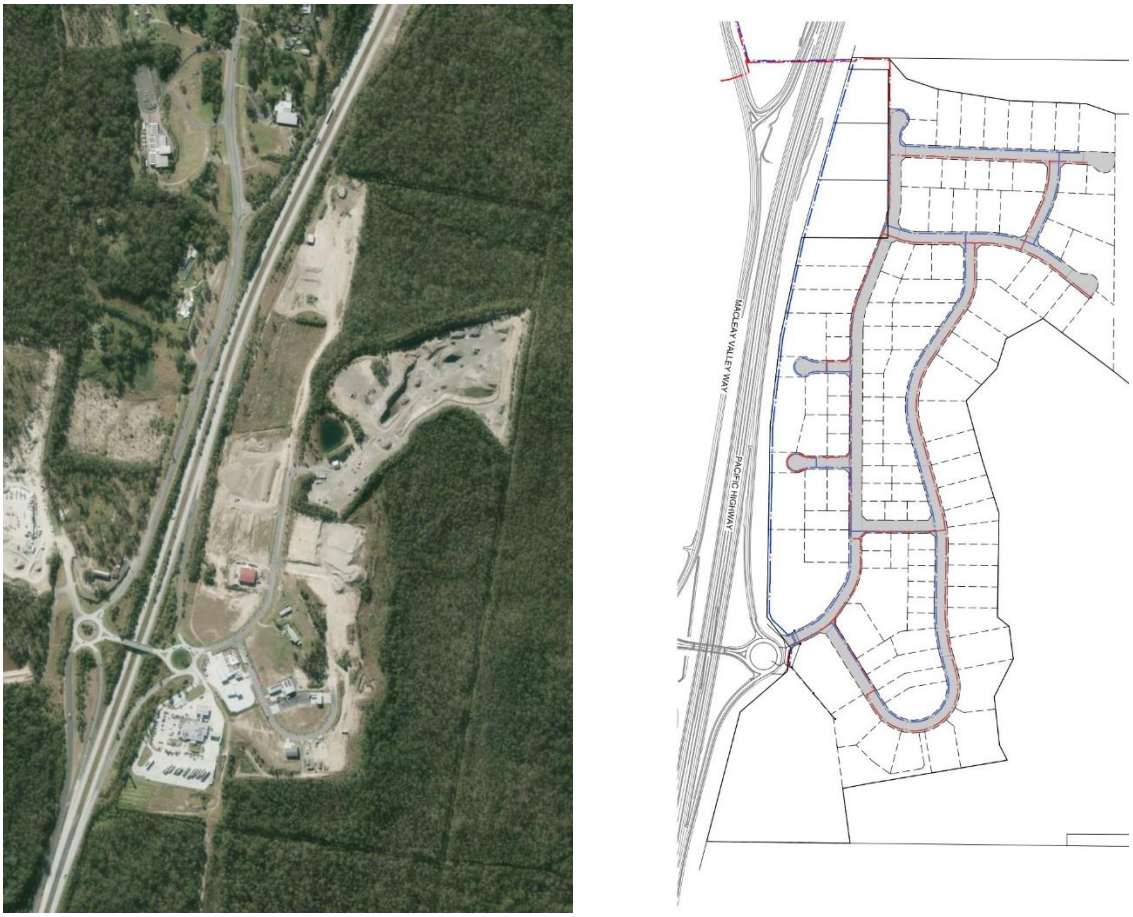


Figure C.21 – South Kempsey Pacific Highway Interchange (aerial), and Mid North Coast Industrial Hub - outline masterplan (2025)

Description

The Mid North Coast Industrial Hub is orientated north-south along the eastern edge of the Pacific Highway, and south of Macleay Valley Way on the interchange access to Kempsey. It contains some existing industrial development, including the Highway Service Centre. The terrain is highly modified in part, being relatively flat along the western half containing both occupied and vacant lots. On the eastern portion two blocks of native bushland remain with a C2 “Environmental Conservation” zoning, separated by a current operational quarry.

Locality (Place) Issues

Implementation of essential water and sewer services to the Mid North Coast Hub now provides opportunities to investigate increasing the amount of larger industrial allotments, should the need arise to accommodate these uses in future. Its role will be as a major industrial site which will be a significant employment generator that serves the industrial needs of Kempsey Shire.

Issues facing the locality and industrial estate specifically include:

- Existing vegetation on and surrounding the area and bushfire risk
- Proximity to the Pacific Highway and the need for addressing and mitigation of impacts
- Site water and stormwater management

Objectives

Mid North Coast Industrial Hub is developed to:

- Provide for employment generating development including industrial, commercial and business development in a manner which is consistent with the location, services and transport infrastructure, environment and capability of the site.
- Preserve the functional and visual integrity of the Pacific Highway corridor as a national highway.
- Facilitate the long term conservation and management of land within that part of the site zoned C2 - Environmental Conservation.
- Facilitate staged development of the site consistent with infrastructure capacity and in acknowledgement of the existing approved quarry operations.

C1.7.2 Desired Outcomes/Development Requirements

The following desired outcomes and development control requirements in **Table C.9** prescribe how the above objectives can be met.

Table C.9 – Desired Outcomes and Development Control Requirements – South Kempsey Industrial

Desired outcomes	Development requirements
1. Preservation	
Environmental Conservation Zone Management	
Buffers 1.1 Buffers are provided to the C2 – Environmental Conservation Zone part of the subject site that: i. Satisfy the remaining Desired Outcomes in this section; and ii. Accommodate the Asset Protection Zones complying with Planning for Bushfire Protection; and iii. Provide an appropriate level of acoustic attenuation between noise generating uses and the Zone C2 land.	a. No building must be located within 35 metres of the boundary of the C2 - Environmental Conservation Zones or such distance required to establish any bushfire APZ to E2 zones. b. Where a building is proposed to have an opening facing the Zone C2 – Environmental Conservation land (other than a pedestrian access door or fire escape door) applications must demonstrate that an additional buffer width is not required to meet the acoustic objectives of the setback to the environmental protection land.
Management Strategies 1.2 The following management strategies are implemented, where relevant and practicable, in relation to land zoned C2 – Environmental Conservation.	a. A Habitat Management Plan is to be submitted which demonstrates achievement of the applicable Desired Outcome, that includes the following: ii. A protective management regime that includes appropriate actions for the protection of Hunter-Macleay Dry Sclerophyll Forest; iii. Appropriate fire regimes (in areas that do not conflict with asset protection) to allow build up

Desired outcomes	Development requirements
	of grass and litter layers to facilitate conservation of flora and fauna; iv. Management regimes that promote the movement of fauna between connected landscape elements; v. Appropriate procedures to manage identified noxious weeds, namely Lantana spp; vi. Appropriate fire regimes in the peripheral asset protection zone to meet the required fuel standards for inner and outer protection areas in accordance with relevant bushfire protection legislation; vii. Where possible, the retention of on-ground refuge consisting of rocks and logs, and wherever appropriate, dense under-storey native vegetation; viii. Strategies for reducing erosion; ix. A habitat management plan is implemented in order to stabilise and protect existing wildlife habitat; x. Grazing animals, such as cattle, are removed from the area to promote natural regeneration; xi. Protective barriers are installed, as required, to promote the recovery of habitat for native fauna and flora species; xii. Threatening processes are identified and, where required and as far as practicable, reduced or eliminated; xiii. Non indigenous vegetation is removed using bush regeneration techniques, in order to improve the structure and ecological integrity of vegetation; xiv. Any works within C2 Zone areas are designed to facilitate movement of fauna in an east-west movement; xv. A maintenance plan is adopted and actioned for the control of weed species colonising the C2 zone; xvi. Stormwater is generally discharged away from bushland areas, but where discharge to bushland is unavoidable, measures are incorporated to mitigate the impacts of sediment and nutrient loads entering bushland and erosion; xvii. Soil erosion impacts are reduced through application of best practice controls on soil movement, transport and protection during any development works and increased vegetation cover; xviii. Establishment and maintenance of a bushfire trail and asset protections zones along the boundary of the C2 zone; and xix. Minimise illegal tree felling activities within the C2 zone.
2. New Development	

Desired outcomes	Development requirements
Development Staging	
2.1 Development provides appropriate site access.	a. Site access is gained at only two points from the roundabout at the intersection of Macleay Valley Way and the Pacific Highway and development is staged to ensure that temporary access is not required. b. Access construction complies with the requirements of the KSC Infrastructure Delivery Guide.
2.8 Development is staged so that transport access and infrastructure is provided and maintained.	a. The application must demonstrate the achievement of this Desired Outcome: i. Is consistent with any infrastructure servicing plan; ii. Is consistent with the availability of services; and iii. Delays future development of the quarry site for subdivision and/or industrial purposes until all quarry operations have ceased and the land fully restored in accordance with the terms of any development consent for the quarry.
2.3 Subdivision stages are provided with adequate sewer and water services to meet the needs of estimated future development within that stage.	a. Appropriate easements are provided to facilitate the future provision of water and sewerage services. b. Development applications for subdivision, must demonstrate that the provision of water and sewerage services is an integral part of that subdivision proposal.
2.4 Roads are provided with each stage of subdivision commensurate with the needs of the proposed stages of subdivision and to facilitate connections to future subdivision stages. 2.5 Buildings are provided with essential infrastructure, prior to occupation.	a. Stages of development must also take account of Site Master Plan (refer to **Figure C.21a**) and must include construction of such road(s) access where relevant to that particular subdivision stage. b. Notwithstanding development requirement a. above, the lot layout and road pattern presented in Site Master Plan (refer to **Figure C.21a**) may be varied as part of a development application where an alternative Masterplan is presented as part of the application and that alternative Masterplan demonstrates provision of suitable access for further stages of development and consistency with the objectives of this chapter.
Pacific Highway Frontage	
Acoustic Requirements 2.6 Subdivision and development is undertaken in a manner that mitigates adverse acoustic impacts on buildings from the Pacific Highway, to an acceptable level.	a. No buildings are to be located closer than: i. 65 metres to the nearest travelling lane of the upgraded Pacific Highway; and ii. 35 metres to the remaining industrial area boundaries.

Desired outcomes	Development requirements
	b. Development, including building and subdivision, achieves the following acoustic mitigation requirements: i. Heavy industrial activities are avoided in the most eastern precincts of the industrial area to limit noise impacts the land within Zone C2 Environmental Conservation; ii. Compliance with the NSW Industrial Noise Policy; and iii. Compliance with the NSW Environmental Criteria for Road Traffic Noise. c. Allotments created by subdivision are to be sized to accommodate both: i. Sufficient land to accommodate projected development of the site; and ii. Acoustic buffer area.
Visual Impacts 2.7 Development does not have an adverse visual impact as viewed from public areas and the Pacific Highway.	a. Storage of materials and goods in external areas must not occur within the front (to road/street) setback of any industrial lots nor in areas of any lot which are visible from the Pacific Highway, other than where the storage and display of such materials or goods is an integral component of the proposed use and Council is satisfied that the outcome will not detract from the visual amenity of the locality.
Landscape 2.8 Where development is visible from the upgraded Pacific Highway, landscaping is provided to reduce the visual impact of future development adjacent to the highway corridor.	a. Where industrial allotments are affected by an acoustic buffer requirement a minimum of 10 metres width of screen landscaping must be provided along the front setback area and must be indicated by a restriction on title under the relevant Act.
Traffic Management	
Site Access 2.9 No allotment has direct access to the upgraded Pacific Highway. All access to the subject area is gained from the 2 accesses from the Pacfic Highway (interchange) Macleay Valley Way roundabout.	a. All access for development (refer to **Figure C.21a**) must be via the link road to the Pacific Highway and Macleay Valley Way roundabout. All other development on the site must have access via the core road to this roundabout. b. All allotments are to have direct access to a public road.
Roads and Carparking 2.10 Road and property access, carparking, movement aisles, driveways and loading areas provides for safe movements of all vehicles and pedestrians and minimises any conflicts.	a. Roads are to be laid generally as shown in Site Master Plan (refer to **Figure C.21a**) b. Roads and intersections must be designed in accordance with KSC Infrastructure Delivery Guide but also with geometry which complies with engineering standards required for access by B-double trucks.

Desired outcomes	Development requirements
Hazards Management	
Asset Protection Zones 2.11 Development complies with the relevant requirements of Planning for Bushfire Protection. 2.12 Developments adopt appropriate evacuation muster points and procedures for emergency situations.	a. Asset Protection Zones (APZs) must be provided and maintained in accordance with recommendations of Planning for Bushfire Protection. b. Any perimeter fire trail must be a minimum 6 metres wide and must form an integral part of the APZ and must be located adjoining the potential fire source with the remainder of the required APZ located between the fire trail and any buildings. c. APZ areas within industrial lots or the Highway Service Centre lots must be secured by a restriction on title. d. Where development is proposed on an industrial lot which is affected by or encompasses an APZ area, the development application must include a hazard and risk assessment to determine whether the proposed development would unacceptably increase the risk of bushfire beyond that assessed at the subdivision stage. e. No APZ or any other fire protection measures must be located within Zone C2 – Environmental Conservation. f. Development is to comply with the relevant recommendations from Planning for Bushfire Protection, as applicable.
Industrial Hazards Management	
2.13 All developments are to have muster points for evacuation procedures.	a. Where hazardous materials are involved, the subject business premises are to have a written premises-specific emergency evacuation procedure, prepared in accordance with AS3745: Planning for Emergencies in Facilities. b. A perimeter fire trail for emergency access must be provided around the interface between development on the site and the land within Zone C2 – Environmental Conservation. Access must be provided to this fire trail from any proposed subdivision roads consistent with the Site Master Plan (refer to **Figure C.21a**) c. The fire trail must be located within a 10m Fire Trail Corridor. It must not be located on land zoned C2 – Environmental Conservation and must form an integral part of the required APZ to adjoining development. d. Stages of the development which may occur on cessation of quarry operations on the site, must incorporate provision for an additional access to the Pacific Highway for emergency purposes only.

Desired outcomes	Development requirements

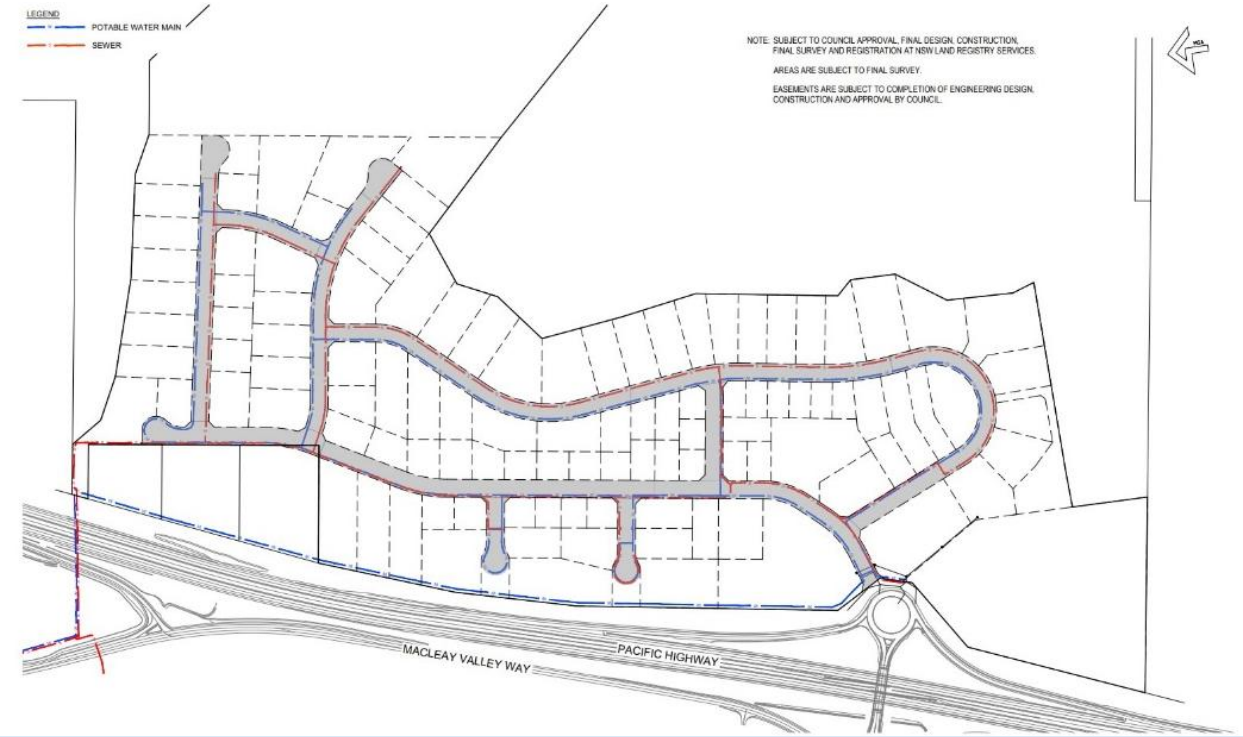


Figure C.21a – Indicative Site Master Plan

Lot Sizes and Boundaries	
2.14 Allotments in industrial zones are designed to accommodate development that meets the relevant requirements of **Part B** and **Part D.**	a. The subject land is subdivided generally refer to Site Master Plan (refer to **Figure C.21a**) b. A variety of lot sizes must be provided for development on the site with larger lots where additional land is required for buffers or to address site constraints generally. c. All industrial lots must have a minimum frontage of 25 metres. d. Lot sizes must generally be sufficient to ensure that all car parking, loading and unloading and manoeuvring of vehicles will occur on site. e. The useable area of any lot exclusive of areas affected by requirements for buffers under this Part must be not less than 1200 m^2. f. Minimum lot sizes must be determined having regard to the requirements of **Part B** and **Part D**.
Public Domain Requirements	
2.15 Street trees are provided in accordance with: i. a Street Tree Site Master Plan; and ii. the relevant requirements of **Part B** and **Part D**. 2.16 On-site landscaping, particularly to the front of buildings and within large car parking areas, is provided in accordance with **Part D**.	a. A Street Tree Master Plan is to be submitted with the first application for subdivision development of the site and approved by Council. b. Street trees must be provided at a minimum average spacing of: i. one per 20 metres of frontage along the core roads shown on Site Master Plan (refer to **Figure C.21a**)

Desired outcomes	Development requirements
	ii. one per 30 metres of frontage for all other industrial subdivision roads.
Industrial Buildings	
2.17 Industrial development complies with the relevant requirements of **Part B** and **Part D**, unless amended by the applicable Development Control Requirements.	a. Street setbacks for buildings must be a minimum of 5 metres. b. There must be no setback concessions for secondary street frontages. c. Where a building is proposed which will exceed a height of 10 metres, the development application must demonstrate that the building will not be visible from the Pacific Highway or alternatively, provide evidence to the satisfaction of Council that the visible building elements will be visually acceptable in their context.
Advertising Signage	
2.18 Advertising signs within the land comply with the relevant requirements of **Part D**, unless amended by the applicable Development Control Requirements.	a. Individual site pole signs are only to be provided for development on lots: i. where the site is greater than 2000 m^2; and ii. the sign is no more than 8 metres in height. b. Signage greater than 8 metres in height is restricted to signs relating to the Highway Service Centre and any combined directory sign for development which Council is satisfied will constitute a business park style development of industrial lots. c. Nothing in this plan prevents the erection of permanent estate entry signage within the road reserve entering the industrial subdivision from the roundabout provided the estate entry sign forms an integral part of landscaping of the entry road and details are submitted to and approved by the Council.

C2 HERITAGE ITEMS

For identification of heritage items (places, buildings and/or objects etc) refer to Kempsey Local Environmental Plan (KLEP)

For requirements related to Items of Environmental Heritage listed in Schedule 5 - Part 1 – Heritage Items of KLEP or Heritage Items within the Kempsey local government area that may be listed in other planning instruments and legislation, refer to **Part E - Appendix 2**.

C3 HERITAGE CONSERVATION AREAS

The Shire has two existing Heritage Conservation Areas which are identified in the Kempsey LEP 2013. These are;

- Bellbrook (which is also National Trust listed), and
- Gladstone.

Factors in defining the sense of place may be the original subdivision pattern, a consistency in building form or building materials, the density of development or the mix of land uses which reflect a particular period or periods in the history and growth of the area. Loss of, or unsympathetic alteration to, any one of these areas or buildings can erode the significance of the place as a whole.

Heritage Conservation Areas aim to protect and preserve the core values of a place while guiding new development in a manner consistent and complementary with these core values. Heritage conservation areas identify and conserve significant built and landscape heritage, including buildings, monuments, streetscapes, parks, and gardens that link us to our past and help define our identity. Recognising heritage conservation areas, precincts, and items ensures their heritage significance is maintained. Development and growth are not restricted but should respect and align with the identified heritage values of a place.

Objectives and planning controls for the conservation of environmental heritage are set out in KLEP. Development consent is required for most proposed changes to a heritage item or building, work, relic or tree in a heritage conservation area listed in Schedule 5 of KLEP.

Heritage conservation areas have a statement of heritage significance identifying the elements making it significant in heritage terms. The NSW Office of Environment and Heritage set the criteria for these statements as outlined in the NSW Heritage Manual, and based on the Burra Charter's principles and processes.

Development on land in or within the vicinity of a heritage conservation area is to be designed and based on the site / spatial specific detail provided in this section.

C3.1 Bellbrook

Application

1. This section applies to all development on or in the vicinity of the Heritage Conservation Areas of Bellbrook as identified in Schedule 5 – Part 2 – Heritage Conservation Area of KLEP and as outlined in bold in **Figure C.22** below.
2. **Part E - Appendix 2** also contains requirements that may be relevant to Heritage Conservation Areas, in terms of provisions related to application requirements, general provisions etc.
3. Proposed Development will also require addressing all relevant provisions in **Part B - Shire Wide Requirements,** and **Part D - Development Requirements**, where applicable.
4. The provisions of this Part override the provisions of any other Part of this DCP, to the extent of any inconsistency.

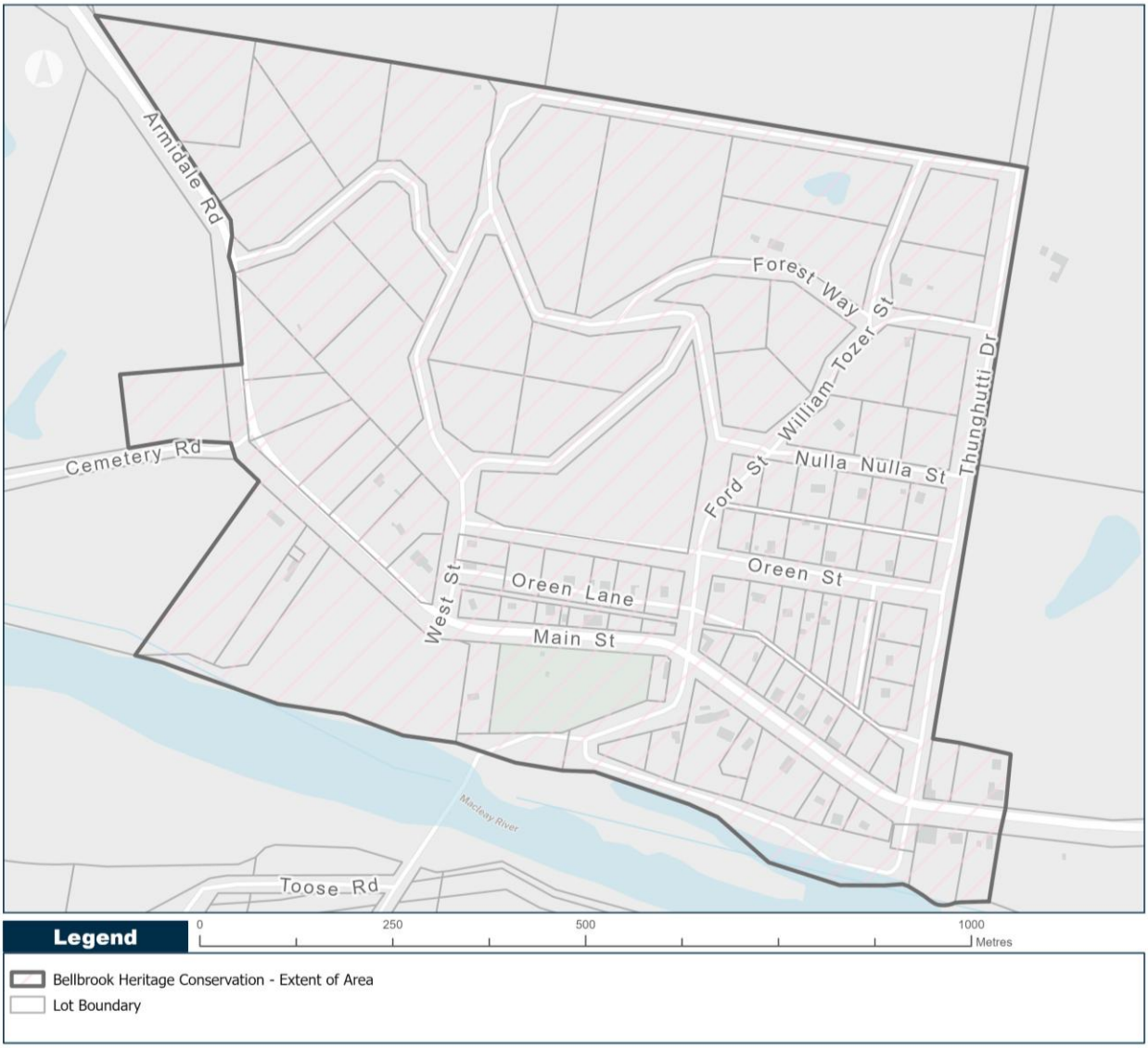


Figure C.22 – Bellbrook Heritage Conservation Area

Scope

This part outlines the specific planning controls applicable to development and use of land in Bellbrook that is a Heritage Conservation Area as identified in the Application above.

C3.1.1 Analysis

Background

Located in the Upper Macleay Valley Bellbrook a small rural village has a rich Aboriginal and European significance. The Bellbrook area was settled by timber cutters and graziers in the mid-1830s. Robert McKenzie, a sheep grazier is recorded as being the first squatter in 1837. By 1865 there were 25 squatting licences issued, covering 170,000 hectares of Thunghutti land.

Situated high above the banks of the Macleay River on a ridgeline, the picturesque village is surrounded by scenic hinterland landscapes, including the culturally and visually significant Burrel Bulai (Barralbarayi/ Anderson's Sugarloaf Mountain). Bellbrook also acts as a small service centre for the Thunggutti Community and nearby rural farmsteads, which contribute to the character of the surrounding rural landscape.

Description - Character

Housing within the village typically comprises single-storey, early to mid-20th century weatherboard buildings on larger lots (1000m2 to 2500m2). Many of these are constructed out of local timber milled in the area, referencing the village's colonial past. Some smaller lots (500m2) and larger lot rural residential properties also occur throughout the village, with rural residential properties well setback from the road.

Despite its intact heritage character, there is some newly constructed single-storey contemporary weatherboard homes throughout the village and on its periphery.

Residential interfaces with the street are characterised by wide grassy verges. Where fences are present, fence materials and heights vary and are generally in keeping with the rural dwelling character. Mature trees and established gardens contribute to Bellbrook's vegetated character.

This historic rural character is further reinforced by surrounding residential development that extends north on rising topography associated with Ngurra Mungan, and west along Main Street towards the Bellbrook Cemetery. Areas north of the Main Street are primarily accessed via Thunggutti Drive, which also provides access to the Thunggutti community located to the north on the banks of Nulla Nulla Creek.

The quiet and historic village character of Bellbrook is reinforced by the limited and scattered nature of commercial development and community buildings on both sides of Main Street, to the north of the Macleay River. The restored Bellbrook Hotel and Bellbrook School of Arts (Bellbrook Hall) are key landmarks. These buildings, along with the Police Station, old Bellbrook General Store, Bellbrook Public School, St. Patrick's Catholic Church and St. James Anglican Church contribute to the village's early 20th century character.

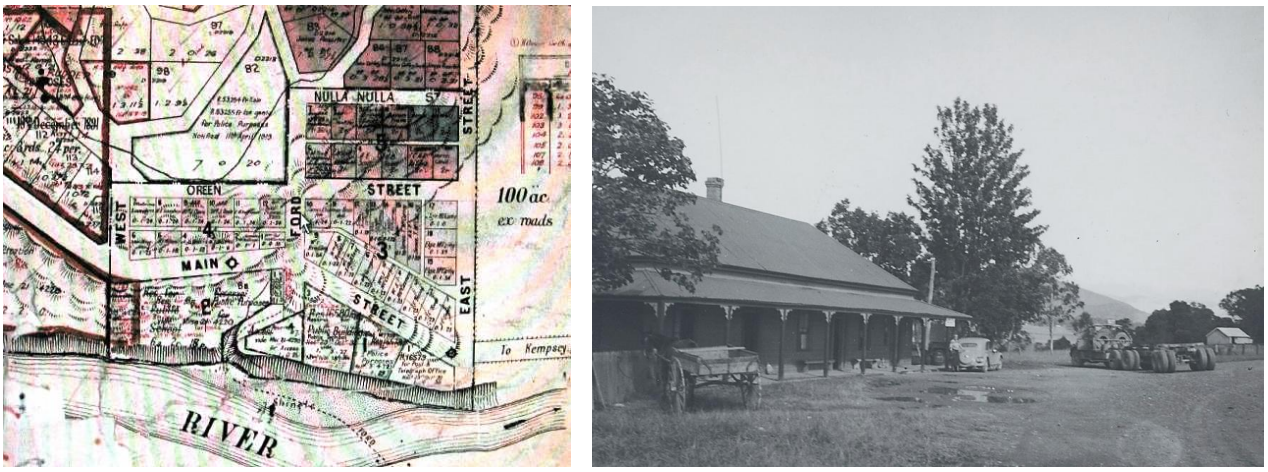


Figure C.23 – Bellbrook Village layout early 20th Century and Bellbrook Hotel, c1940s

Locality (Place) Issues

The current extent of the village, which is currently zoned RU5 – Village will be retained and not extended. This will help to maintain and enhance the rural character, heritage and culture. The area is expected to experience

limited growth pressure, which will also be constrained by the lack of sewerage capacity. Bellbrook does not have sewerage collection and treatment services and Council does not plan to provide sewage services at Bellbrook in the immediate future.

Character Statement

Bellbrook's establishment as a village is a result of its location beside the Macleay River, its position between Kempsey and Armidale as a coach stop, and the area's natural resources and suitability for grazing. Its transformation from natural bush to pastoral and then semi-urban character is evident in the aesthetic entry to the village particularly from the east. The road is at grade on a gentle curve, in open landscape with the village announced by a group of early 20th century weatherboard buildings that include the Hotel.

The established trees located within the road reserve of Main Street, noted in all previous descriptions of the village remain clearly evident and are prominent features of the town gateway. The distant views from the more elevated, western portion of the village can still be appreciated. In addition, the overall rural settlement pattern (as viewed from the town entry roads) has been retained, reflecting the historical homestead and clearing patterns.

Within the village the natural and introduced vegetation cocoons the buildings and structures masking the legibility of the subdivision pattern and provides an expansive feel to the village. The original village is essentially contained within an east - west grid pattern of two sections on Main Street.

A group of weatherboard buildings defined by the General Store (Ford Street) and Community Hall (Main Street) are on elevated ground. Further west is the former Post Office. To the north on the lane and Oreen Street (off Ford Street) are the Roman Catholic and Anglican Churches.

Within the village core (on the north side of Main Street) are a group of late 19th century dwellings. While on the south side is the Police Station and a number of significant trees within the road reserve.

The buildings are predominantly small scale and sited on large allotments about 2000m^2. Identification of individual dwellings is by picket, paling or rural style fencing. Buildings are separated by large gaps of 10m or more and surrounded by informal gardens containing extensive grassed areas with plantings of native and introduced trees and shrubs.

C3.1.2 Statement of Significance

Bellbrook is culturally significant because:

1. It has historic significance as a record of early settlement of the upper Macleay Valley and because of its association with early pioneer families.
2. It has aesthetic significance as a good example of an Australian "town in a landscape" and retains intact streetscapes and many individual buildings.
3. It has social significance for its roles as a centre for administration, cultural activities including community support facilities and religious worship.
4. It has technical/scientific significance because of its association with the development of inter-regional transport links and communication.

Objectives

1. To maintain Bellbrook's existing, tranquil rural character, heritage and cultural values;
2. To encourage development that celebrates the Thunggutti culture and opportunities for appropriate nature-based and cultural tourism experiences;
3. To maintain Bellbrook's position as the 'Gateway to Gorge Country' with the crossing of Nulla Nulla Creek contributing to a sense of arrival to the village; and
4. To continue as a through location to provide access to Kempsey and Willawarrin in the east and the Upper Macleay Valley and Armidale in the west.

C3.1.3 Desired Outcomes/Development Requirements

The following desired outcomes and development control requirements in **Table C.10** prescribe how the above objectives can be met.

Table C.10 – Desired Outcomes and Development Control Requirements – Bellbrook

Desired outcomes	Development requirements
1. Preservation	
1.1. Development retains and maintains the unique rural village character.	a. The application must demonstrate the achievement of this Desired Outcome. b. Development complies with the relevant requirements in **Part B - B4 - Aboriginal Cultural Heritage** and **Part E - Appendix 2**.
1.2. Development protects Bellbrook's heritage, landscape and character values.	a. Development respects and preserves the heritage character, form and features of heritage items within the Bellbrook Heritage Conservation Area. b. Development respects the heritage character of the whole designated area through sympathetic and complementary building form, scale and material use. c. Significant trees (refer **Part E - Appendix 5**) are to be protected and preserved. d. The application must demonstrate the achievement of this Desired Outcome.
2. New Development	
2.1 New development supports appropriate cultural and eco-tourism opportunities within the Bellbrook area.	a. The application must demonstrate the achievement of this Desired Outcome. b. Development complies with heritage provisions of **Part E - Appendix 2**. c. Development complies with the relevant requirements of **Part D** where applicable.
2.2 New development provides a visual connection between the village (development site) and the river.	a. The application must demonstrate the achievement of this Desired Outcome.

C3.2 Gladstone Conservation Area

Application

1. This section applies to all development on or in the vicinity of the Heritage Conservation Area of Gladstone as identified in Schedule 5 – Part 2 – Heritage Conservation Area of KLEP and as outlined in bold in **Figure C.24** below.
2. **Part E - Appendix 2** also contains requirements that may be relevant to Heritage Conservation Areas.
3. Proposed Development will also require addressing all relevant provisions in **Part B - Shire Wide Requirements,** and **Part D - Development Requirements**, where applicable.
4. The provisions of this Part override the provisions of any other Part of this DCP, to the extent of any inconsistency.

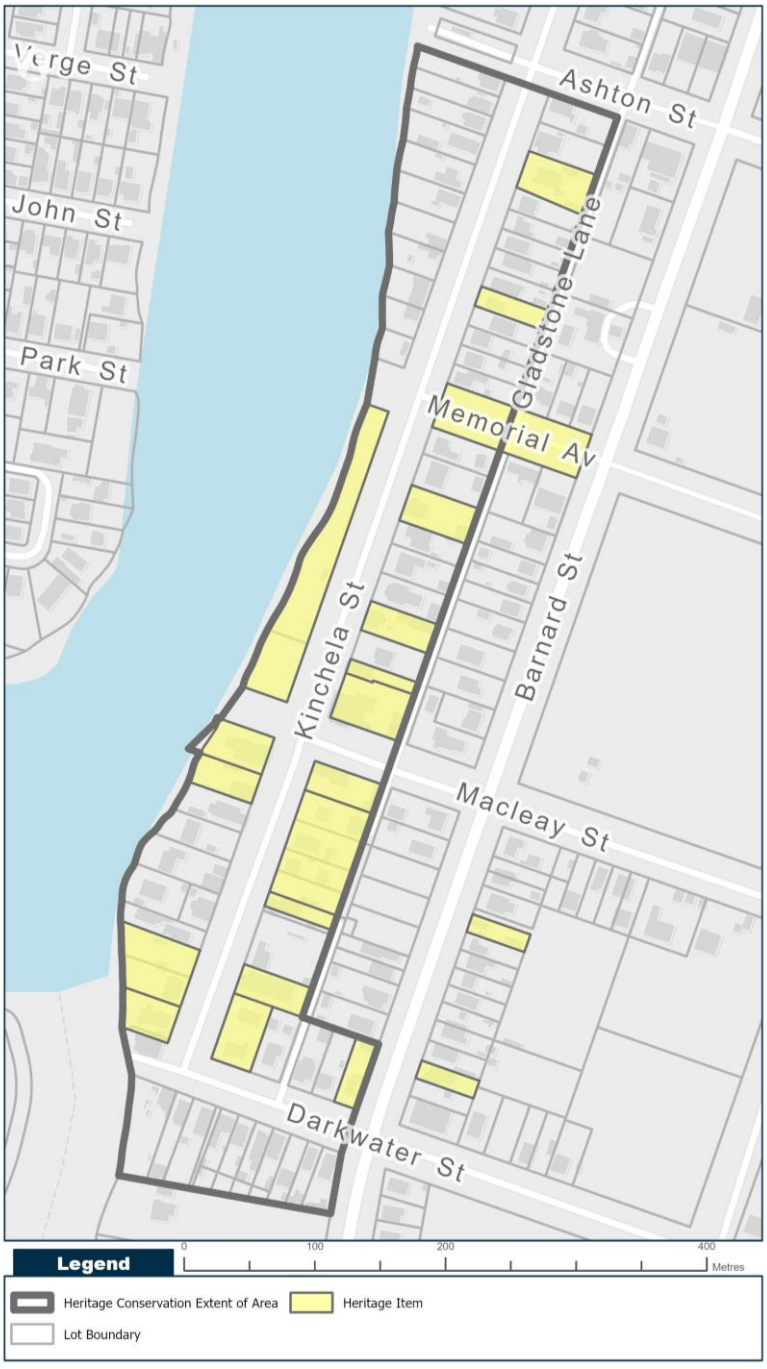


Figure C.24 – Gladstone Heritage Conservation Area

Scope

This part outlines the specific planning controls applicable to development and use of land in the Gladstone Heritage Conservation Area as identified in the Application above.

C3.2.1 Analysis

Background

Gladstone is one of two villages located opposite each other and separated by the Macleay River (the other is Smithtown). Gladstone settlement is a largely intact river village situated on the eastern bank of the Macleay River. It's establishment as a village is a result of its location on the Macleay River, its position between Kempsey and South West Rocks surrounded by low-lying plains, which support grazing on modified pastures and wetland marking the area's previous suitability for dairying, cropping and grazing.

Located on Dunghutti Country, Gladstone is approximately 12km northeast of Kempsey with a population of around four hundred. While Gladstone is known as the cultural heart of the Macleay Valley Coast future growth within Gladstone is anticipated to be limited and constrained due to significant flood risk.

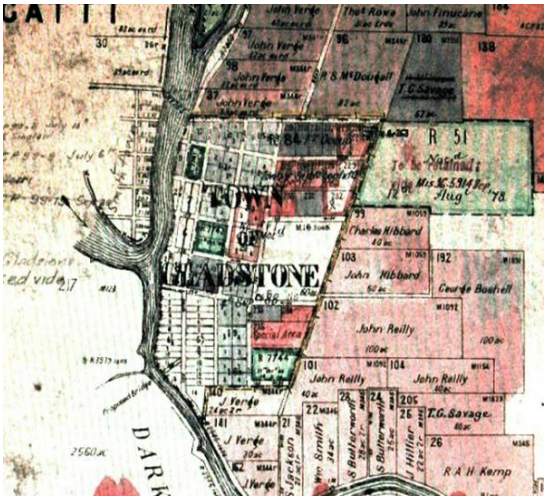




Figure C.25 – Gladstone Village Plan and Kinchela Street early 20th Century

Description - Character

Gladstone is a small historic rural village which includes the Gladstone Conservation Area, situated to the west of Barnard Street along the Macleay River's edge at the confluence of the Macleay and Belmore Rivers. The village is centred around a quaint and revitalised 'heritage' centre along Kinchela Street, and is accessed from the north and south via South West Rocks Road. This is part of Tourist Drive 12 and provides access to South West Rocks in the east and South Kempsey in the west.

Gladstone, whilst geographically smaller than Smithtown directly across the Macleay River, acts as the primary service centre for the two villages and supports more commercial and retail development. The historic village centre is focused on Kinchela Street to the south of Memorial Avenue, and contains boutique shops, cafés and accommodation options that cater for tourists and visitors. The Heritage Hotel of Gladstone and The Gladstone Hub are key landmarks located across the road from Gladstone War Memorial Park that is situated on the river's edge and contributes to the unique setting and amenity of the village.

The small village heritage conservation area is surrounded by residential development which follows an established narrow grid that runs parallel to the Macleay River. Outside the heritage area some additional commercial development also occurs along Barnard Street in the northern part of the village.

The age and typology of housing varies within Gladstone, housing is typically single-storey, weatherboard and brick detached dwellings dating from the 19th century and early 20th century on lots that vary between 600m2 and 1500m2. Typical older dwelling character features include verandahs addressing the street and corrugated iron roofs, while more contemporary dwellings also occur outside of the Heritage Conservation Area.

Residential interfaces with the street are characterised by wide grassy verges and fences are often absent. However, where present, low fences that correspond with the materiality of the associated residential dwelling are common and provide strong visual connectivity between residential properties and the street. Despite the low-lying situation of the village, the influence of flooding on the built form character of Gladstone is limited. Relatively few dwellings have an elevated ground floor and stair access or have been raised, which is common across the river in Smithtown.

Locality (Place) Issues

Gladstone seeks to maintain its laid-back residential and quaint heritage charm and character, whilst supporting economic growth and revitalisation of the heritage village centre and the riverfront. It also needs to provide a quality public realm and pedestrian amenity which benefits the community and tourists alike. Local issues also include:

- Flood risk
- River foreshore stability

Character Statement

The main street of Gladstone is not the through road of town and this is a distinctive feature. The views across the river and flood plain from the roads and village are back dropped by the distant hills.

The original village is essentially contained within a north - south grid pattern of two blocks wide and three blocks long. Kinchela Street is the central core of the town with stronger developmental emphasis in the south than north, even though potentially the oldest developments are in the north.

Within the village core (on both sides of Kinchela Street, south of Memorial Avenue) is a highly interesting mix of 19th century and early 20th century dwellings, mixed with ecclesiastical, commercial and government (Police Station) buildings. The landscape setting features are the water side reserve and the Memorial Avenue.

The buildings in the town are predominantly small scale and framed in the main by timber style fencing, punctuated by roads and side setbacks and complemented by groups of native and introduced trees and shrubs.

C3.2.2 Statement of Significance

Gladstone is culturally significant because:

1. It has historic significance as a record of early river settlement on the Macleay River and floodplain and because of its association with pioneering families.
2. It has aesthetic significance as a good example of an Australian “town in a landscape” and retains intact streetscapes and many individual buildings.
3. It has social significance for its roles as a centre for administration and commerce, and because of its association with the development of intra-regional transport links and communication and for cultural activities including community and religion.

Objectives

1. To maintain Gladstone’s quaint heritage charm and character, whilst supporting economic growth and revitalisation of the heritage village centre and the riverfront.
2. To provide a quality public realm and pedestrian amenity which supports and benefits the community and visitors alike.

C3.2.3 Desired Outcomes/Development Requirements

The following desired outcomes and development control requirements in **Table C.11** prescribe how the above objectives can be met.

Table C.11 – Desired Outcomes and Development Control Requirements – Gladstone

Desired outcomes	Development requirements
1. Preservation	
1.1 Development retains and maintains the existing unique heritage and landscape character elements of the village.	a. The application must demonstrate the achievement of this Desired Outcome. b. Building heights comply with the requirements of KLEP. Where no building height is stipulated, this will be at the discretion of Council. c. Significant trees (refer **Part E - Appendix 5**) are to be protected and preserved.
1.2 Development protects Gladstone's heritage items and character values.	a. Development complies with the relevant requirements here **Part C**, and in **Part E - Appendix 2**.
2. New Development	
2.1 Development protects Gladstone's unique heritage, rural village and river character and elements.	a. Development complies with KSC's Flood Policy (refer also **Part B**). b. Development complies with the relevant requirements of **Part D** where applicable. c. Development complies with heritage provisions of **Part E - Appendix 2**. d. Significant trees (refer **Part E - Appendix 5**) are to be protected and preserved.

C4 HERITAGE PRECINCTS

Council has defined additional Heritage Precincts for South West Rocks (refer section C1.2), Frederickton, Smithtown, part of East Kempsey and the town centres of Kempsey and West Kempsey. The purpose of these areas is to preserve their character and identified qualities while allowing for appropriate development.

This section provide an understanding of the area's history and diversity, to identify their special local qualities and to provide a thematic and historic context within which individual sites and/or buildings can be appreciated. Identifying this "sense of place" or context and background is essential to the preparation and assessment of development applications in places that contain, character areas, heritage sites, landscapes, heritage items and individual or groups of period buildings.

Factors in defining the "sense of place" may be the original subdivision pattern, a consistency in building form or building materials, the density of development or the mix of land uses which reflect a particular period or periods in the history and growth of the area. Loss of, or unsympathetic alteration to, any one of these areas or buildings can erode the significance of the place as a whole.

Heritage Precincts are not intended to sterilise an area to further growth and development, but to protect and preserve the core values of the place (special local qualities "sense of place") and guide new development and growth in a manner consistent and complementary with these depicted core physical and associated values.

Heritage Precincts identify and seek to conserve significant built and landscape character. They include buildings, monuments, trees, streetscapes, and landscapes such as parks and gardens, linking us to our past and helping define our identity. The main aim of identifying heritage items and character precincts is to ensure we recognise and maintain the heritage significance of items and places. This does not necessarily mean development is limited or cannot occur but that changes respect the identified special local qualities and/or "sense of place". Heritage precincts may have a statement of significance identifying the elements making it significant in physical environmental terms.

Development on land in or within the vicinity of a Heritage Precinct is to be designed and based on the site / spatial specific detail provided in this section. Provisions in **DCP Parts A, B and D** may also apply.

C4.1 Frederickton

Application

1. This section applies to all development on or in the vicinity of the Heritage Precinct of Frederickton as outlined in bold in **Figure C.26** below.
2. **Part E - Appendix 2** also contains requirements that may be relevant to Heritage Items and overall location character within this Heritage Precinct.
3. Proposed Development will also require addressing all relevant provisions in **Part B - Shire Wide Requirements,** and **Part D - Development Requirements**, where applicable.
4. The provisions of this Part override the provisions of any other Part of this DCP, to the extent of any inconsistency.

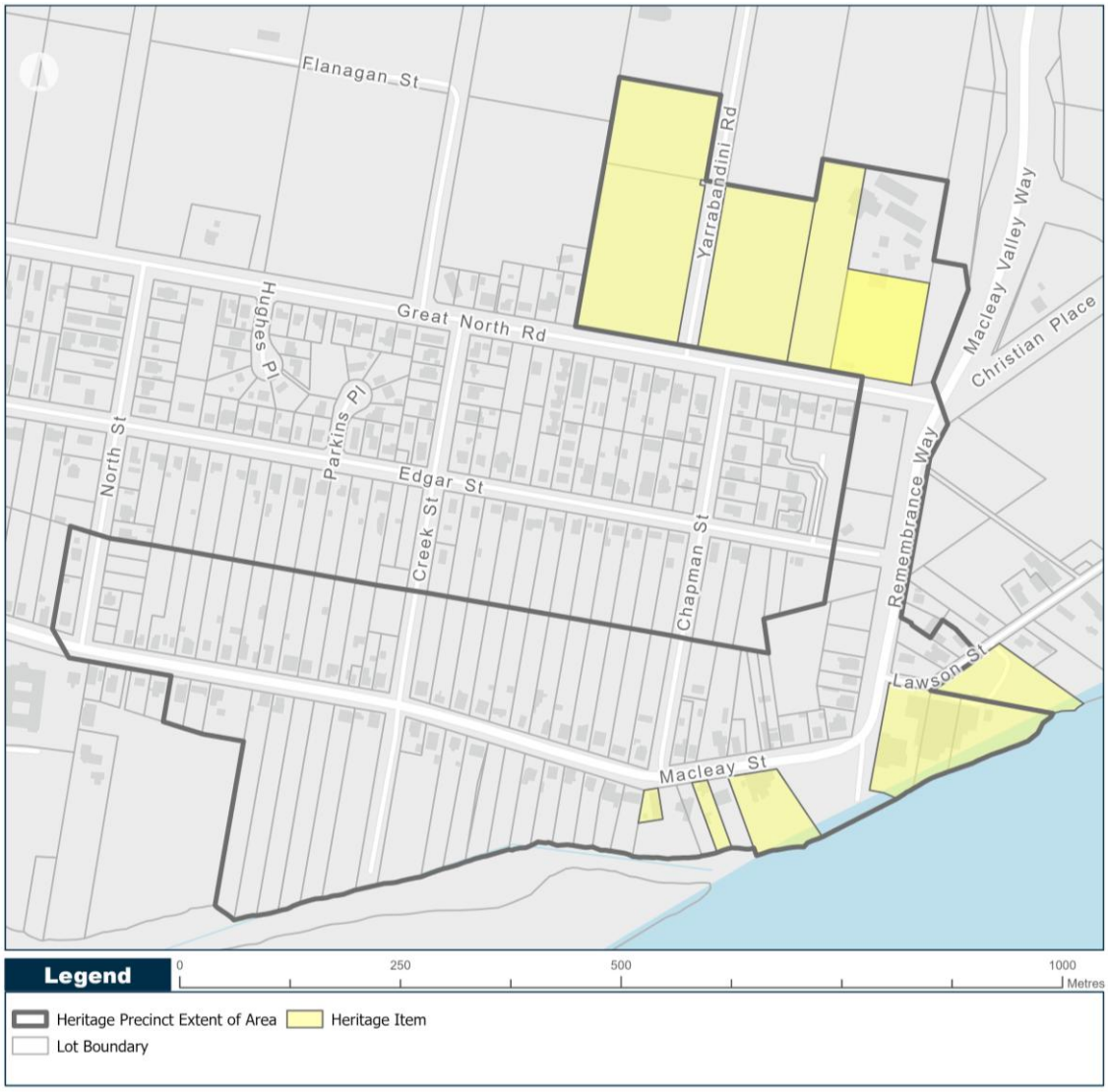


Figure C.26 – Frederickton Heritage Precinct Area

Scope

This part outlines the specific planning controls applicable to development and use of land in Frederickton that is a Heritage Precinct as identified in the Application above.

C4.1.1 Analysis

Background

Frederickton is an established residential community and small heritage village centre situated to the north of Christmas Creek on a series of ridges alongside a gentle bend of the Macleay River, downstream of Kempsey. It is surrounded by low-lying plains associated with the Macleay River floodplain, which support grazing on modified pastures and wetlands and provide a rural setting to the village.

Europeans first settled the area around Frederickton in the late 1820s when cedar cutters moved into the district. The first recorded European settler was Captain A.C. Innes, who at the time was the commandant at Port Macquarie. He sent a cedar cutting party to the Macleay River in 1827.

Located on Dunghutti Country, Frederickton is approximately 6km northeast of Kempsey with a population of around 1,400. The area could experience ongoing steady growth pressure if infrastructure capacity is increased, due to the settlement's proximity to Kempsey, the Pacific Highway and the availability of potential residential land above traditional flood risk levels. Most potential future growth would be anticipated in the north of the village, within identified growth areas.

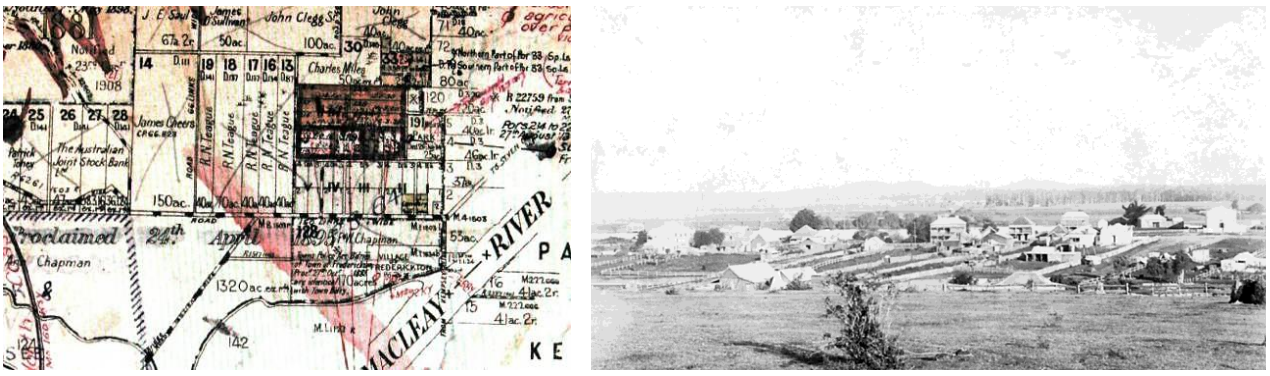


Figure C.27 – Frederickton Plan early 20th Century and historic image of Frederickton Village

Description - Character

The age and typology of housing varies throughout the village, including intact character buildings dating from the late 19th and early 20th century. Older properties are typically on larger lots (2000m2 plus) and comprise single-storey weatherboard and brick cottages, with verandas addressing the street, corrugated iron roofs and carports and garages located at the rear of the property. Fences to these properties typically correspond with the materiality of the dwelling and provide strong visual connectivity to the street.

Surrounding residential development follows an established grid and is located on gently undulating terrain that rises to the north from the Macleay River. The layout of lots and location of dwellings is strongly informed by the local topography, including a small drainage line that flows through the settlement.

Frederickton was historically a major commercial activity and shipping centre. While the settlement is now primarily a residential community and there is a weakly defined business precinct within the village. This heritage is reflected today by the presence of mixed commercial and retail development located close to the river's edge at the corner of Remembrance Way and Macleay Street, which provides access via Macleay Valley Way to Kempsey in the south and to the Pacific Highway to the east.

Key buildings in the village centre include the General Store, former Post Office, the Macleay River Hotel, former Old Cheese Factory and older timber cottages, some of which are heritage listed and enhance the village's historic character. West of the village centre, several commercial and community buildings, including the heritage-listed Frederickton Community Arts Hall, extend along Macleay Street and contribute to the village's dispersed layout and character.

North of Great North Road, which was the historic entry road into the village prior to the provision of the Pacific Highway, the cemetery and the heritage-listed Frederickton Public School and War Memorial are located on a small hill in a commanding position above the village. Industrial and agricultural uses provide a transition between the village and the surrounding rural landscape.

Locality (Place) Issues

The area has flooding impacts around the village and within the creek valleys that define this settlement's locality. Sewage capacity is currently constraining growth for residential development. This will be addressed through a future structure plan to be prepared for Frederickton, as identified within the Local Strategic Planning Statement (LSPS) and service infrastructure strategies, which outlines priorities for upgrading in subsequent years.

A future Structure Plan should also address land use, appropriate land zoning, access and the provision of utility infrastructure in more detail, with a specific action being to prepare a water and sewer servicing strategy for the village.

- Stormwater drainage and management
- Flood risk
- At capacity sewage treatment services

Character Statement

Frederickton's establishment as a village is a result of its location on the Macleay River, and its surrounding fertile plain. Its location on a ridge and transformation from natural bush to pastoral and urban character is evident in the aesthetic entry to the town from both the south and north.

In addition, the rural settlement patterns as viewed from the village entry roads present a change in context with the change in elevation when approaching from the south or the sudden arrival at the village when approaching from the north. Both entries provide immediate evidence of earlier times, from the south the row of period dwellings on the northern side just past the sweeping bend and from the north the Public School on the hill to the west.

The town layout comprises an east - west grid pattern of streets bounded by the Great North Road and Macleay Street. Most of the town was sparsely developed in earlier times and is on higher ground than the core precinct in the south east (on the banks of the river). The buildings are predominantly small scale and framed in the main by post and rail fencing, border gardens in simple patterns and narrow width street frontages.

A small group of two storey buildings and a few of single storey define this core which reflects the association with the river. Macleay Street contains a number of period dwellings. The greater number are on the north side from the southern arrival to the village in the west to village core and a more tightly grouped, smaller number are on the southern side from North Street to the core. With the advent of the previous Pacific Highway and the establishment of its route along Macleay Street this street became the most developed street in the town whereas the historic town entry road – Great North Road is almost forgotten. The Great North Road's separation from the town's commercial core suggests a different emphasis may have existed in the late 19th century, particularly as the school is located on this road, as is the cemetery.

C4.1.2 Statement of Significance

Frederickton is culturally significant because:

1. It has historic significance as a record of early settlement of the Macleay Valley flood plain and because of its association with early pioneer families.
2. It has aesthetic significance as containing good examples of intact late 19th and early 20th century village streetscapes and individual buildings.
3. It has social significance for its role as a centre for commerce for local agriculture.

Objectives

1. To maintain the Frederickton heritage precinct:
    - as a relaxed, low-rise residential village which embraces its character and heritage features.
    - in a way that supports economic growth and revitalisation of the heritage precinct's village centre.

- to capitalise on its proximity to Kempsey, which signifies it as an important growth area that provides residential lifestyle options in close proximity to the Kempsey town centre.

C4.1.3 Desired Outcomes/Development Requirements

The following desired outcomes and development control requirements in **Table C.12** prescribe how the above objectives can be met.

Table C.12 – Desired Outcomes and Development Control Requirements – Frederickton

Desired outcomes	Development requirements
1. Preservation	
1.1 Development supports the retention of the unique rural village character and any heritage elements.	a. Development complies with the relevant requirements in **Part E - Appendix 2**. b. Significant trees (refer **Part E - Appendix 5**) are to be protected and preserved. c. The application must demonstrate the achievement of this Desired Outcome.
2. New Development	
2.1 New development contributes to the consolidation of a more defined business core with surrounding residential precincts.	a. Council may consider planning proposals to introduce the E1: Local centre zone and R1: General residential zones, where appropriate. b. Building heights comply with the requirements of KLEP. Where no building height is stipulated, this will be at the discretion of Council. c. Development complies with KSC's Flood Policy (refer also **Part B**). d. Development complies with the relevant requirements of **Part D** where applicable.
2.2 Allow for the minor expansion of E4: General Industrial zone land to accommodate future employment growth to 2041.	a. Council may consider planning proposals for future industrial development to the north-west of the existing industrial zoned land, which could act to attract additional freight and logistics operators to the region, given its location adjacent to the Pacific Highway and within proximity to the railway line.
2.3 Provide for further residential, commercial and/or industrial zoned land to be brought on to cater for dwelling and potential business related growth.	a. Any planning proposal for additional or new residential, commercial and/or industrial zoned land will be subject to investigations confirming that the land is able to be adequately serviced with sewerage infrastructure.
Streetscapes and Public Realm	
Streetscapes 2.4 Streetscape and public domain improvements are provided to be consistent with the treatments of the immediate street (or the intent of the Frederickton Structure Plan, once developed). 2.5 Streets within the main street/village centre are developed as civic spaces and provides places for people to meet and interact.	a. The application must demonstrate the achievement of this Desired Outcome.

Desired outcomes	Development requirements
Pedestrian and Cycle Paving 2.6 Pedestrian areas and pedestrian/cycle path paving is generally consistent with the existing pedestrian paving in Frederickton, in terms of: i. Width ii. Connections iii. Safety features iv. Materials.	a. The application must demonstrate the achievement of this Desired Outcome.
Street furniture 2.7 Any bollards provided are consistent with the established theme of bollards used in the street reserves and public open spaces. 2.8 A consistent design and colour for seats, benches, tables and litter bins etc is provided in the street reserve and public areas of Frederickton.	a. The application must demonstrate the achievement of this Desired Outcome.
Lighting 2.9 Street lighting and lighting within public open spaces contributes to a unified approach for lighting structures within Frederickton.	a. A consistent design for street lamps and bollard type lights is used. b. Development complies with AS 4282-2019 Control of the obtrusive effects of outdoor lighting.
Street Trees 2.10 Existing street trees and Significant Trees in the public realm are to be preserved. 2.11 New street trees are provided in accordance with the relevant requirements of **Part D**.	a. Existing Street trees and Significant Trees are to be protected and preserved in accordance with the relevant requirements of **Part B** and **Part E – Appendix 5.** b. New street trees must be provided at a minimum average spacing of one per 20 metres of frontage.
Road Network	
Road Network Improvements 2.12 Development contributes towards road network improvements and treatments in accordance with the Infrastructure Delivery Guide (and a Frederickton Structure Plan once developed).	a. The application must demonstrate the achievement of this Desired Outcome.

C4.2 Smithtown

Application

1. This section applies to all development on or in the vicinity of the Heritage Precinct of Smithtown as outlined in bold in **Figure C.28** below.
2. **Part E - Appendix 2** also contains requirements that may be relevant to Heritage Precincts and items.
3. Proposed Development will also require addressing all relevant provisions in **Part B - Shire Wide Requirements,** and **Part D - Development Requirements**, where applicable.
4. The provisions of this Part override the provisions of any other Part of this DCP, to the extent of any inconsistency.

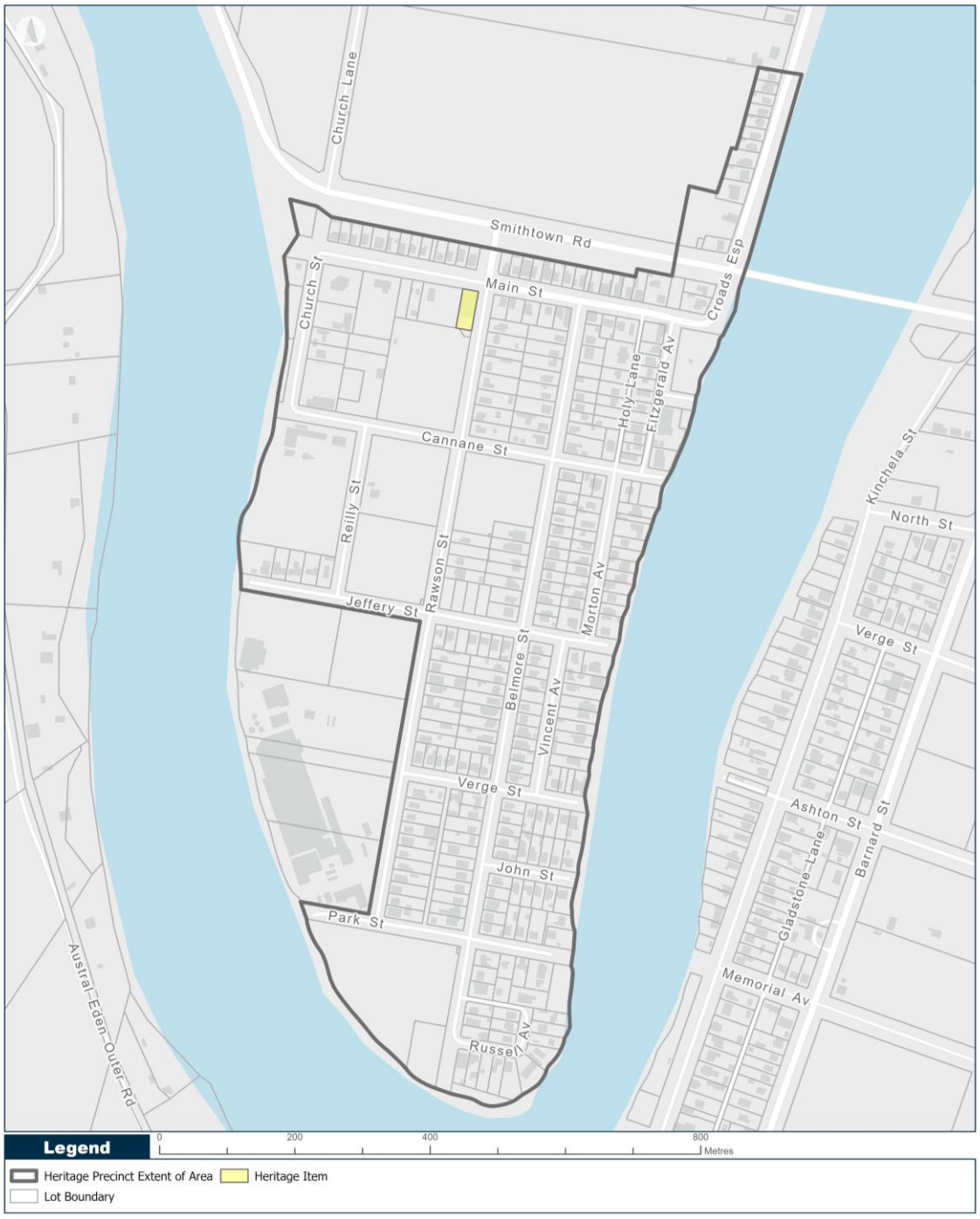


Figure C.28 – Smithtown Heritage Precinct

Scope

This part outlines the specific planning controls applicable to development and use of land in the Smithtown Heritage Precinct as identified in the Application above.

C4.2.1 Analysis

Background

Smithtown is one of two towns located opposite each other and separated by the Macleay River (the other is Gladstone). Located on the west bank, Smithtown was known for some time as West Gladstone. When the member for Hastings-Macleay, Robert Burdett Smith, secured a Post Office for the township it was as a tribute to him that the name Smithtown was gazetted in 1877.

Smithtown is a laid-back residential community and working rural village situated on a narrow peninsula of the Macleay River. The village is surrounded by low-lying plains associated with the Macleay River floodplain, which supports grazing and cropping on modified pastures and wetlands creating an attractive rural setting. The Nestlé factory producer of the "Milo" brand of chocolate flavoured malted powdered drink is a key local landmark and employment centre.

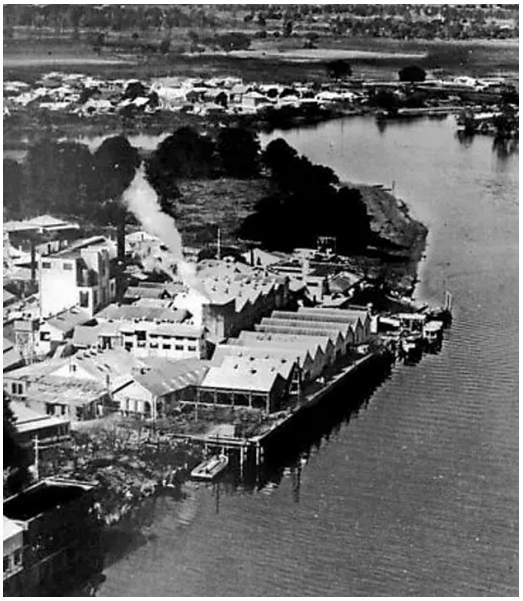
Located on Dunghutti Country, Smithtown is approximately 12km northeast of Kempsey with a population of around six hundred. Future growth within Smithtown is anticipated to be limited and constrained due to the significant flood risk.

Description - Character

Whilst located directly across the river from Gladstone, Smithtown possesses its own distinct character and is primarily a residential community. The residential character of Smithtown has been strongly influenced by eras of successive flood events. Single-storey dwellings typically have an elevated ground floor and stair access, whilst many of the older weatherboard cottages have been lifted and filled in underneath with brick or concrete masonry blocks. Within the village, residential lot sizes typically vary between 400m2 and 1000m2, with small lots occurring along Main Street adjacent to Smithtown Road. Residential development is focused in the eastern part of the settlement and follows an established grid along the peninsula, with western parts of the town supporting more rural, industrial and open space uses.

Fences are often absent, however, where present, low fences that correspond with the materials of the associated dwelling are common and provide strong visual connection to the street. In addition to residential development within the village, there is also some development along Croads Esplanade to the north.

The heritage precinct's centre is located along Main Street, and, whilst the Smithtown Hall located at the entrance to the village reinforces the arrival experience, the village lacks a distinctive neighbourhood core. The limited retail and commercial development along Main Street is interspersed by character residential dwellings.



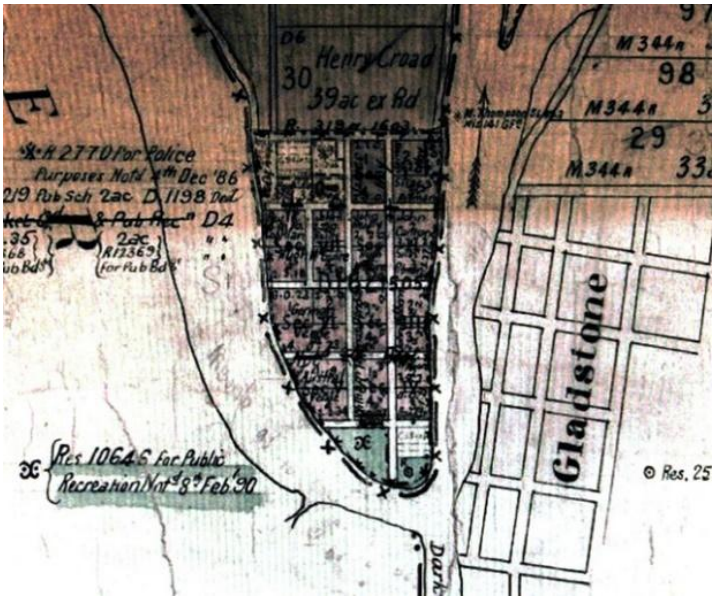


Figure C.29 – Smithtown, Park and Nestle Factory along the Macleay River c 1950s and early Smithtown plan.

Locality (Place) Issues

Flood hazard restricts and limits any growth potential within Smithtown. Should any growth be deemed appropriate however, the provision of adequate infrastructure (e.g. water and sewerage) to service this would be required. In addition, other important transport and community infrastructure may be required to service the needs of the community.

- Regular flood events and high future flood risk.
- Service, transport and community infrastructure.

Character Statement

There is a strong distinction between the character of Smithtown and Gladstone. Smithtown's establishment as a village is a result of its location on the Macleay River, its position between Kempsey and South West Rocks and the area's suitability for cropping, grazing and dairying. Its transformation from natural bush to pastoral and then urban character is evident in the defined edge between river/rural and settlement. The main street has never been the through road of the town and this is a distinctive feature created by the previous punt crossing to and from Gladstone (now replaced by a high level bridge). The bridge across the river dramatically altered the entry aesthetic to the town from the north and east and also the way the main street is accessed. The views across the river and flood plain from the roads and village are back dropped by the distant hills.

The original village is essentially contained within a north - south grid pattern of three blocks wide and five blocks long. The main commercial core is along Main Street and Fitzgerald Streets with stronger residential developmental emphasis in the south.

A distinctive feature of the town is the extent of flood proofing of dwellings that has occurred by raising the original cottages. Other features are the water side reserves, the sports ground and, park landscape areas around the school and the factory.

Within the village core (on both sides of Main Street) is a mix of 19th century and 20th century dwellings, mixed with ecclesiastical, commercial and government buildings.

The buildings in the town are predominantly small scale and framed in the main by timber style fencing, punctuated by roads and side setbacks and complemented by groups of native and introduced trees and shrubs and lack of concrete pathways or driveways.

C4.2.2 Statement of Significance

Smithtown is culturally significant because:

1. It has historic significance as a record of early settlement of the Macleay Valley and flood plain and because of its association with early pioneer families and its association with Nestle;
2. It has aesthetic significance as a good example of an Australian "town in a landscape" and retains intact streetscapes and many individual buildings;
3. It has social significance for its roles as a centre for administration, cultural activities including community and religion; and
4. It has technical/scientific significance because of its association with the development of inter-regional transport links and communication.

Objectives

1. To maintain Smithtown's laid-back residential and quaint heritage charm and character, whilst supporting economic growth and revitalisation of the heritage village centre and the riverfront.
2. To facilitate the continued development of a quality public realm and pedestrian amenity which benefits the community and visitors alike.

C4.2.3 Desired Outcomes/Development Requirements

The following desired outcomes and development control requirements in **Table C.13** prescribe how the above objectives can be met.

Table C.13 – Desired Outcomes and Development Control Requirements – Smithtown

Desired outcomes	Development requirements
1. Preservation	
1.1 Development retains the existing Village built environment to protect the unique period (arts and crafts) heritage and character elements of the village.	a. The application must demonstrate the achievement of this Desired Outcome. b. Development protects and preserves 'significant trees' refer **Part E - Appendix 5**. c. Building heights comply with the requirements of KLEP. Where no building height is stipulated, this will be at the discretion of Council.
1.2 Development protects Smithtown's heritage and character values.	a. Development complies with the relevant requirements in **Part E - Appendix 2**.
2. New Development	
2.1 Development protects Smithtown's unique rural and river character elements.	a. Development complies with KSC's Floodplain Management Policy. b. Development complies with the relevant requirements of **Part D** where applicable.
2.2 Development contributes to the creation of a distinctive commercial and retail core for Smithtown.	a. The application must demonstrate the achievement of this Desired Outcome

C4.3 East Kempsey

Application

1. This section applies to all development on or in the vicinity of the Heritage Precinct of East Kempsey as outlined in bold in **Figure C.30** below.
2. **Part E - Appendix 2** also contains requirements that may be relevant to sites and places within Heritage Precincts and Heritage Items.
3. Proposed Development will also require addressing all relevant provisions in **Part B - Shire Wide Requirements,** and **Part D - Development Requirements**, where applicable.
4. The provisions of this Part however override the provisions of any other Part of this DCP, to the extent of any inconsistency.

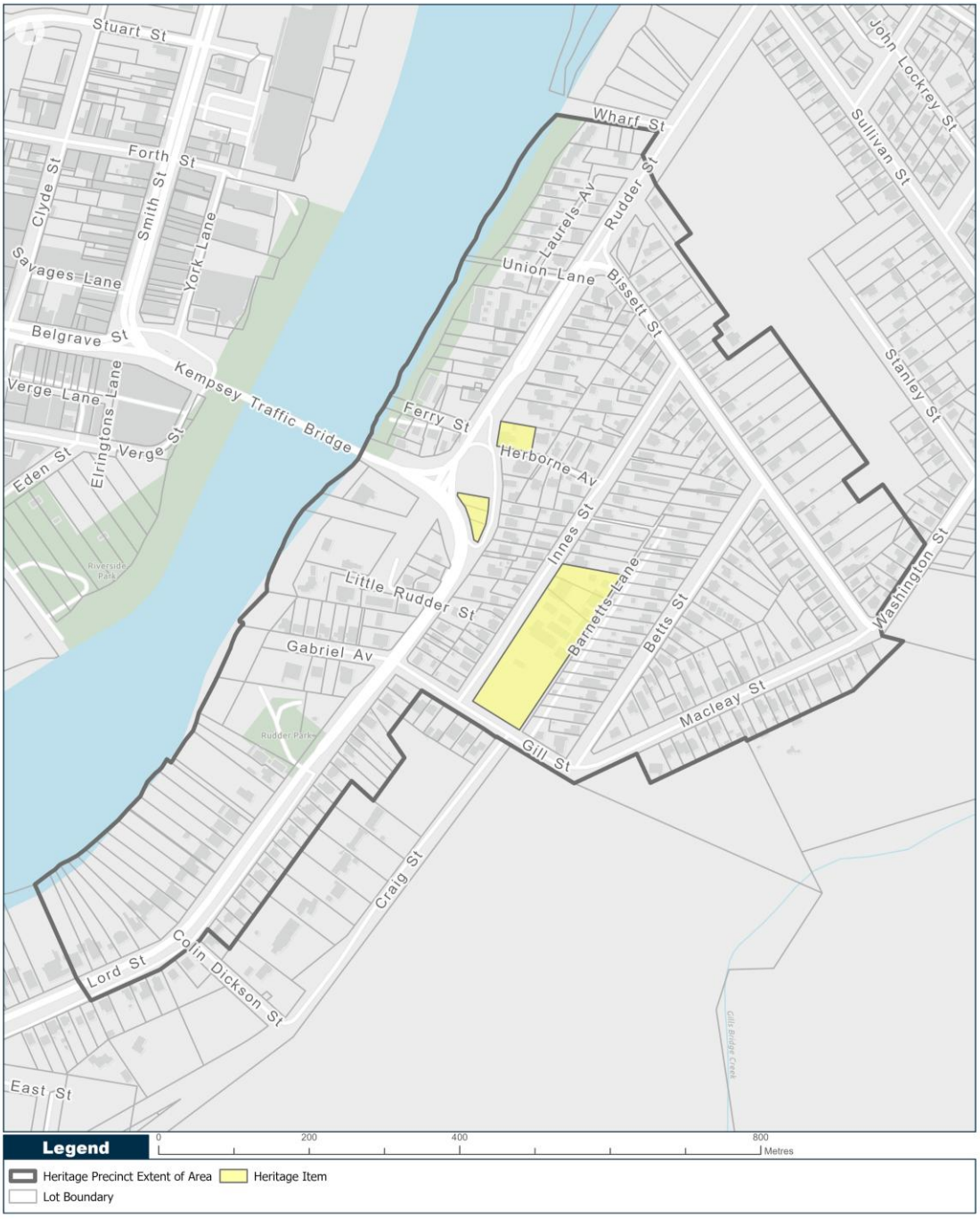


Figure C.30 – East Kempsey Heritage Precinct

Scope

This part outlines the specific planning controls applicable to development and use of land in the East Kempsey Heritage Precinct as identified in the Application above.

C4.3.1 Analysis

Background

With a population of around 1400, East Kempsey is primarily a residential community focused around a small local centre located at the intersection of Lord Street (the old Pacific Highway) and Rudder Street, directly across the river from the main commercial centre of Kempsey.

Access from the north is via the bridge crossing of the Macleay River, which provides vehicular and pedestrian connectivity to Kempsey, whilst access from the south is via Lachlan Street and South Kempsey. An alternative entry to East Kempsey is provided from the east via South West Rocks Road which connects to the settlements of Gladstone and South West Rocks.

Located on Dunghutti Country, East Kempsey has historical associations, aesthetic qualities and social value as a residential area supporting the commercial centre of Kempsey.



Figure C.31 – East Kempsey along the Macleay River 1949. Town plan

Description - Character

Residential development surrounds a small local centre precinct, following an established pattern that runs parallel to the Macleay River. This pattern is bordered on north by a large drainage corridor along Bissett Street that provides definition, visual relief and contributes to the rural character of the locality.

The age and typology of housing varies throughout East Kempsey and includes a mixture of dwellings dating from early-late 19th century until the present day on lots between 500m2 and 1200m2. Larger lots also occur where terrain is challenging (such as along Lord Street where lots extend down to the river's edge) and on the outskirts of East Kempsey.

Residential buildings are generally one and two-storey weatherboard and brick detached dwellings, with brick chimneys and verandas addressing the street. Some low-rise apartment blocks are also located throughout East Kempsey. Although more contemporary homes do exist, the materiality and scale of these dwellings is generally sympathetic to the heritage character of the area.

Residential interfaces to the street are characterised by grass verges and low fences that provide a visual connectivity between properties and the street. However, taller, more visually dominant fences are present along more trafficked road corridors.

The historic local centre comprises the neighbourhood's primary services and amenities offering for East Kempsey.

Locality (Place) Issues

Due to the lack of available flood immune land, East Kempsey is anticipated to experience limited future residential growth pressure. Opportunities to facilitate further infill residential growth maybe encouraged, where constraints can be appropriately managed.

The local centre could be developed into a local village heart for East Kempsey, which will support its local identity and character as distinct from the Kempsey Central CBD. Subject to investigations, there may be an opportunity for mixed use development to be provided along the river frontage on Rudder Street between the Bridge and Union Lane to the north.

Active transport infrastructure continues to be an essential element to promote accessibility, walkability and safe bike routes throughout East Kempsey, particularly linking schools, open space along the Macleay River and town centre. Such opportunities should be encouraged.

Character Statement

East Kempsey was developed on the crest of a ridge in an otherwise low lying and flat landscape. It falls to the river in the west and the farmland/ floodplain in the north and east. East Kempsey enjoys vistas to the north and west of hilly and undulating vegetated terrain and to the north and east of alluvial floodplain. East Kempsey was the hub of initial settlement on the Macleay River, the site of the formal river crossings via punt, then a timber and later a steel vehicular bridge.

The buildings are predominantly small-scaled single storey with the allotments defined by a variety of fencing types, border gardens and brick dwarf walls. High courtyard walls have not been nor become an element in any of the streetscapes.

The residential streetscape has a spacious quality with a mixture of dwellings from early-late 19th century to the present. The precinct has many opportunities for views to the expanse of surrounding pastoral land. The dwellings from the early 20th century until World War Two are in groups possibly reflecting the date of sale of the properties and phases in development. Due to the river and town outlook, the buildings on the east side of Rudder Street and highest on the knoll are the more expansive and have been constructed in brickwork, some with tiled roof.

East Kempsey is a settlement area developed to service Kempsey from the late 19th to the present day. Development has been limited by the extent of flood free land available. Any intrusive elements are recent and are highly visible amidst the housing stock.

C4.3.2 Statement of Significance

East Kempsey is culturally significant because:

1. It has historic significance as being the first area of settlement of the town of Kempsey and its association with the early European pioneers of the area.
2. It is a suburban area of the Macleay Valley containing a mix of the earlier forms and styles of buildings with the newer residential buildings. It is a well layered example of rural town development.
3. It has aesthetic significance as an example of an Australian “town in a rural landscape” and retains relatively intact streetscapes and individual and groups of period buildings. Its wide spectrum of landscape surrounds include the town’s business district, the river and the alluvial plains, all with a backdrop of the Great Dividing Range to the west.
4. It has social significance for its roles as a residential area supporting the commercial area.
5. It has technical/scientific significance because of its association with the development as a river port and the site of the first formal river crossing.

Objectives

East Kempsey is developed to:

- Maintain its character as a relaxed residential community defined by low-rise residential development.

- Maintain the established pattern of housing for East Kempsey, with some opportunity to reduce minimum lot sizes, whilst generally retaining current land use zones and densities.
- Be focused on its historic small neighbourhood precinct on Rudder Street.
- Take advantage of the visual and lifestyle amenity offered by its location overlooking the Macleay River.
- Be defined by the unique character and heritage of buildings and streetscapes which are enhanced by improved accessibility and pedestrian amenity, including through enhanced connections and additional street tree plantings.

C4.3.3 Desired Outcomes/Development Requirements

The following desired outcomes and development control requirements in **Table C.14** prescribe how the above objectives can be met.

Table C.14 – Desired Outcomes and Development Control Requirements – East Kempsey

Desired outcomes	Development requirements
1. Preservation	
1.1 Development protects East Kempsey's existing and unique heritage, heritage items and character values.	a. Building heights and floor space ratios comply with the requirements of KLEP. Where no building height or FSR is stipulated, this will be at the discretion of Council. b. Existing heritage and character buildings and features are maintained and preserved. c. Development complies with the relevant requirements in **Part E - Appendix 2**.
1.2 Development protects East Kempsey's landscape character.	a. Development implements street tree planting in accordance with KSC Infrastructure Delivery Guide. b. Development protects and preserves 'significant trees' refer **Part E - Appendix 5**.
1.3 Development promotes accessibility and walkability, while protecting important vistas to the river and maintaining the unique character of East Kempsey.	c. The application must demonstrate the achievement of this Desired Outcome
2. New Development	
2.1 East Kempsey facilitates further infill development to provide for greater housing diversity and affordability.	a. Council may consider planning proposals to reduce the minimum lot size in the R1- General residential zone to 400m^2, whilst generally retaining current land use zones, densities and scale. b. Development complies with the relevant requirements of **Part D** where applicable.
2.2 Development contributes to the creation of a local village heart for East Kempsey on Rudder Street, which will help to define its unique character and local identity.	a. Development complies with the relevant requirements of **Part D** where applicable. b. The application must demonstrate the achievement of this Desired Outcome

C4.4 Kempsey Central

Application

1. This section applies to all development on or in the vicinity of the Heritage Precinct of Kempsey Central as outlined in bold in **Figure C.32** below.
2. **Part E - Appendix 2** also contains requirements that may be relevant to Heritage Precincts.
3. Proposed Development will also require addressing all relevant provisions in **Part B - Shire Wide Requirements,** and **Part D - Development Requirements**, where applicable.
4. The provisions of this Part override the provisions of any other Part of this DCP, to the extent of any inconsistency.

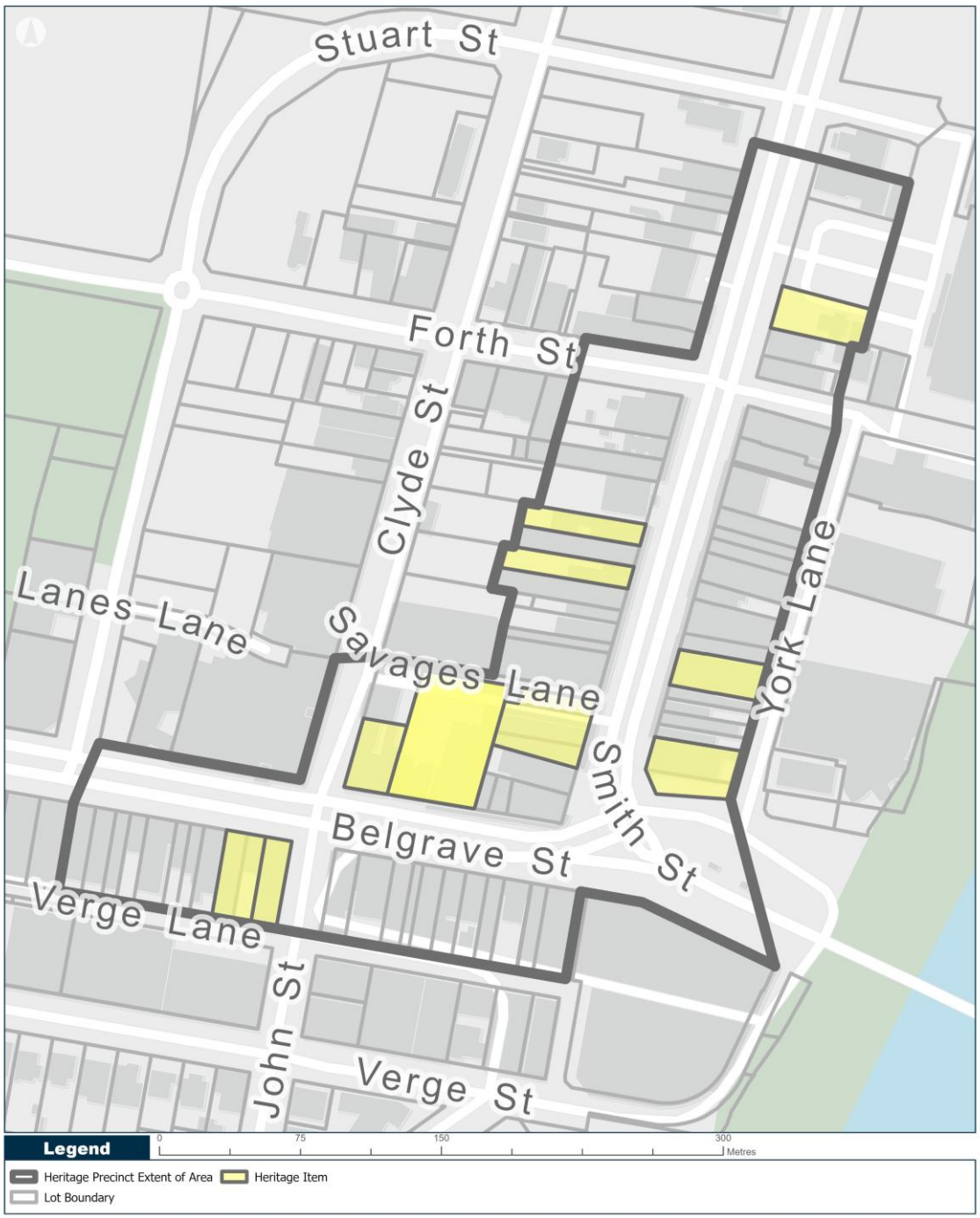


Figure C.32 – Central Kempsey Heritage Precinct

Scope

This part outlines the specific planning controls applicable to development and use of land in Kempsey Central Heritage Precinct as identified in the Application above.

C4.4.1 Analysis

Background

The Kempsey Central forms the hub of the whole shire, offering the widest range of commercial, retail and other community services and facilities. One of the main features of the Central area is that the main street is the through-road of the Kempsey CBD. The views across the river from Kempsey Central are a significant feature.

Located on Dunghutti Country, Kempsey is approximately equidistant from Sydney and Brisbane, however the major Pacific Highway diversion reduced some travelling visitor stop-offs. While there is a small residential component within Kempsey Central its primary function remains as the key commercial and service centre for the Shire and tourism of the Macleay Valley.

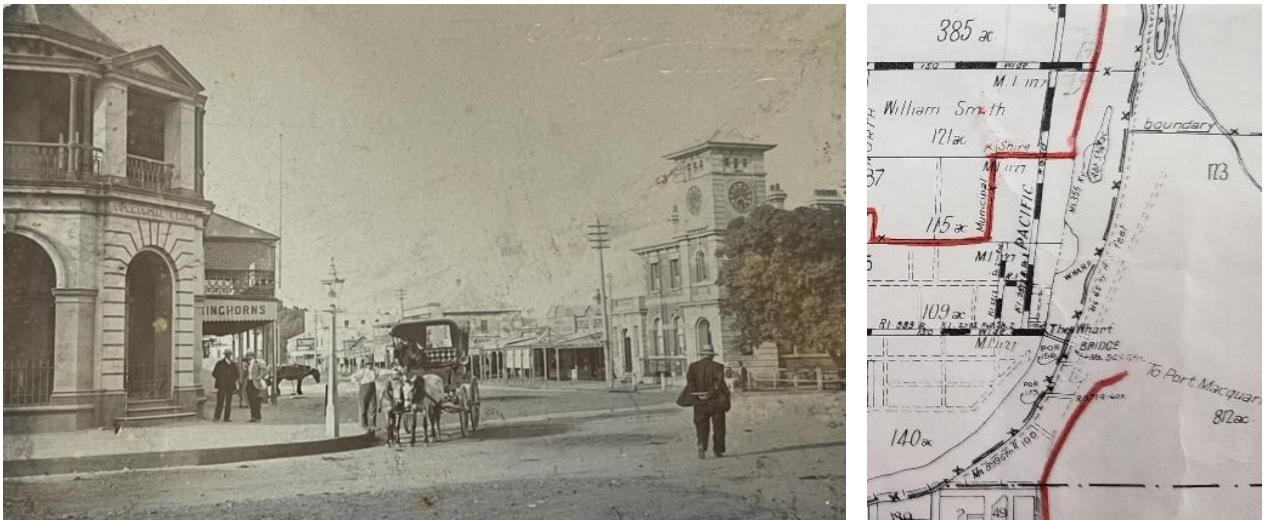


Figure C.33 – Smith Street Kempsey c1900 and part of 20th Century town plan

Description - Character

Within the Kempsey Central Heritage Precinct commercial and retail development is primarily focused along Smith Street and Belgrave Street. This comprises an eclectic mix of uses contained within two storey heritage and contemporary buildings with small frontages. The high street function of Smith Street is supported by additional commercial development along Savages and York Lanes providing 'back of house' functions access and additional carparking.

Extending north along Smith Street and west along Belgrave Street, the fine-grained heritage town centre gives way to larger lot commercial development, including short stay accommodation facilities. These developments typically have off street parking and the streetscape character is reflective of the car-focused development, with wider streets, fewer street trees and less public realm embellishments.

Traditionally the town turned its back to the river, so the intersection of Smith Street, Belgrave Street and the bridge (Lord Street) forms the key focal point of the town centre. This node is reinforced by landmark features including the Post Office and significant Red Cedars (Toona ciliata) which contribute to the heritage character of the town.

Locality (Place) Issues

Activation of the town centre in the evenings is desired but is currently limited due to the trading hours of local businesses. Population increase and associated employment opportunities will facilitate the shift to a greater night-time economy for Kempsey CBD.

There are opportunities for more medium density residential to be provided within Kempsey Central. More small dwellings and better housing choice, diversity and affordability can be achieved through:

- Actively encouraging more shop top housing and mixed-use development opportunities within the E2: Commercial centre zone.
- Continued monitoring and management of social issues within the town centre.
- Increased flood resilience measures which protect buildings from flood inundation, through appropriate design measures.

The provision of essential services infrastructure to service the growth of Kempsey. Any new growth opportunities should be capable of being serviced by necessary transport, water and sewerage infrastructure.

Active transport infrastructure continues to be an essential element in promoting accessibility, walkability and safe bike routes throughout Kempsey town centre and to the Macleay River. Opportunities to promote increased active transport to and through the heritage precinct will be positively considered.

Character Statement

The Kempsey Central Heritage Precinct contains a mix of single and two storey commercial and public sector buildings, constructed in the 19th and 20th centuries. It is characterised by the facade and verandah arrangements directly addressing the main streets rather than facing the Macleay River which runs along the eastern side of the CBD. The main entries to the CBD are from the bridge over the Macleay River to the south, from Belmore Street to the west and from the Macleay Valley Way from the north.

The streetscape of Kempsey Central is characterised by a consistent two storey commercial building form to the footpath edge, relatively consistent awnings and glass windowed shopfronts facing the street. The buildings are a mixture of styles and ages.

Buildings that contribute to the character of Kempsey Central areas are typically constructed of: timber, corrugated iron, stone block or brickwork. Large areas of glazing at ground level are common features in shopfronts. Within Kempsey Central, the consistent two storey facade, capped with a parapet rather than a gutter line, is a common element. Facades typically include:

- Detailed embellishments of brick patterns;
- Projections;
- Raised pediments; and
- Vertical window proportions.

Some buildings have colonial central arched entrances. Some of the buildings have timber framed and post supported awnings over the street.

C4.4.2 Statement of Significance

Kempsey Central is culturally significant because:

1. It has historic significance as being one of the first areas of settlement of the town of Kempsey and its association with the early European pioneers of the area and because of its association with the development as a river port and the site of the first formal river crossing.
2. It is an urban area of the Macleay Valley containing a mix of the earlier forms and styles of buildings with the newer residential buildings. It is a well layered example of rural town development.
3. It has aesthetic significance as an example of an Australian “town in a rural landscape” and retains relatively intact walkable streets and individual and grouped period buildings. Its wide spectrum of landscape surrounds include the town’s business district, the river and the alluvial plains, all with a backdrop of the Great Dividing Range to the west.

4. It has social significance for its roles as the Shire's principal commercial area.

Objectives

Kempsey Central Heritage Precinct is developed to:

- Be the cultural and business heart of Kempsey Shire, through the active preservation, use and adaption of historic, heritage and period buildings in the precinct;
- Have an attractive and vibrant rural town punctuated with attractive heritage buildings;
- Promote the accessibility, visibility, amenity and lifestyle opportunities afforded by its location near the northern bank of the Macleay River with better connections.
- Be the central business district and the primary focus of retail activity, commercial and mixed use residential, providing essential facilities and services for Kempsey Shire as a whole;
- Provide various types of appropriate medium density residential such as shop top housing that offer a complimentary and diversity of options that meet the needs of members of the community and businesses; and
- Have a quality public realm and pedestrian amenity, with active transport opportunities providing important connections and accessibility to and through the Kempsey town centre.

C.4.4.3 Desired Outcomes/Development Requirements

The following desired outcomes and development control requirements in **Table C.15** prescribe how the above objectives can be met.

Table C.15 – Desired Outcomes and Development Control Requirements – Kempsey Central

Desired outcomes	Development requirements
1. Preservation	
1.1 Development protects Kempsey Central Heritage Precinct's existing and historic, heritage and character buildings. 1.2 Development promotes a more active and vibrant town centre with a thriving and activated night time economy. 1.3 Development preserves and adapts the existing stock of heritage buildings for business, social, community and residential re-use	a. Building heights and floor space ratios comply with the requirements of KLEP. Where no building height or FSR is stipulated, this will be at the discretion of Council. b. Development complies with the relevant requirements in **Part E - Appendix 2**. c. Existing heritage and character buildings and their features are restored, maintained and preserved. d. Development provides active frontages through shopfronts, windows and displays directly addressing the street. e. Development complies with the relevant requirements of **Part D** where applicable.
1.4 Development protects Kempsey Central Heritage Precinct's town character.	a. Development protects and preserves 'significant trees' refer **Part E - Appendix 5**. b. Development implements street tree planting in accordance with KSC Infrastructure Delivery Guide.
1.5 Development protects important physical links and vistas to the river and maintains the unique riverside character of Kempsey Central.	a. The application must demonstrate the achievement of this Desired Outcome

Desired outcomes	Development requirements
1.6 Development achieves a quality public realm and pedestrian amenity, with public and active transport opportunities providing important connections and accessibility to the Kempsey CBD.	a. The application must demonstrate the achievement of this Desired Outcome
2. New Development	
2.1 The CBD continues as a vibrant town centre which is the heart of the Shire, that is thriving and activated. 2.2 New businesses operate and locate within the town centre on existing E2 zoned land.	a. Building heights and floor space ratios comply with the requirements of KLEP. Where no building height or FSR is stipulated, this will be at the discretion of Council. b. The application must demonstrate the achievement of this Desired Outcome
2.3 Infill development provides complimentary business and residential (mixed-use) components for choice, diversity and affordability within Kempsey Central.	a. Development in the E2 – Commercial Centre zone comprises medium density housing such as shop top housing and other small dwellings. b. Development complies with the relevant requirements of **Part D** where applicable.
Connectivity	
2.4 Development protects and enhances the visibility, amenity and lifestyle opportunities afforded by its proximity to the northern bank of the Macleay River.	a. Development complies with the Kempsey Flood Policy.
Streetscapes and Public Realm	
Streetscapes 2.5 Streetscape and public domain improvements are provided. 2.6 Streets within the main street/town centre are developed as civic spaces and provides places for people to meet and interact.	a. Development implements street tree planting in accordance with KSC Infrastructure Delivery Guide. b. The application must demonstrate the achievement of this Desired Outcome
Pedestrian and Cycle Paving 2.7 Pedestrian areas and pedestrian/cycle path paving is generally consistent with the existing pedestrian paving in Kempsey Central, in terms of: i. Width ii. Connections iii. Safety features iv. Materials.	a. The application must demonstrate the achievement of this Desired Outcome
Street furniture 2.8 Any bollards provided are consistent with the established theme of bollards used in the street reserves and public open spaces. 2.9 A consistent design and colour for seats, benches, tables and litter bins etc is provided in the street reserve and public areas.	a. The application must demonstrate the achievement of this Desired Outcome

Desired outcomes	Development requirements
Lighting 2.10 Street lighting and lighting within public open spaces contributes to a unified approach for lighting structures.	a. A consistent design for street lamps and bollard type lights is used. b. Development complies with AS 4282-2019 Control of the obtrusive effects of outdoor lighting.
Street Trees 2.11 Street trees are provided in accordance with the relevant requirements of **Part B** and **Part D**.	a. Development protects and preserves 'significant trees' refer **Part E - Appendix 5**. b. Street trees must be provided at a minimum average spacing of one per twenty (20) metres of frontage.

C4.5 West Kempsey

Application

1. This section applies to all development on or in the vicinity of the Heritage Precinct of West Kempsey as outlined in bold in **Figure C.34** below.
2. **Part E - Appendix 2** also contains requirements that may be relevant to Heritage Precincts.
3. Proposed Development will also require addressing all relevant provisions in **Part B - Shire Wide Requirements,** and **Part D - Development Requirements**, where applicable.
4. The provisions of this Part however override the provisions of any other Part of this DCP, to the extent of any inconsistency.

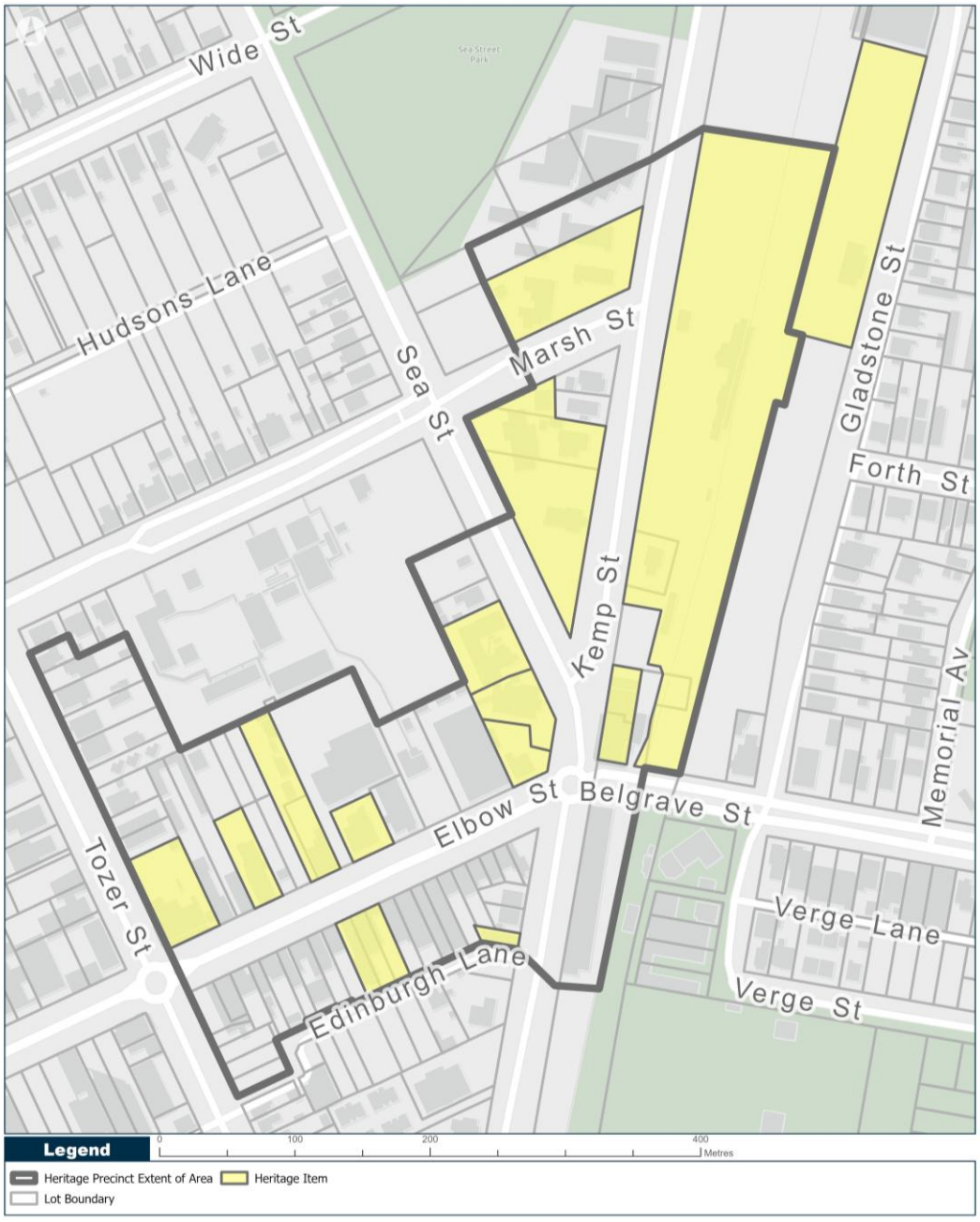


Figure C.34 – West Kempsey Heritage Precinct

Scope

This part outlines the specific planning controls applicable to development and use of land in the West Kempsey Heritage Precinct as identified in the Application above.

C.4.5.1 Analysis

Background

Located on Dunghutti Country, West Kempsey is located to the west of the Kempsey CBD and is a major suburban residential area with a defined neighbourhood commercial centre and civic precinct. The whole locality is bounded by the Macleay River to the west and low-lying plains that still support grazing on modified pastures, which contribute to its pleasant setting.

The broader West Kempsey area has a population of around 5,000 and is anticipated to accommodate additional residential and commercial development in future. The Heritage Precinct itself includes key civic and community facilities, including the Police, courthouse, churches, railway station, with Council, Government and civil services; ambulance and fire nearby.

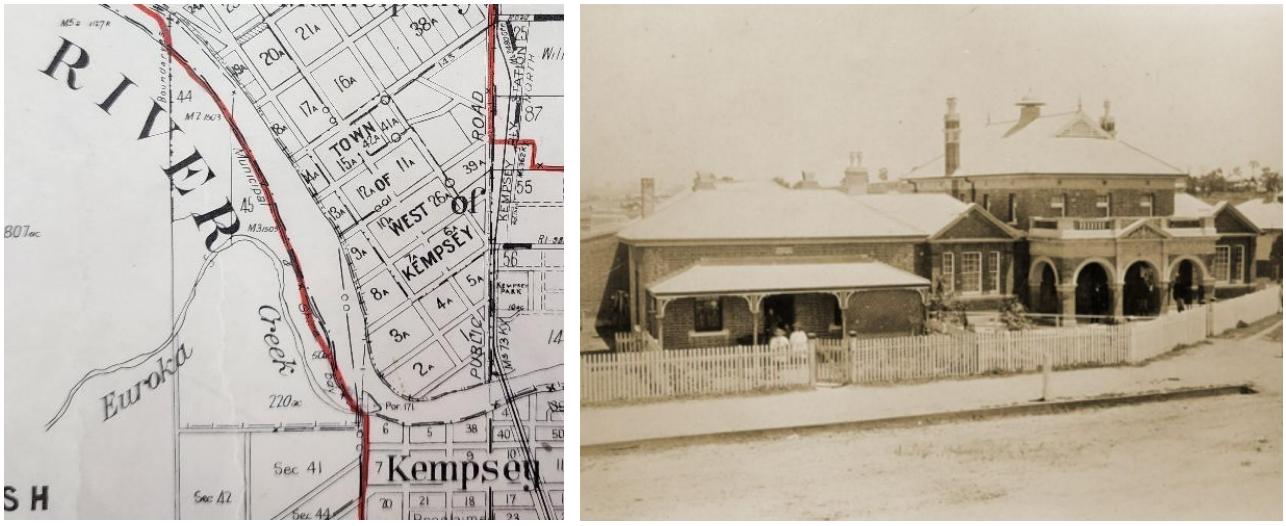


Figure C.35 – West Kempsey c1900 and historic picture of Elbow Street and Courthouse

Description - Character

The Heritage Precinct is made up of commercial, retail and community facilities focused in the southern part of West Kempsey along Elbow Street (which functions as the local 'main street'), Tozer Street, Kemp Street and the southern end of Sea Street. This centre presents as a functional, vibrant and cohesive precinct and is serviced by road transport infrastructure and the Kempsey Railway Station.

Within the Heritage Precinct's commercial centre, many premises are set right to the street edge with a variety of verandahs that reinforce the 'main street' character of the precinct. On Elbow Street's southern side this is coherent, however on the northern side existing development is more mixed between single and multi-storey, new and heritage buildings and varied setbacks with some open space.

A small section of residential development which follows Tozers Street on an established grid extending westward from the commercial centre of West Kempsey. Residential dwellings here merge into community facilities.

In the outer areas of the precinct low fences corresponding with the materials of the residential dwellings are common, providing strong visual connectivity between residential properties and the street. However, fences are less common and often non-existent in other parts of the area and taller, more visually obtrusive fences, are present around large community and education facilities.

Locality (Place) Issues

Broader West Kempsey leverages its strength in health and social assistance employment to attract professionals to the area in order to expand service offerings, which will eventually be used to service the ageing population in the region.

The topography of the immediately surrounding area and the dispersed development pattern create challenges for West Kempsey Heritage Precinct's visibility and accessibility to and from the wider area. Potential facilities such as the railway station are not visible or well connected from the commercial centre. The area would benefit from improved connections and accessibility to services and infrastructure which will be essential to support growth. Locality issues include:

- Care and maintenance of heritage buildings
- Quality and extent of active transport and the pedestrian environment
- Accessibility and connection of and between civic, community facilities and transportation
- The use and activation of heritage buildings and commercial vitality and activity levels generally

Character Statement

West Kempsey is a smaller centre and started growing as a centre after Kempsey CBD was established. Elbow Street is the main through road of West Kempsey. It contains the Shire's main civic buildings and services and other key community facilities such as historic Courthouse and Kempsey Railway Station. West Kempsey is set on higher ground than the CBD and the views to the mountains to the west are significant.

The streetscape is influenced by commercial government buildings, with a mixture of heights, building materials, and ages.

Buildings that contribute to the character of the heritage area are constructed of either: timber, corrugated iron, stone block or brickwork. Large areas of glazing at ground level is a common feature in shopfronts.

C4.5.2 Statement of Significance

West Kempsey is culturally significant because:

- It has historic significance as one of the earliest settled areas of Kempsey and is associated with the early European pioneers of the railway development.
- It is an urban area of the Macleay Valley containing a mix of the earlier forms and styles of buildings with the newer residential buildings. It is a well layered example of rural town development.
- It has aesthetic significance as an example of an Australian "town in a rural landscape" and retains relatively intact streetscapes and individual and groups of period buildings. Its wide spectrum of landscape surrounds includes the town's business district, the river and the alluvial plains, all with a backdrop of the Great Dividing Range to the west.
- It has social significance for its roles as a neighbourhood, civic and commercial centre.

Objectives

West Kempsey Heritage Precinct is developed to:

- Enhance its functions, preserves its character and continues to provide opportunities for business, education, community and residential development.
- Continue to be a key commercial neighbourhood centre which celebrates and enhances its local heritage and character.
- Provide the focus for West Kempsey's community and provide good accessibility and pedestrian amenity through enhanced connections between residential surrounds and the commercial centre.

- Enhance connectivity by improving active transport links; walkability and cycling to and from the Railway Station, Kempsey Town Centre and the Showgrounds.
- Support complementary commercial and residential opportunities in mixed-use, shop-top and multi-dwelling type housing encouraging a mix of options that cater to different needs while maintaining the area's character.

C4.5.3 Desired Outcomes/Development Requirements

The following desired outcomes and development control requirements in **Table C.16** prescribe how the above objectives can be met.

Table C.16 – Desired Outcomes and Development Control Requirements – West Kempsey

Desired outcomes	Development requirements
1. Preservation	
1.1 Development protects West Kempsey's existing and unique heritage and character buildings.	a. Building heights and floor space ratios comply with the requirements of KLEP. Where no building height or FSR is stipulated, this will be at the discretion of Council. b. Existing heritage and character buildings and features are restored, maintained and preserved. c. Development complies with the relevant requirements in **Part E - Appendix 2**. d. 'Main Street' development provides active frontages through shopfronts, windows and displays directly addressing the street. e. Development complies with the relevant requirements of **Part D** where applicable.
1.2 Development protects West Kempsey Heritage Precinct's commercial centre and landscape character.	a. Development implements street tree planting in accordance with KSC Infrastructure Delivery Guide. b. Development protects and preserves 'significant trees' refer **Part E - Appendix 5**.
1.3 Development protects important vistas to the river, mountains and maintains the character of West Kempsey.	a. The application must demonstrate the achievement of this Desired Outcome
1.4 Development protects and enhances the amenity and lifestyle opportunities afforded by the streetscape, public realm and open spaces.	a. Development complies with the relevant requirements of **Part D** where applicable. b. Development complies with Kempsey's Flood Policy.
2. New Development	
2.1 Infill development provides appropriate housing choice, diversity and affordability within West Kempsey Heritage Precinct.	a. Council may consider planning proposals to reduce the minimum lot size in the R1- General residential zone to 400m2, as outlined within the Kempsey LGMS. b. Development complies with the relevant requirements of **Part D** where applicable.
2.2 Development links the retail businesses, civic and community facilities of West Kempsey'	a. The application must demonstrate the achievement of this Desired Outcome

Desired outcomes	Development requirements
Heritage Precinct with the wider West Kempsey community and the Kempsey CBD and develops connectivity between the centres.	
2.3 Commercial and industrial development meets the needs of West Kempsey and the Shire as a whole.	a. Council may consider planning proposals for a minor expansion of employment land zones to accommodate future business, commercial and/or industrial employment growth.
2.4 Development provides adequate infrastructure to service the proposal.	a. The application must demonstrate the achievement of this Desired Outcome.
Connectivity	
2.5 Development achieves a quality public realm and pedestrian amenity, with active transport opportunities providing important connections and accessibility to the surrounding neighbourhood, showgrounds, railway station and Kempsey CBD. 2.6 Development enhances the pedestrian experience in the Elbow Street shopping precinct and facilitates safe cycling connections.	a. The application must demonstrate the achievement of this Desired Outcome
Streetscapes and Public Realm	
Streetscapes 2.7 Streetscape and public domain improvements are provided. 2.8 Streets within the 'main street'/ commercial centre are developed as civic spaces and provides places for people to meet and interact.	a. The application must demonstrate the achievement of this Desired Outcome
Pedestrian and Cycle Paving 2.9 Pedestrian areas and pedestrian/cycle path paving is generally consistent with the existing pedestrian paving in West Kempsey, in terms of: a. Width b. Connections c. Safety features d. Materials.	a. The application must demonstrate the achievement of this Desired Outcome
Street furniture 2.10 Any bollards provided are consistent with the established theme of bollards used in the street reserves and public open spaces. 2.11 A consistent design and colour for seats, benches, table and litter bins etc is provided in the street reserve and public areas	a. The application must demonstrate the achievement of this Desired Outcome
Lighting	a. A consistent design for street lamps and bollard type lights is used. b. Development complies with AS 4282-2019

Desired outcomes	Development requirements
2.12 Street lighting and lighting within public open spaces contributes to a unified approach for lighting structures.	Control of the obtrusive effects of outdoor lighting.
Street Trees 2.13 Street trees are provided in accordance with the relevant requirements of **Part B** and **Part D**.	a. Street trees must be provided at a minimum average spacing of one per 20 metres of frontage.